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Grounds of Appeal

Grounds of Appeal

Ground 1 – Error of Law in the Application of the Contempt Test

The judge erred in law by failing to apply the correct legal framework for determining contempt of court. The applicable test requires the court to consider whether the false statements were (a) knowingly made, (b) material to the proceedings, and (c) capable of interfering with the administration of justice.

The Respondent's sworn evidence, oral evidence, and ES2 Statement of Assets falsely asserted that his Oxus Acquisition Corp Founder Shares were worthless, despite their vesting on 7 February 2024 upon completion of the Oxus/Borealis merger, with a value of over USD \$500,000. By failing to apply this framework, the judge misapplied the law.

Ground 2 – Failure to Consider Material Evidence

The judge failed to address or evaluate critical documentary evidence before the court, including:

1. SEC filings signed by the Respondent acknowledging his shareholdings and beneficial ownership, and his role in the SPAC.
2. The SEC Prospectus dated 16 January 2024 evidencing the vesting of Founder Shares.
3. Photographic and social media evidence showing the Respondent's attendance at Nasdaq launch ceremony on 8 February 2024.
4. Email correspondence, form D-11 filing, and supporting exhibits filed in March–April 2024 identifying perjury.

This omission was a material procedural irregularity that undermined the fairness of the decision.

Ground 3 – Procedural Unfairness and Disability Discrimination

I am a vulnerable litigant with autism, PTSD, and severe anxiety. The judge revoked my participation measures under FPR Part 3A and PD3AA without notice or reasons, leaving me unable to participate effectively in post-trial proceedings, including the contempt application.

The removal of adjustments amounted to a breach of sections 15 and 20 of the Equality Act 2010, denying me reasonable accommodations necessary for equal access to justice. This was also a breach of Article 6 ECHR, which guarantees the

right to a fair hearing.

Ground 4 – Failure to Recognise the Gravity of Perjury

The judgment failed to attach appropriate weight to the seriousness of perjury in High Court proceedings. The Respondent's false evidence distorted the financial remedy award and concealed assets worth USD \$500,000. The matter also intersects with corporate transparency and securities fraud. By dismissing the contempt without scrutiny, the judgment undermines public confidence in the administration of justice.

Ground 5 – Apparent Bias

The judge's conduct gives rise to the appearance of bias, contrary to the test in *Porter v Magill* [2001] UKHL 67. My applications were repeatedly labelled as 'totally without merit,' without reasoning, while the Respondent's applications were treated more favourably. A fair-minded and informed observer would conclude that there was a real possibility of bias.

Ground 6 – Errors of Facts

The decision states that the judge did not engage with the perjury because the asset was non-matrimonial. This statement is incorrect. There is no evidence supporting the claim that the asset was non-matrimonial, nor was the question put to the Appellant during the trial. Secondly, the Oxus Founders Shares are not an asset, they are a performance-based income. Therefore, whether they are matrimonial or not matrimonial is irrelevant to the matter.

Ground 7 – Mischaracterisation of the Public Interest

The dismissal overlooked the wider public interest in ensuring honesty in judicial proceedings, particularly where perjury concerns:

- Cross-border financial structures,
- Listed companies regulated by the SEC, and
- The integrity of financial disclosure in matrimonial proceedings.

The court erred in treating this as a private dispute, when the Respondent's conduct has systemic implications. By overlooking these factors, the court underplayed the wider significance of the case.

Relief Sought

1. Permission to appeal the order of 8 May 2025.
2. That the appeal be allowed and the dismissal set aside.
3. That the contempt application be remitted to a different High Court judge for rehearing.
4. Directions ensuring compliance with FPR Part 3A, the Equality Act 2010, and Article 6 ECHR.
5. Costs of this appeal.

Authorities to be Relied Upon

- Perjury Act 1911
- Family Procedure Rules 2010 (Part 37; Part 3A and PD3AA)
- Porter v Magill [2001] UKHL 67
- Locabail (UK) Ltd v Bayfield Properties [2000] QB 451
- Re K (Children) [2014] EWCA Civ 1195
- Equality Act 2010, ss. 15 and 20
- Article 6 ECHR

Skeleton Argument

Appellant's Skeleton Argument

A. INTRODUCTION

1. This skeleton argument supports the Appellant's application for permission to appeal and, if granted, the substantive appeal.
2. The appeal challenges the order of Mr Justice MacDonald dated 8 May 2025, dismissing the Appellant's contempt application (Form D11, filed 7 March 2024 and Form N600, filed 27 November 2024). The application alleged that the Respondent gave false sworn evidence concerning his Oxus Acquisition Corp Founder Shares.
3. The Appellant contends that the judge erred in law, disregarded critical evidence, acted procedurally unfairly, and downplayed the gravity of perjury in High Court proceedings.

B. ISSUES

The issues for determination are:

1. Whether the judge erred in applying the proper test for contempt.
2. Whether the dismissal was procedurally unfair given the Appellant's vulnerability under FPR Part 3A.
3. Whether the judge failed to engage with key evidence of perjury.
4. Whether the decision gives rise to apparent bias.
5. Whether the public interest in preventing perjury was mischaracterised.

C. FACTUAL BACKGROUND

1. The parties are engaged in financial remedy proceedings in the High Court.
2. The Respondent swore that his Oxus Founder Shares were worthless.
3. In reality, the SEC Prospectus dated 16 January 2024 confirmed vesting of these shares upon completion of the Oxus/Borealis merger on 7 February 2024, creating assets worth over USD \$500,000.
4. The Appellant filed a contempt application supported by SEC filings, photographs, and email evidence.
5. On 8 May 2025, the High Court dismissed the application outright as "totally without merit".

D. GROUNDS OF APPEAL

1. Error of law – failure to apply the correct contempt test.

2. Failure to consider material evidence – SEC filings, the Prospectus, and Nasdaq photographs.
3. Procedural unfairness and discrimination – revocation of participation measures contrary to the Equality Act 2010 and Article 6 ECHR.
4. Failure to recognise gravity of perjury – concealment of significant assets with international implications.
5. Apparent bias – unfair treatment of Appellant’s applications compared to the Respondent’s.
6. Errors of facts – the decision states that the judge did not engage with the perjury because the asset was non-matrimonial. This statement is incorrect. There is no evidence supporting the claim that the asset was non-matrimonial, nor was the question put to the Appellant during the trial. Secondly, the Oxus Founders Shares are not an asset, they are a performance-based income. Therefore, whether they are matrimonial or not matrimonial is irrelevant to the matter.
7. Mischaracterisation of public interest – trivialisation of issues involving perjury and securities regulation.

E. LEGAL FRAMEWORK

- Perjury Act 1911
- Family Procedure Rules 2010 (Part 37; Part 3A, PD3AA)
- Equality Act 2010, ss. 15 and 20
- Article 6 ECHR
- Porter v Magill [2001] UKHL 67
- Locabail (UK) Ltd v Bayfield Properties [2000] QB 451
- Re K (Children) [2014] EWCA Civ 1195

F. SUBMISSIONS

1. The Respondent’s evidence was knowingly false, material, and interfered with justice. The judge erred in failing to apply the correct test.
2. The dismissal disregarded direct documentary evidence of perjury.
3. Revocation of participation measures denied the Appellant equal access to justice, contrary to statute and the ECHR.
4. The dismissal trivialised perjury, undermining public confidence in justice.
5. The pattern of dismissals of the Appellant’s applications creates the appearance of bias.
6. The wider public interest in perjury connected to a U.S.-listed company was

overlooked.

G. RELIEF SOUGHT

1. Permission to appeal.
2. Allowing the appeal and setting aside the order of 8 May 2025.
3. Remittal of the contempt application to a different High Court judge.
4. Directions ensuring compliance with FPR Part 3A, the Equality Act 2010, and Article 6 ECHR.
5. Costs of this application.

Chronology

Chronology of Key Events

Background to Proceedings

- 2020 – Commencement of matrimonial proceedings between Ms. Nadia Zahmoul (Appellant) and Mr. Karim Nouredine Zahmoul (Respondent).
- Case Reference: BV20D01752.

Oxus Acquisition Corp Transactions and Perjury

- 16 January 2024 – SEC Prospectus confirming vesting of Founder Shares in Oxus Acquisition Corp upon completion of merger.
- 7 February 2024 – Oxus Acquisition Corp completed business combination with Borealis, triggering vesting of Founder Shares valued in excess of USD \$500,000.
- 8 February 2024 – Photographic and media evidence shows Respondent present at Nasdaq for listing ceremony.
- 19 February 2024 – Respondent filed ES2 Statement of Assets in U.K. High Court proceedings, swearing that Oxus shares were “worthless.”
- 26 February 2024: Ms. Campbell KC, the respondent’s counsel, affirmed in closing submissions: “Oxus, Karim Zahmoul was assisting on an advisory basis. He has some shares; they are of no value.”

Contempt Proceedings

- 6 March 2024 – Evidence of perjury first disclosed.
- 7 March 2024 – Appellant filed Form D-11 setting forth the perjury and provided further corroborating SEC filings (p.57).
- 9 April 2024 – Confidential email with supporting documentation filed with High Court.
- 27 November 2024 – Appellant issued Form N600 contempt application alleging perjury concerning Oxus shareholdings (p.110).

High Court Decision

- 8 May 2025 – Mr Justice MacDonald dismissed the contempt application outright as “totally without merit,” without addressing SEC filings, Prospectus, or other documentary evidence.

- Participation measures previously granted to the Appellant under FPR Part 3A were revoked without notice post-trial (February 2024).

Appeal Proceedings

- September 2025 – Appellant files N161 seeking permission to appeal against dismissal of contempt application.
- Grounds include errors of law, failure to consider evidence, procedural unfairness, discrimination, apparent bias, errors of facts, and mischaracterisation of public interest.

Court Order
High Court BV20D01752
8th May 2025



No. BV20D01752

**IN THE FAMILY COURT
SITTING AT THE ROYAL COURTS OF JUSTICE**

THE MATRIMONIAL CAUSES ACT 1973

THE MARRIAGE OF NADIA ZAHMOUL AND KARIM NOUREDDINE ZAHMOUL

ORDER MADE BY MR JUSTICE MACDONALD ON 8 MAY 2025.

WARNING: IF YOU DO NOT COMPLY WITH THIS ORDER, YOU MAY BE HELD TO BE IN CONTEMPT OF COURT AND YOU MAY BE SENT TO PRISON, BE FINED, OR HAVE YOUR ASSETS SEIZED.

The parties

The applicant is **NADIA ZAHMOUL**

The respondent is **KARIM NOUREDDINE ZAHMOUL**

RECITALS

UPON the court having heard the respondent, who appeared in person. The applicant did not attend the hearing.

AND UPON the applicant applying in Form N244 for an adjournment of the hearing at 12.41am on 8 May 2025, the morning of the hearing.

AND UPON consideration of the documents lodged by the respondent, including a bundle, and the various documents provided by applicant and sent via email to the court.

AND UPON consideration of the following applications made by the applicant:

- a. Contempt Application in Form N600, dated 27 November 2024;
- b. D50K, dated 6 February 2025, to enforce an Order dated 5 July 2023 for Maintenance Pending Suit;

- c. D11, dated 13 February 2025, to set-aside the Final Order of 24 May 2024, amended under the slip rule on 3 June 2024; and
- d. C2 for Maintenance Pending Suit, dated 18 February 2025.

AND UPON consideration of the following applications made by the respondent:

- a. D11, dated 18 March 2025, to rely on statements in support of executing various transfer documents relevant to the implementation of the Final Order of 24 May 2024, amended under the slip rule on 3 June 2024; and
- b. Application adjourned by His Honour Judge Ashby on 14 February 2025 for the court to sign the relevant documents to effect the Final Order of 24 May 2024, amended under the slip rule on 3 June 2024.

AND UPON the court handing down an *ex-tempore* judgment in court on 8 May 2025 and directing that a transcript be provided to both parties at public expense. The reasons for the court's decision reflected in the order below are set out in the transcript of the *ex-tempore* judgment.

AND UPON the Court reiterating for the for the avoidance of doubt that it was ordered at paragraph 32 of the Final Order of 24 May 2024, amended under the slip rule on the 3 June 2024, that the applicant shall transfer the respondent by 4pm on 6 May 2024 the pawn ticket associated with the respondent's watches and jewellery and cooperate with the respondent in ensuring he is able to reclaim the same and the following list of the respondent's watches and jewellery at paragraph 11 of the Final Order of 24 May 2024, amended under the slip rule on the 3 June 2024, remain the respondent's sole property:

- a. Patek Philippe Aquanaut 5167 A (2012) watch
- b. Rolex Explorer II (1998) watch
- c. Rolex GMT II New Model with Ceramic Bezel (2012) watch
- d. Rolex Sea Dweller DeepSea (2012) watch
- e. Rolex Daytona (2005) watch
- f. Hublot St Barths Special Edition (2006) watch
- g. Bulgari Chronograph (1996) watch
- h. Ebel Wave (1984) watch
- i. Piaget White Gold (1961) watch

- j. Breitling 1997 Breitling Chrono Cockpit chronograph
- k. The respondent's mother's rose gold southern cross pendant

IT IS ORDERED THAT: -

Adjournment Application

1. The application made by the applicant on 8 May 2025 in Form N244 to adjourn the hearing is dismissed.

Set Aside Application

2. The application made by the applicant on 13 February 2025 to set-aside the Final Order of 24 May 2024, amended under the slip-rule on 3 June 2024, is dismissed as being totally without merit.

Transfer Documents

3. The court shall, pursuant to section 39 of the Senior Courts Act 1981 and paragraph 27(g) of the Final Order of 24 May 2024, amended under the slip-rule on 3 June 2024, sign and execute the relevant documents to give effect to the Final Order of 24 May 2024, amended under the slip-rule on 3 June 2024.
4. The respondent's application to rely on statements in support of his application for the relevant transfer documents to be signed and executed is granted.

Maintenance Pending Suit

5. The applicant's application to enforce an Order for Maintenance Pending Suit dated 5 July 2023 is dismissed as being totally without merit.
6. The applicant's further application for Maintenance Pending Suit is dismissed as being totally without merit.

Transcripts

7. A full transcript of the hearing of 8 May 2025 shall be provided to both parties at the expense of HMCTS, the provision of the transcript is necessary and proportionate in the circumstances.

Costs

8. The applicant shall pay the respondent's costs of and relating to the applications dealt with in this order on the indemnity basis, to be assessed if not agreed.

Date: 8 May 2025



mbv

Please address all communications for the Court to the Principal Registry of the Family Division, Family Proceedings Department, First Avenue House, 42-49 High Holborn, London WC1V 6NP quoting the number in the top right hand corner of this form. The Court Office is open between 10.00 a.m. and 4.30 p.m. on Mondays to Fridays.

Transcript of Judgment

High Court BV20D01752

8th May 2025

IN THE FAMILY COURT
SITTING AT THE ROYAL COURTS OF JUSTICE

Case No. BV20D01752

Courtroom No. 39

Royal Courts of Justice
Strand
London
WC2A 2LL

Thursday, 8th May 2025

Before:
THE HONOURABLE MR JUSTICE MACDONALD

B E T W E E N:

ZAHMOUL

and

ZAHMOUL

MR ZAHMOUL appeared in person
MRS ZAHMOUL was not in attendance

JUDGMENT
(Approved)

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MR JUSTICE MACDONALD:**INTRODUCTION**

1. I deliver this *ex tempore* judgment in a matter that once again comes before the court in what are now very long-running financial remedy proceedings, between Karim Zahmoul who I shall refer to for the sake of convenience as “the husband”, and Nadia Zahmoul, who I will refer to as “the wife”. The final decision in this matter was made as long ago as 24 May 2024, and the matter has now been running on for some 12 months beyond the final hearing, without the order I made on that date, as amended under the slip-rule on 3 June 2024, having been implemented.
2. The wife has not complied with the final order dated 24 May 2024, as amended under the Slip Rule on 3 June 2024. In particular, her non-compliance has included, but is not limited to, the implementation of property transfers required to allow the parties to benefit from the assets that were awarded to them by the court. Indeed, as I shall come to, the wife has actively frustrated the implementation of the order across a period of over a year.
3. The final order, as amended, provides, as is clear from the net effect schedule contained in the final judgment, that the wife is to receive some £5.4M (£6.2M including pension) and the husband to receive some £4.8M (£5.7M including pension). The wife received, therefore, the greater share (52%) after the deduction of mortgages, costs and tax. The court structured its order such that the tax would be borne equally by the parties, if they could not agree tax mitigating measures.
4. Overall, were the wife now to cooperate with the implementation of the court’s final order as amended, she would be awarded £6.2 million of matrimonial assets and would have more than sufficient funds for her housing provision, living expenses and subsistence.
5. The final order also contained provisions providing that the applicant’s claims for secured periodical payments orders, periodical payments orders, lump sum orders, property adjustment orders, pension sharing orders and pension attachment orders, should be dismissed and that she would not be entitled to make any further application in relation to the marriage for an order under the Matrimonial Causes Act 1973, s.23(1)(a) or (b), and would not be entitled on the respondent’s death to apply for an order under the Inheritance (Provision for Family and Dependents) Act 1975 s.2.

BACKGROUND

6. Following the handing down of my judgment, the wife’s initial application for permission to appeal was made to this court and denied by me on 29 April 2024. The wife then applied to the Court of Appeal for permission to appeal. On 5 December 2024, the Court of Appeal stayed the parts of my order relating to the transfer of real property, pending the determination of the application for permission.
7. As is often the case with the wife’s approach to litigation, she had not served the husband with notice of her application for permission to appeal or her grounds for appeal. However, subsequently, the permission application documents were brought to the attention of the husband. Alexis Campbell KC, who represented the husband at the final hearing, prepared the document for submission to the Court of Appeal responding to the application for permission.

8. On 23 December 2024, the Court of Appeal dismissed the wife's application for permission to appeal. All grounds were dismissed by the Court of Appeal although, as I will come to, during the course of dismissing the application for permission, Moylan LJ made a number of observations in relation to the judgment concerning this court's treatment of the issue of tax and suggested that the wife *may* have a remedy pursuant to Section 31F(6) of the Matrimonial and Family Proceedings Act 1984, and rule 9.9A(2) of the Family Procedure Rules 2010. I shall return to these matters later.
9. The wife is now said by the husband to have applied to the Court of Appeal to reopen her appeal pursuant to CPR Rule 52.30, by an application dated 7 February 2025, although it is not yet clear, at least to this court, where that application stands in the Court of Appeal process.
10. A hearing was listed in the Central Family Court before his Honour Judge Ashby, on 14 February 2025, to consider an application by the husband in accordance with paragraph 27(g) of the final order, as amended, for the relevant transfer of documents dealing with real property, to be signed by a judge so as to give effect to the final order. That application was adjourned and is one of the applications that is now before this court today.
11. In dismissing the wife's application for permission to appeal, Moylan LJ observed as follows, with respect to the question of tax.

“The only other matter I consider separately is the wife's contention that the judge failed to take into account the US tax consequences of the division of the US real estate assets. I can, indeed, find no express reference to this tax in the judgment, although in paragraph 54 the judge refers to his approach to “to the tax consequences of the respective positions advanced by the wife and the husband” and in paragraph 89 he refers to the “tax liability assigned to” each of the properties. There are also references in paragraphs 109 and 110 to tax. Further, it does not appear to be an issue that the wife raised with the judge when asking him for permission to appeal. In addition, in his Response which I directed the husband to provide, it is contended that the judge's award did take into account the issue of tax on the transfers of the various properties. The Court of Appeal is not the right forum in which to determine this factual dispute. If the wife is right that the judge, by mistake, omitted to take into account the incidence of tax on the property transfers effected by the order, as she asserts (and I make it clear that I give *no* indication as to the merits of her contention), the remedy available to her is to apply to the judge (pursuant to section 31F(6) of the Matrimonial and Family Proceedings Act 1984, and Rule 9.9A(2) of the Family Procedure Rules 2010). Accordingly, this issue is not one which justifies the grant of permission to appeal”.

12. Pursuant to these observations made by Moylan LJ in his order dismissing the wife's application for permission to appeal, the wife applied on 13 February 2025 to set aside the final order of 24 May 2024. The wife has, over the course of the past number of months, also issued a number of other applications, again often without bringing those applications properly to the attention and notice of the husband. In November 2024, the wife issued an application to commit the husband. On 6 February 2025, the wife made an application to enforce maintenance payments under an order made in July 2023. On 18 February 2025, the wife issued an application for maintenance pending pursuit. On 4 April 2025, the wife applied

for what she termed a “hardship order” without notice to the husband. I dismissed that application on 9 April 2025 as being totally without merit.

13. Whilst the Court of Appeal suggested the wife may have grounds for an application to set aside on the basis set out in the passage quoted above, the wife’s set aside application is primarily based on her appeal grounds, all of which were dismissed by the Court of Appeal, although her application to set aside does deal tangentially with the tax point.
14. Pursuant to the wife’s D11, dated 12 February 2025, she seeks to a set aside on the basis of “wrong tax computations, wrong valuations and impact of the LLC fraud & perjuries of IRS tax returns from 2020 to 2024”. Specifically, the wife asserts that:
 - (a) The husband committed fraud by withholding a bank account from the Metropolitan Bank of New York, which received joint rental revenue from the New York properties. The wife says this is a matrimonial asset which was not included in the order;
 - (b) The husband has committed perjuries of LLC IRS tax returns in 2020, 2024, and perjury of LLC annual reports filed with the Wyoming Secretary of State;
 - (c) The husband has committed perjuries regarding the Oxus shares;
 - (d) Real property was undervalued;
 - (e) The final order, as amended, is unilateral and drafted by the husband and his counsel, with the drafts not shared with the wife;
 - (f) The court did not properly consider the tax consequences on the wife of the division.
15. In respect of the question of tax, the position that was before the court at the final hearing in 2024 is accurately set out in the note provided to the Court of Appeal by Ms Campbell KC, dated 11 December 2024. Ms Campbell KC’s note makes the following points, which describe the position as to tax that was before the court, when it made its final decision:
 - (a) The wife filed her initial tax evidence in 2021;
 - (b) In response, the husband provided detailed evidence of tax payable on transfer of real estate on 27 July 2022, 9 November 2022, and 12 November 2022;
 - (c) Both parties’ tax advice was included in the trial bundle before the court;
 - (d) The husband’s advice specifically dealt with the parties’ respective tax status and means of avoiding, deferring and mitigating tax;
 - (e) The wife was ordered to consider the husband’s advice and agreed or define the tax issues;

- (f) The wife repeatedly ignored multiple orders by this court, that she instruct her tax advisers to liaise with the husband's tax advisers, to endeavour to agree or narrow the tax issues;
 - (g) In direct contradiction to the court's directions, in March 2023 the wife specifically instructed her tax advisors *not* to engage with her husband or his tax advisers.
 - (h) The court made orders at six separate directions hearings, to give the wife an opportunity to identify issues and adduce single joint expert evidence on tax. The wife failed to comply with any of the directions made.
16. I pause to note that, following the final hearing and the delivery of judgment, I delivered a separate judgment dealing with the question of costs, which sets out in detail what the court was satisfied was the wife's serial disobedience of case management orders, the cost consequences of which are set out in that judgment:
- (a) The wife only attempted to adduce tax evidence obtained on a unilateral basis at trial, as contained within her Section 25 statement, which was served out of time on the second day of the trial. As detailed in the cost judgment, this was in breach of the pre-trial review directions. The court refused to admit this evidence;
 - (b) Tax liabilities, including US tax liabilities, were included in the ES2 filed by the husband at the final hearing. The wife, through her legal team, did not engage in the drafting of the ES2 and did not file any figures to submit to this court. As a result of the wife's litigation conduct, this court accordingly only had the figures in respect of tax provided by the husband on the ES2. In light of the wife's position, the court was only able to proceed on that basis;
 - (c) All real property is currently held in the joint names of the parties. The US tax advice produced by the husband, provided schemes for the parties to avoid, defer and mitigate tax by transfers between them. Contrary to the wife's assertions, tax was at the centre of her husband's case and was fully reflected in the ES2 and the net effect schedule adopted by the court, as is clear from the final outcome in the judgment;
 - (d) The order, provided for the transfer of the real property between the parties to achieve a broadly equal share of marital assets on a net basis, taking into account the incidence of tax. That approach enabled the parties to work together to mitigate most, if not all, of the US tax included in the net effect schedule and this was the intention of the court;
 - (e) If the parties were unable to agree transfers and reach agreement to mitigate the US tax, the order provides for a default position, namely that the properties are to be sold. In the event of a sale, as the properties are jointly owned, the expert evidence before the court at the final hearing was that each party would pay 50% of the US tax, calculated on the basis of the ES2 and the net effect schedule. The parties would suffer US tax on an equal footing, irrespective of their tax status. This ensured that the tax burden, by default, would be shared equally.

17. In those circumstances, the wife's assertion in her grounds of appeal that what she termed "the husband's draft order" left her alone as the only party with the tax burden, was simply incorrect.
18. The wife, for this hearing, has produced no new evidence regarding the tax position and as I have noted prior to the final determination before this court, had failed to comply with multiple case management orders requiring her to deal with the issue of tax.
19. Within the context that I have summarised, the husband also now has a series of applications before the court.
20. First, an application dated 18 March 2025, by which he seeks to rely on the three statements of evidence. Those statements relate to the execution of the documents required to transfer properties in New York and Wyoming. Second, an application to have the property transfer documents signed by the court, pursuant to paragraph 27(g) of the final order, as amended, in the absence of the wife willing to cooperate. Third, an application dated 26 March 2025 for the pronouncement of Decree Absolute.
21. After the close of business yesterday evening, the wife emailed my clerk seeking an adjournment of today's hearing on medical grounds. She has not attended the hearing this morning. At 12.41am this morning, the wife emailed the court with an application to adjourn, with appended a letter from a treating clinician. The grounds for the application to adjourn comprise what the wife contends was a severe mental health crisis in February 2025, the effects of which she says she is still suffering from, to the extent that she is not able to attend this hearing on the basis that she has "a severe mental health emergency". The letter that the wife provides in support of her application to adjourn today's hearing is from her treating consultant psychiatrist. In the letter, the doctor states that the wife is suffering from a:

"...mental health crisis. [The wife] has been experiencing significant levels of agitation and poor sleep, which have been exacerbated by the stress of her current court case. Specifically, she reports great difficulty processing certain aspects of the proceedings, particularly regarding the evidence presented to her that she perceives as untrue."

22. The letter from the wife's treating psychiatrist is dated 26 March 2025 and there is no more up-to-date information, confirming the matters asserted by the wife in her application to adjourn. In particular, there is no evidence that the wife is at present having a "severe mental health emergency" preventing her from attending the court today. Furthermore, at no point does the treating psychiatrist suggest in the letter dated 26 March 2025, that the wife is not fit to attend the hearing, but rather states as follows:

"Given these circumstances, we would like to enquire if there is an advocacy service or any other appropriate support that can be made available to assist her in hearing and giving evidence at the hearing. Such support could ensure that she is able to fully engage with the proceedings in a manner that is fair and conducive to her wellbeing"

23. In determining the issues that now fall before the court, I have had the assistance of submissions from the husband in person. The husband has also filed a unilateral bundle for this hearing, containing documents that the court requires for its purposes.

RELEVANT LAW

24. As far as the law is concerned, there are a number of legal principles that the court has to consider in dealing with the applications that are now before it, starting with the question of when it is appropriate to proceed in a party's absence.
25. The law governing proceeding in the absence of a party is usefully summarised by Cobb J in the case of *Sanchez v Oboz* [2015] EWHC 235 (Fam) at [5]. Whilst that case relates to committal proceedings, I am satisfied that the factors set out by Cobb J are instructive in considering an application to adjourn, where the refusal of that application will result in the court proceeding in the absence of one party. The factors set out by Cobb J for consideration are as follows:
- (a) Whether the respondent to the application has been served with the relevant documents, including the notice of the hearing;
 - (b) Whether the respondent has had sufficient notice to enable her to prepare for the hearing;
 - (c) Whether any reason has been advanced for her non-appearance;
 - (d) Whether by reference to the nature and circumstances of the respondent's behaviour, she has waived the right to be present;
 - (e) Whether an adjournment would be likely to secure the attendance of the respondent, or at least facilitate their representation;
 - (f) The extent of the disadvantage to the respondent in not being able to present her account of events;
 - (g) Whether undue prejudice would be caused by the applicant by any delay;
 - (h) Whether undue prejudice would be caused to the forensic process if the application were to proceed in the absence of the respondent; and
 - (i) The terms of the overriding objective (FPR 2010 r 1.1), including the obligation on the court to deal with the case "justly", including doing so "expeditiously and fairly" (r.1.1(2)), and taking "any...step or make any...order for the purposes of...furthering the overriding objective" (r.4.1(3)(o)).
26. With respect to the wife's application to set aside, the wife pursues her application having regard to the observations made by the Court of Appeal when refusing permission. As set out by the Court of Appeal, that application is governed by s.31F(6) of the Matrimonial and Family Proceedings Act 1984, which provides as follows with respect to proceedings and decisions:

“(6) The family court has power to vary, suspend, rescind or revive any order made by it, including –

- (a) power to rescind an order and re-list the application on which it was made,
- (b) power to replace an order which for any reason appears to be invalid by another which the court has power to make, and
- (c) power to vary an order with effect from when it was originally made.”

27. Rule 9.9A(2) of the Family Procedure Rules 2010 further provides, in respect of an application to set aside a financial remedy order:

“(2) A party may apply under this rule to set aside a financial remedy order where no error of the court is alleged.”

28. The grounds on which Section 31F(6) of the Matrimonial and Family Proceedings Act 1984 may be used, were considered by Mostyn J in *CB v EB* [2020] EWFC 72, in which he observed at [55]:

“...the set aside power in section 31F(6) was not a brand new break with the past. It did not usher in a brave new world. It was no more than a banal replication of a power vested in the divorce county courts from the moment of their creation in 1968. That power had been confined by the law to the traditional grounds for decades.”

29. The traditional grounds are those set out in *L v L* [2006] EWHC 956 (Fam) at [34], where Munby J (as he then was), summarised the situations in which the set aside may occur and trigger such a review, namely:

“(i) if there has been fraud or mistake: *de Lasala v de Lasala*;

(ii) if there has been material non-disclosure: *Livesey (formerly Jenkins) v Jenkins*;

(iii) if there has been a new event since the making of the order which invalidates the basis, or fundamental assumption, upon which the order was made: *Barder v Caluori* [1088] AC 20, [1087] 2 FLR 480;

(iv) if and insofar as the order contains undertakings: *Mid Suffolk District Council v Clarke* [2006] EWCA Civ 71, [2006] All ER (D) 190 (Feb);

(v) if the terms of the order remain executory: *Thwaite v Thwaite* [1082] Fam 1, (1981) 2 FLR 280 and *Potter v Potter* [1990] 2 FLR 27.”

30. Practice Direction 9A at paragraph 13.5 states:

“An application to set aside a financial remedy order should only be made where no error of the court is alleged. If an error of the court is alleged, an application for permission to appeal under Part 30 should be considered. The grounds on which a financial remedy order may be set aside are and will remain a matter for decisions by judges. The grounds include (i) fraud; (ii) material non-disclosure; (iii) certain limited types of mistake; (iv) a subsequent event, unforeseen and unforeseeable at

the time the order was made, which invalidates the basis on which the order was made.”

31. Finally, in relation to the law as far as the husband’s application to sign documents is concerned, Section 39 of the Senior Courts Act 1981 provides as follows with respect to the power of the court to execute an instrument:

“39. Execution of instrument by person nominated by the High Court.

“(1) Where the High Court or family court has given or made a judgement or order directing a person to execute any conveyance, contract or other document, or to endorse any negotiable instrument, then, if that person –

- (a) neglects or refused to comply with the judgment or order; or
- (b) cannot after reasonable enquiry be found,

that court may, on such terms and conditions, if any, as may be just, order that the conveyance, contract or other document shall be executed, or that the negotiable instrument shall be indorsed, by such a person as the court may nominate for that purpose.

(2) A conveyance, contract, document or instrument executed or indorsed in pursuance of an order under this section shall operate, and be for all purposes available, as if it had been executed or indorsed by the person originally directed to execute or indorse it.”

DISCUSSION

Proceeding in the Wife’s Absence

32. Dealing first with the question of whether the court should proceed in the absence of the wife, in circumstances where she makes an application to adjourn this matter. I am satisfied that the application to adjourn should be refused. The consequences of that application are that the court will proceed today in the absence of the wife at this hearing, to determine both her application to set aside the order of 24 May 2024, as amended, and the husband’s application for the court to sign the documents required to implement that order.
33. I deal with that application for an adjournment by the wife, by reference to the factors set out in *Sanchez v Oboz* (supra), in the circumstances where I am satisfied that those factors cover the issues that the court is required to address when coming to a reasoned determination of the wife’s *very* late application to adjourn this hearing and where disallowing the adjournment will mean the court proceeds in her absence.
34. Dealing first with whether the wife has been served with the relevant documents, including the notice of hearing. I am satisfied that the notice of hearing and the husband’s applications have been served on the wife via the email address she has used throughout the various applications brought before the Family Court, in accordance with Family Procedure Rules 2010 at rules 6.7A and 6.13. The wife has not been willing to provide any other postal address for service and in those circumstances, it was appropriate for her to be served with the notice of hearing and the husband’s applications by that means. Her own application, of course, was filed and issued by her with this court.

35. With respect to whether the wife has had sufficient notice for her to enable to prepare for the hearing, I am satisfied that the wife has had ample notice to prepare for the hearing, not least because this hearing has already been adjourned once due to my being indisposed, due to matters beyond my control. The wife was well aware of that hearing and the matters that would be dealt with, which is evidenced by, amongst other things, the fact that she requested special measures be put in place to allow her attendance.
36. As to whether there has been any reasons advanced by the wife for her non-attendance, the wife has advanced reasons, as I have already set out, by providing to the court and the husband an application at around this morning. However, whilst the wife contends those reasons constitute a medical emergency, the evidence on which she relies relates to alleged matters that occurred in February and March 2025, with no evidence to support the contention that she is in difficulty in attending this hearing today, by reason of those matters.
37. Further, in addition to the letter from her treating clinician, dated 26 March 2025, it is clear from the letter supporting the application, that the treating clinician does not consider, or at least did not consider at that date, that the wife was not able to attend court, just that she required support in order to do so. As I have noted ahead of this hearing, the wife had required special measures and the court is fully able to implement such special measures pursuant to Part 3A of the Family Procedure Rules 2010, to ensure that she is on an equal footing.
38. Since the date of the letter from her treating psychiatrist, and the wife asserting a mental health crisis in February and March 2025, it is also of note that the wife has been in regular correspondence with the court regarding this litigation and has issued further applications in respect of the litigation. Further, it is said by the husband that the wife is also currently actively engaged in litigation that is ongoing in the United States. In those circumstances, I am not able to place significant weight upon the reasons advanced by the wife for her non-appearance and her application to adjourn.
39. With respect to the question of whether the wife has waived her right to be present, as will be clear from the matters I have already summarised, the wife's very late application to adjourn this hearing stands at the end of a very long line of what I am satisfied is deliberately obstructive behaviour, designed to hinder the implementation of the final order, as amended, made as long ago as May 2024 by this court. Within the context of the wife's longstanding conduct, I am satisfied that it is reasonable to conclude that the wife intended her non-attendance today, as indicated by a very late application to adjourn, to further frustrate attempts to implement the final order, as amended, of the court. This conclusion is reinforced by the fact that legitimate avenues for disputing the final order have been exhausted by the wife, she having been refused permission to appeal the order and having made an application to set aside that, for reasons I shall come to, was almost bound to fail in the absence of any fresh evidence.
40. As to whether an adjournment would be likely to secure the attendance of the wife, or at least facilitate her representation, in the context of the long-running efforts of the wife to frustrate the implementation of the order made by the court, I have no confidence that an adjournment would be likely to secure the attendance of the wife, or at least facilitate her representation.
41. With respect to the extent of the disadvantage to the wife in not being able to present her account of events it is, I acknowledge, disadvantageous to the wife not to be here to present

her case to the court. That said, the position of the wife is plain both from the papers in respect of her application to set aside and her approach to the implementation of the property orders that are the subject of the husband's applications. In those circumstances, I am not satisfied that proceeding in her absence will result in any significant disadvantage to the presentation of her case.

42. With respect to whether undue prejudice will be caused to the husband by any delay in an adjournment, I am satisfied that the husband will be caused manifest prejudice by any further delay in the resolution of these proceedings, through the implementation of the final order, as amended, made by the court, in respect of which order the Court of Appeal, dated 23 December 2024, refused permission to appeal. This court divided the parties' matrimonial finances a year ago. Since that time, the husband has not been able to access the vast majority of the assets awarded to him by reason of the wife's conduct. By way of example, a further complication arising from the failure of the wife to cooperate with the implementation of the final order of the court, is that the mortgages currently secured against the properties in Wyoming have been required to be replaced, in order to avert the prospect of a forced sale. Further, this is the second time that the husband has been required to take an international flight into this jurisdiction in order to attend a hearing. It would not be appropriate in those circumstances to further adjourn, for a third time, the matters that are now before the court.
43. With respect to whether undue prejudice would be caused to the forensic process if the applications were to proceed in the absence of the wife, given the matters I have set out, I am satisfied that there is no undue prejudice that would be caused to that process. The wife has provided copious documents to the court. Whilst often verbose and rambling, the wife's arguments are tolerably clear from those documents, both her application to set aside and the husband's application for the documents to be signed. Her position would not be materially improved by adjourning this matter to permit her attendance.
44. Finally, I must have regard to the terms of the overriding objective in the Family Procedure Rules 2010 at Part 1, to deal with cases justly, expeditiously and fairly. A year after the court made its final order, and in the context of the serial frustration by the wife during the period of implementation of the order, it is in my judgment entirely inconsistent with the terms of the overriding objective, to grant a further adjournment to the wife. In the circumstances, I refuse the wife's application for an adjournment and I am satisfied that it is appropriate to deal with the applications now before the court.

Wife's Application to Set Aside

45. Having refused the wife's application for an adjournment and determined that it is appropriate to proceed in her absence, I now deal with the wife's application to set aside the final order made on 24 May 2024, as amended on 3 June 2024.
46. As I have referred to, the wife applies to set aside the final order, as amended, on a number of grounds:
 - (a) The husband committed fraud by withholding a bank account from the Metropolitan Bank of New York, which received joint rental revenue from the New York properties. The wife says this is a matrimonial asset which was not included in the order;

- (b) The husband has committed perjuries of LLC IRS tax returns in 2020, 2024, and perjury of LLC annual reports filed with the Wyoming Secretary of State;
 - (c) The husband has committed perjuries regarding the Oxus shares;
 - (d) Real property was undervalued;
 - (e) The final order, as amended, is unilateral and drafted by the husband and his counsel, with the drafts not shared with the wife;
 - (f) The court did not properly consider the tax consequences on the wife of the division.
47. The wife has already, via her appeal, explored many of these contentions in her effort to demonstrate the court made an error. It was only following the rejection of those arguments that she contended there were grounds to set aside the order, that contention arriving nearly nine months after the final order, as amended, was made by this court. It is apparent from the documents that she relies on in support of her application that, to a significant extent, the set aside application she now pursues is simply a reformulation of her grounds of appeal to the Court of Appeal, contending that the decision of this court was wrong. As I have noted, the Court of Appeal rejected that contention and refused her permission to appeal application
48. The wife makes a number of sweeping accusations of fraud against the husband. At times, via email, to a large number of judges, Members of Parliament and other public figures, = the wife has made allegations of corruption and fraud against a much wider range of individuals, including myself and counsel involved with the final hearing. The wife does not articulate in clear terms, at any point, what the fraud she alleges is comprised of, or the evidence she relies on to support those allegations of fraud. The wife has likewise provided no further reliable evidence in relation to the allegation that the husband committed perjury. The court has responded on a number of occasions in relation to the wife's allegations regarding the Oxus shares and again reiterates, as is plain from the final judgment of the court, that that asset was dealt with on the basis that those shares did *not* constitute matrimonial property.
49. There is likewise no evidence to demonstrate that the real property was undervalued at the time the court made its final order. To the best of my recollection, there was no such submission at the final hearing. Indeed, the wife refused to cooperate with the joint instruction of valuers in relation to those properties and failed to propose a valuation of her own at the final hearing, leaving the court, once again, to rely on the ES2 provided by the husband.
50. There is, I am satisfied, no evidence that the final order, as amended, that the court made was unilaterally drafted by the husband and his counsel and that the drafts were not shared with the wife. In any event, the court is responsible for its final orders, including checking that those orders reflect accurately the decision the court has made. I am satisfied that the Court was given a proper opportunity to, and did, check that the final order, approved in May 2024 and amended in June 2024 last year, reflected the decision the court had made as set out in the final judgment.
51. With respect to tax, in the context of the wife having failed repeatedly to comply with orders of the court to provide tax information ahead of the final hearing, it remains the case that the wife has brought no fresh tax evidence in support of her application to set aside, nor has she

set out what new or different evidence she suggests that court would require at a hearing, or set out in what manner the final order would be adjusted on her case in relation to tax.

52. As far as tax is concerned, for the reasons I have summarised, and as are summarised in Ms Campbell KC's reply to the Court of Appeal, the position in relation to tax was as clear at the final hearing as it could be in the context of the wife's persistent disregard for the case management orders made to try and ensure tax information was available. The court accordingly considered the tax issues and consequences on the basis of such evidence as it had and that evidence was fully factored into the decision of the court. It cannot now be suggested by the wife that the court proceeded on a mistaken basis in relation to the tax, in circumstances where she failed to take advantage of all of the opportunities provided to her in relation to the provision of tax information regarding her case.
53. In those circumstances that I have outlined, I am satisfied that the wife's application to set aside should be dismissed. As identified by the Court of Appeal, at the heart of the application to set aside is the contention that the court was mistaken or the victim of non-disclosure in relation to the tax consequences for the wife of the division of the assets that it arrived at. That argument is simply not sustainable. As I have said, the court dealt with, as far as possible, that issue in the context of the wife having serially failed to comply with all case management orders, designed to ensure the court had before it the tax evidence on which she sought to rely.
54. The wife's claim that the court was the subject of fraud, mistake or non-disclosure with respect to tax obligations, or the tax implications of the property transfers, is hopeless and plainly forms no proper basis for a set aside application. Notwithstanding the wife's serial failure to comply with case management orders in respect of tax information, the court had before it evidence as to the tax position and factored that in to the structure of the final distribution. Within this context, I am satisfied that none of the limited grounds under which a final order may be set aside, namely fraud or mistake, material non-disclosure, a *Barder* event or executory terms not yet carried out, as set out in *L v L* (supra) are met in this case and the wife's application to set aside must be dismissed. The strong public policy of respecting the finality of sealed orders should, in particular, carry weight in a case in circumstances where such criticisms that the wife makes, in respect of the information before the court at the final hearing were *entirely* of her own making.

Husband's Application for Documents to be Signed

55. Turning next to the husband's application for various documents to be signed to effect the property transfers, as provided for in the final order, as amended. This court anticipated at the final hearing that the wife may not cooperate in implementing the final order, as amended. In the circumstances, the court approved a specific provision within that final order, as amended, at paragraph 27(g) which provided as follows:

“In default of prompt cooperation as directed pursuant to paragraph 27(d)-(f) above, documents which require the other party's signature to give effect to paragraphs 21-24 above, the non-defaulting party may apply on paper to the Family Court sitting at the Financial Remedy Court in the Central Family Court for a District Judge to sign the relevant document pursuant to section 39 of the Senior Courts Act 1981, together with a brief explanation of the default, a copy of this order and the judgment of Mr Justice MacDonald dated 18 April 2024.”

56. The husband now applies for the court to exercise the powers stipulated paragraph 27(g) of the final order, as amended, and available to the court pursuant to s.39 of the Senior Courts Act 1981, to authorise the documents to be signed on the wife's behalf.
57. As I have noted, the application has been served on the wife, via the email address she has used throughout the various applications to the Family Court. For the reasons I have given, I am satisfied it is appropriate to proceed with the husband's application in the absence of the wife. I grant the husband's application for permission to file further statements of evidence which are intended to assist the court in understanding the nature of and need for the documents that the court is invited to sign *in lieu* of the wife's cooperation.
58. The statement of the husband sets out the efforts already made to put the property transfers into effect, including the proposals he has sought to make to the wife to progress matters and details the further steps that the husband has taken and been advised to take, in order to effect those transfers. I accept that evidence. The husband has written to the wife many times seeking her cooperation in implementing the final order of 24 May 2024, as amended.
59. To date, the wife has not been willing to cooperate with any of the matters that require her input. This extends to the orders that provide for payments or property transfers to the wife. Her behaviour in that regard has been almost entirely self-defeating in the circumstances where the wife has repeatedly communicated with the court, and repeatedly issued unmeritorious applications, alleging she is impecunious, unable to afford food and accommodation. To repeat, the value of the assets awarded to the wife in the final order of May 2024, as amended, amounts to some £5.3M (£6.2M including pension). Notwithstanding her assertions of impecuniosity, the wife continues, for reasons which are opaque to the court, to fail to cooperate with the implementation of the final order, as amended, that would permit her to realise the assets awarded to her by the court.
60. As the properties to be transferred are located in the State of New York and the State of Wyoming, the documents that require execution in order to effect the transfers differ from those used in this jurisdiction. The second statement relied on by the husband provides evidence of the requirements in New York for the documents to be signed by both parties to effect a transfer and exhibited to the statement, are those documents which require signatures to effect the transfers directed by the court.
61. Finally, the third statement relied on by the husband provides evidence of the situation regarding restructuring the financing secured against the Wyoming properties, an issue that will need to be addressed to effect the court directed transfers. As explained in the third statement, a further complication arising from the failure of the wife to cooperate with the implementation of the final order, as amended, is that the mortgages currently secured against those properties require to be rearranged or replaced. The third statement deals with the prospect of refinancing with the current mortgagee and alternative lenders.
62. In context of the matters that I have set out in this judgment, I am wholly satisfied that the wife has actively and deliberately sought to frustrate the implementation of the final order, as amended, made by this court in May 2024. Over the twelve months since the order was made, the wife has been actively engaged in a number of endeavours, all intended to resist the implementation of an order properly made, but with which she does not agree. The wife has not signed any document necessary to implement the order. She has not complied with any

of the transfer mechanisms set out in that order, despite the husband's repeated written invitations and offers to work with any professional of her choosing. There is, as I have noted, evidence before this court that the wife is now seeking to frustrate the process via litigation in the jurisdiction of the United States.

63. In the light of the evidence before the court and the continued refusal of the wife to engage in the implementation of the order following the dismissal of her application for permission to appeal to the Court of Appeal, and in circumstances where I am satisfied it is not appropriate to set aside my order of May 2024, I am satisfied that without the court using its powers under s.39 of the Senior Courts Act 1981, the wife will continue to refuse to implement the order of 24 May 2024, as amended on 3 June 2024. In those circumstances, I am satisfied it is appropriate for the court to sign the various documents in place of the wife, to allow the implementation of the court's order to proceed.

Wife's Ancillary Applications

64. Finally, as I have noted, the wife has made a number of other applications before the court over the past number of months. Namely, a contempt application made against the husband in November 2024, an application made to enforce the order made in July 2023 for maintenance pending suit and a further application for maintenance pending pursuit made on 18 February 2025. As I have noted, the court has also over the past number of months refused, as being totally without merit, a number of other applications that have been issued by the wife.
65. There is no proper basis on which to advance a contempt application of the type issued by the wife in November 2024 before this court. There is no evidential basis for such an application. More fundamentally, however, it is an application that has been made in the Court of Appeal proceedings, number CA-2024-001342. In the circumstances, this court has no power to deal with it.
66. I am further satisfied that the other applications of the wife each must be dismissed as being totally without merit. The application to enforce the July 2023 maintenance pending suit order, issued on 6 February 2025, seeks to enforce an order that is no longer itself in force and the arrears under which were remitted by the court in the final order of May 2024, as amended. The wife's application for permission to appeal that aspect of the final order was dismissed by the Court of Appeal.
67. Finally, the application dated 18 February 2025 for a maintenance pending pursuit order, is likewise totally without merit. As I have set out, the final order contained provisions providing that the wife's claims for secure periodical payments orders, periodical payments orders, lump sum orders, property adjustment orders, pension sharing orders and pension attachment orders, all stand dismissed. In the circumstances, this court has no jurisdiction to make a maintenance pending suit order at this stage.
68. Finally, I am satisfied that the wife must bear the costs of each of the applications before the court. She has failed both in her set aside application and the husband has succeeded in this application for the court to sign the documents in the circumstances I have described. Further, given that the applications arise in the context that I have described, namely the persistent poor litigation conduct of the wife over a number of months, in the context of litigation conduct that the court has already had cause to penalise for the reasons set out in the cost

judgment of last year, I intend to make the cost order on an indemnity basis. I am satisfied, having regard to the factual context in which the cost order arises, that the indemnity basis for costs is entirely appropriate in this case.

End of Judgment.

Transcript of a recording by Acolad UK Ltd
291-299 Borough High Street, London SE1 1JG
Tel: 020 7269 0370
legal@ubiquis.com

Acolad UK Ltd hereby certify that the above is an accurate and complete record of the
proceedings or part thereof

1st Email to Judge

Re. Perjury

6th March 2024

Tuesday, May 28, 2024 at 00:21:46 British Summer Time

Subject: BV20D01752 Zahmoul vs Zahmoul - FW: Material Event - SPAC merger effective date 8 February 2024 -Nasdaq ticker BRLS

Date: Wednesday, March 6, 2024 at 5:23:54 AM Greenwich Mean Time

From: Nadia <nadia@rosekross.com>

To: Knight, Anita <Anita.Knight@Justice.gov.uk>

CC: Alexis Campbell KC <ACampbellKC@29br.co.uk>, bmolyneux@29br.co.uk <bmolyneux@29br.co.uk>

Priority: High

Attachments: 1. Material Event - SPAC merger effective date 8 February 2024 -Nasdaq ticker BRLS.pdf, 2. SEC FILINGS (EXCERPTS).docx, 3. SEC_PROSPECTUS_16JAN2024.pdf, 4. OXUS_TIMELINE.pdf, 5. Brent Note Nadia Zahmoul - ptr - 13 07 22.docx

Dear Anita,

I hope you are well.

I would be most grateful if you could please pass this on to His Lordship.

This is material to the case and to the Final Hearing which took place before His Lordship on 19th - 28th February 2024.

I am copying counsels on both sides.

Thank you very much.

With my kind wishes,
Nadia

.....

Your Lordship,

I am sincerely sorry to trouble Your Lordship so soon after the Final Hearing. The matter of **Oxus Acquisition Corp.** is very material to the case and came to my attention almost immediately after the trial ended. Despite writing to the respondent one week ago to request an explanation, we have not received a reply.

This open-ended situation is very harmful to me. I feel powerless, vulnerable, and extremely distressed. I find it impossible to put the children's and my future into the respondent's hands and wait without knowing how long I must wait.

I put the matter into Your Lordship's hands and if one week is not enough, I am happy to wait as long as Your Lordship would like me to.

At the Final Hearing and under oath, the respondent represented that his shares in Oxus Acquisition Corp. were "**worth zero**". In the asset schedule submitted for the Final Hearing, he reported 50,000 shares at a **value of \$0.00.**

This is factually incorrect and constitutes a false statement.

- a. The respondent was appointed to the **Board of Directors of Oxus Acquisition Corp. on 1st June 2022** and
- b. On **7th June 2022** Form 3 "*Initial Statement of Beneficial Ownership of*

Securities” was filed with the SEC.

- c. **PAGE 340 of SEC PROSPECTUS (attached): “On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or \$0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination)”.**
- d. The Founder Shares were granted **subject to a performance condition (i.e., the occurrence of a Business Combination).**
- e. **The Business Combination occurred on 7th February 2024.**
- f. Newco began trading on **Nasdaq on 8th February 2024 under the ticker symbol **BRLS**.**
- g. The Founder Shares **lock-up period** is defined **in page 43** of the Prospectus filed with the SEC (attached) and in the attached SEC Filings Excerpts.

Conclusion:

The Final Hearing started on 19th February 2024.

At the time of the Final Hearing and when he testified under oath, the respondent knew (i) that the Business Combination had occurred and (ii) that the value of his 50,000 Founders Shares was not zero.

Email sent to the respondent’s solicitors on 29th February 2024 (attached):

“Dear Valeria,

We attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post-merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of \$9.20 (and your client had 50,000 shares in the pre-merger OXUS) please can you explain the value of his stockholding with reference to the attached documents and any others in your clients possession – and why he ascribed a nil value to his equity in the ES2.

We look forward to hearing from you.”

Respectfully,

Nadia Zahmoul

On 29/02/2024, 3:41 PM, "Nadia" <nadia@rosekross.com> wrote:

Dear Brent,

THE FOLLOWING SHOWS THAT ONCE AGAIN, THE RESPONDENT IS TAKING ME AND THE COURT FOR FOOLS. Please send to the judge

The Oxus and Borealis M&A closed on 7 February 2024 and the Newco began trading on Nasdaq on 8 February 2024 under the ticker symbol BRSL.

1. The attached forms from the SEC provide documentary evidence of the following facts:

- The respondent has 50,000 Founder shares
 - The grant value is \$0.33 per share
 - The shares are now listed on Nasdaq under ticker symbol BRLS
 - The current market price is \$9.20
 - The current price appreciation (book value): 2588%
 - **The current market value of the respondent's shares: \$443,500**
 - Lock-up period: one year
2. Warrants and Options granted to directors and founders have not been disclosed.
3. The Final Hearing before Justice MacDonald started on Monday 19th February. During his testimonies under oath the respondent represented that his shares in Oxus Acquisition Fund were worth zero. He also instructed his counsel to represent to the Court that his "shares in Oxus were on the side and were worth zero". This is a false representation. The shares owned by the respondent are worth \$443,500. The lock-up period does not define the value of the shares. The respondent can borrow against the shares during the lock-up and can monetize them. He knows this. The key metric which determines the value of the shares is the **CLOSING OF THE MERGER TRANSACTION. This happened on 7 February 2024, 11 days before the trial started. THAT IS THE DATE WHICH DETERMINES THE VALUE OF THE RESPONDENT'S SHARES.**

-

With kind wishes,
Nadia

BV20D01752

Fraud Unravels All

Veritas Numquam Perit

UK: +44 79 1332 8615

US: +1 424 426 9226

Sunday, May 5, 2024 at 23:14:25 British Summer Time

Subject: Zahmoul and Zahmoul
Date: Wednesday, March 6, 2024 at 2:28:41 PM Greenwich Mean Time
From: Faye Simpson
To: Valeria Gampl
CC: Zoë Bloom, Lucy Birch
Attachments: image001.png, image002.png, image003.png, image004.png, image005.png, image006.png, image007.png, RE: Zahmoul and Zahmoul.eml

Dear Valeria,

We write further to our emails of 29 February 2024 at 17:07, and 4 March 2024 at 12:46, as attached.

We request a response to our client's perfectly reasonable queries by the end of today. Failing this, our client reserves the right to make an application for the evidence to be reopened in relation to this issue.

We look forward to hearing from you.

Kind regards,

Faye

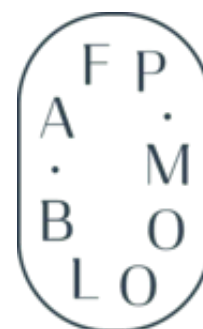
Faye Simpson | Associate

faye.simpson@afpbloom.com

T: 020 7409 1222 | **M:** 07425854346

AFP Bloom LLP | 106-108 Wigmore Street, London, W1U 3LR

www.afpbloom.com



AFP Bloom LLP is a limited liability partnership registered in England and Wales under number OC414418 and is authorised and regulated by the Solicitors Regulation Authority with number 635195. A list of members is available to view at our registered office at 106-108 Wigmore Street, London, W1U 3LR, United Kingdom. This email and the information it contains are confidential and may be privileged. If you have received this email in error, please notify us immediately and refrain from disclosing its contents to any other person. AFP Bloom LLP does not accept service of documents by email. We use the term 'partner' to refer to a member of AFP Bloom LLP or to an employee or consultant with equivalent status.

[Evolve:dcd4720d-6c2c-4adb-a3e6-d2c16de30858]

From: Barbara Marques <Barbara.Marques@stowefamilylaw.co.uk>
Sent: Wednesday, March 6, 2024 3:51 PM
To: Faye Simpson <faye.simpson@afpbloom.com>
Cc: Lucy Birch <Lucy.Birch@stowefamilylaw.co.uk>
Subject: RE: Zahmoul and Zahmoul

Dear Faye

Thank you for your emails.

Valeria is now out of office. May you please ensure that all future correspondence is sent directly to our Lucy Birch, who has taken over this matter, with myself in copy.

We will seek to revert to you more substantially tomorrow.

Kind regards
Barbara

Barbara Marques
Solicitor, London

Monday, May 6, 2024 at 20:14:58 British Summer Time

Subject: FW: Zahmoul and Zahmoul
Date: Wednesday, March 6, 2024 at 4:08:49 PM Greenwich Mean Time
From: Faye Simpson
To: Nadia
CC: Zoë Bloom
Attachments: image001.png, image002.png, image003.png, image004.png, image005.png, image006.png, image007.png, image010151.png, image651182.png, image351408.png, image352789.png, image719520.png, image878120.png, image829390.png, image481553.jpg

Dear Nadia,

Please see the below response received from Stowe. I received Lucy's out of office and they have said they will respond substantially tomorrow.

Given that they have put us on notice that they will reply substantially tomorrow, you may choose to wait for their reply before submitting the D11.

Kind regards,

Faye

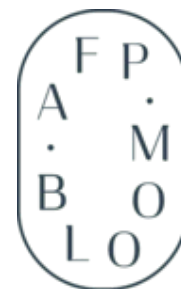
Faye Simpson | Associate

faye.simpson@afpbloom.com

T: 020 7409 1222 | **M:** 07425854346

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From: Barbara Marques <Barbara.Marques@stowefamilylaw.co.uk>

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Cc: Lucy Birch <Lucy.Birch@stowefamilylaw.co.uk>

Subject: RE: Zahmoul and Zahmoul

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Valeria is now out of office. May you please ensure that all future correspondence is sent directly to our Lucy Birch, who has taken over this matter, with myself in copy.

We will seek to revert to you more substantially tomorrow.

Kind regards

Barbara

Filed Pursuant to Rule 424(b)(3)
Registration No. 333-273967
PROXY STATEMENT AND PROSPECTUS
DATED JANUARY 16, 2024

OXUS ACQUISITION CORP. (excerpts)

300/26 Dostyk Avenue

Almaty, Kazakhstan 050020

PAGE 30:

The beneficial ownership of Oxus' independent directors, Christophe Charlier, **Karim Zahmoul** and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares;

- the fact that given the differential in the purchase price that the Sponsor paid for the Founder Shares as compared to the price of the Public Units sold in the IPO and the substantial number of Class A Shares that the Sponsor will receive upon conversion of the Founder Shares in connection with the Business Combination, **the Sponsor may earn a positive rate of return on their investment even if the Class A Shares trade below the price initially paid for the Public Units in the IPO** and the public shareholders experience a negative rate of return following the completion of the Business Combination;

PAGE 43: Lock-Up Agreements

In connection with the Closing, Oxus and certain directors/officers/five percent or greater shareholders of Borealis (the "Subject Party") will enter into Lock-Up Agreements, pursuant to which (A) 50% of the shares of New Borealis held by the Subject Party (the "Restricted Securities") will be locked-up during the period commencing from the Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of common shares of New Borealis equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from the Closing and ending on 12 months after the date of the Closing, subject to certain specifications and exceptions.

PAGE 245-246:**Directors and Officers**

The below lists Oxus' current officers and directors.

Name	Age	Title
Kenges Rakishev	44	Non-executive Chairman and Director
Kanat Mynzhanov	40	Chief Executive Officer and Director
Askar Mametov	40	Chief Financial Officer
Christophe Charlier	51	Director
Karim Zahmoul	58	Director
Shiv Vikram Khemka	61	Director

Karim Zahmoul has served as one of Oxus' independent directors since June 2022. Mr. Zahmoul has 25 years of investment banking experience. He has served as a Founder and CEO of EMVirya Ltd, an FCA regulated investment advisor based in London since February 2018. EMVirya Ltd, is a privately held financial services firm with extensive experience in global emerging markets that is positioning itself at the cross road of Emerging markets and renewable energy. Prior to founding EMVirya, Mr. Zahmoul was a Partner at Temporis Capital from September 2014 to April 2017 in London, where he was responsible for the firm's international investments business and developed renewable energy project in the emerging market jurisdiction including extended focus in Morocco and Argentina. Prior to that from 2004 to 2014, Mr. Zahmoul was a Managing Director at Barclays Investment Bank where he held various senior positions over his 10-year tenure at the bank. In his last position, he was responsible for the Global Emerging Market business for the investment bank. Prior to Barclays from 1999 to 2004, Mr. Zahmoul spent five years at Deutsche Bank where he was a Managing Director and Head of Emerging Market Structuring for the Americas in New York. He started his financial career and spent six years at Goldman Sachs, in both New York and London, where his last position was Executive Director in EEMEA Trading. Mr. Zahmoul received an MSc and a BSc from Columbia School of Engineering and Applied Sciences in Operation Research and a BA in Physics from Columbia College.

PAGE 248:**Number and Terms of Office of Officers and Directors**

The Oxus Board consists of five members. The Oxus Board is divided into three classes, with only one class of directors being elected in each year, and with each class (except for those directors appointed prior to Oxus' first annual meeting of stockholders) serving a three-year term. The term of office of the first class of directors, consisting of **Karim Zahmoul**, will expire at Oxus' first annual meeting of shareholders. The term of office of the second class of directors, consisting of Christophe Charlier and Shiv Vikram Khemka, will expire at Oxus' second annual meeting of

shareholders. The term of office of the third class of directors, consisting of Kenges Rakishev and Kanat Mynzhanov, will expire at Oxus' third annual meeting of shareholders.

PAGE 248:

Audit Committee

Oxus gas established an audit committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The audit committee's duties, which are specified in Oxus' Audit Committee Charter, include, but are not limited to:

- reviewing and discussing with management and the independent auditor the annual audited financial statements, and recommending to the board whether the audited financial statements should be included in Oxus' Form 10-K;
- discussing with management and the independent auditor significant financial reporting issues and judgments made in connection with the preparation of Oxus' financial statements;
- discussing with management major risk assessment and risk management policies;
- discussing with management major risk assessment and risk management policies;
- monitoring the independence of the independent auditor;
- verifying the rotation of the lead (or coordinating) audit partner having primary responsibility for the audit and the audit partner responsible for reviewing the audit as required by law;
- reviewing and approving all related party transactions;
- inquiring and discussing with management Oxus' compliance with applicable laws and regulations;
- pre-approving all audit services and permitted non-audit services to be performed by Oxus' independent auditor, including the fees and terms of the services to be performed;
- appointing or replacing the independent auditor;
- determining the compensation and oversight of the work of the independent auditor (including resolution of disagreements between management and the independent auditor regarding financial reporting) for the purpose of preparing or issuing an audit report or related work;
- establishing procedures for the receipt, retention and treatment of complaints received by Oxus regarding accounting, internal accounting controls or reports which raise material issues regarding Oxus' financial statements or accounting policies; and

- approving reimbursement of expenses incurred by Oxus' management team in identifying potential target businesses.

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Financial Experts on Audit Committee

The audit committee will at all times be composed exclusively of "independent directors" who are "financially literate" as defined under the Nasdaq's listing standards. The Nasdaq's standards define "financially literate" as being able to read and understand fundamental financial statements, including a company's balance sheet, income statement and cash flow statement.

In addition, Oxus must certify to the Nasdaq that the committee has, and will continue to have, at least one member who has past employment experience in finance or accounting, requisite professional certification in accounting, or other comparable experience or background that results in the individual's financial sophistication. The board of directors has determined that Christophe Charlier qualifies as an "audit committee financial expert," as defined under rules and regulations of the SEC.

Nominating Committee

Oxus has established a nominating committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The nominating committee is responsible for overseeing the selection of persons to be nominated to serve on the Oxus Board. The nominating committee considers persons identified by its members, management, shareholders, investment bankers and others.

Guidelines for Selecting Director Nominees

The guidelines for selecting nominees, which are specified in the Nominating Committee Charter, generally provide those persons to be nominated:

- **should have demonstrated notable or significant achievements in business, education or public service;**
- should possess the requisite intelligence, education and experience to make a significant contribution to the board of directors and bring a range of skills, diverse perspectives and backgrounds to its deliberations; and
- **should have the highest ethical standards, a strong sense of professionalism and intense dedication to serving the interests of the shareholders.**

The Nominating Committee will consider a number of qualifications relating to management and leadership experience, background and integrity and professionalism in evaluating a person's candidacy for membership on the board of directors. The nominating committee may require certain skills or attributes, such as financial or accounting experience, to meet specific board needs that arise from time to time and will also consider the overall experience and makeup of its

members to obtain a broad and diverse mix of board members. The nominating committee does not distinguish among nominees recommended by shareholders and other persons.

PAGE 250:

Compensation Committee

Oxus has established a compensation committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The compensation committee's duties, which are specified in Oxus' Compensation Committee Charter, include, but are not limited to:

- reviewing and approving on an annual basis the corporate goals and objectives relevant to Oxus' Chief Executive Officer's compensation, evaluating Oxus' Chief Executive Officer's performance in light of such goals and objectives and determining and approving the remuneration (if any) of Oxus' Chief Executive Officer based on such evaluation;
- reviewing and approving the compensation of all of Oxus' other executive officers;
- reviewing Oxus' executive compensation policies and plans;
- implementing and administering Oxus' incentive compensation equity-based remuneration plans;
- assisting management in complying with Oxus' proxy statement and annual report disclosure requirements;

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- approving all special perquisites, special cash payments and other special compensation and benefit arrangements for Oxus' executive officers and employees;
- if required, producing a report on executive compensation to be included in Oxus' annual proxy statement; and
- reviewing, evaluating and recommending changes, if appropriate, to the remuneration for directors.

Code of Ethics

Oxus has adopted a code of ethics that applies to all of Oxus' executive officers, directors and employees. The code of ethics codifies the business and ethical principles that govern all aspects of Oxus' business.

Legal Proceedings

As of the date of this proxy statement/prospectus, to the knowledge of Oxus' management, there was no material litigation, arbitration or governmental proceeding pending against Oxus or any

members of Oxus' management team in their capacity as such, and Oxus and the members of Oxus' management team have not been subject to any such proceeding.

PAGE 287:

Unless otherwise indicated, Oxus believes that all persons named in the table have sole voting and investment power with respect to all shares beneficially owned by them. **The following table does not reflect record or beneficial ownership of Oxus' warrants because such warrants are not exercisable within 60 days of the date of this proxy statement/prospectus.** The calculation of the pre-transaction percentage of beneficial ownership for Oxus is based on 6,552,131 Oxus Shares outstanding as of January 11, 2024. The calculation of the pre-transaction percentage of beneficial ownership for Borealis is based on 167,159,371 Borealis Shares outstanding as of September 30, 2023.

Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Current Directors and Executive Officers of and Sponsor of Oxus:						
Oxus Capital Pte. Ltd ⁽²⁾	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kenges Rakishev	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kanat Mynzhanov ⁽⁴⁾⁽¹¹⁾	—	—	—	—	—	—
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Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Askar Mametov ⁽¹¹⁾	—	—	—	—	—	—
Karim Zahmoul	50,000	*	50,000	*	50,000	*
Christophe Charlier	50,000	*	50,000	*	50,000	*
Shiv Vikram Khemka	50,000	*	50,000	*	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500 ⁽⁴⁾⁽⁵⁾	65.82%	5,686,333	25.25%	5,686,333	27.63%
Directors and Executive Officers of New Borealis After Consummation of the Business Combination:						
Reza Soltanzadeh	55,376,531 ⁽⁸⁾⁽⁹⁾	33.13%	3,230,969	14.35%	3,230,969	16.28%
Barthelemy Helg	48,494,719 ⁽¹⁰⁾	29.01%	3,230,969	14.35%	3,230,969	16.28%
Stephen Wegrzyn	—	—	33,430	*	33,430	*
Pouneh Rahimi	—	—	194,574	*	194,574	*
Matt Talle	—	—	217,139	*	217,139	*
Henry Wong	—	—	6,143	*	33,430	*
Kanat Mynzhanov	—	—	200,000	*	200,000	*

Shiv Vikram Khemka	—	—	50,000	*	50,000	*
Shukhrat Ibragimov ⁽¹²⁾	—	—	2,754,716	12.23%	2,754,716	13.39%
Steven Oyer	—	—	—	—	—	—
Ertharin Cousin	—	—	—	—	—	—
All directors and executive officers as a group (nine individuals)						
	3,871,250	62.14%	9,466,654	42.04%	9,466,654	45.95%
Five Percent or More Holders and Certain Other Holders:						
Meteora Capital, LLC ⁽⁶⁾	402,598	6.14%				
Boothbay Fund Management, LLC ⁽⁷⁾	235,331	3.59%				

* less than 1%

** indeterminable in maximum redemption scenario

- (1) Unless otherwise noted, the business address of each of the following entities or individuals is c/o Oxus Acquisition Corp., 300/26 Dostyk Avenue, Almaty, Kazakhstan 050020.
- (2) Represents securities held by Oxus Capital Pte. Ltd., our Sponsor, of which Kenges Rakishev is the controlling shareholder.
- (3) Consists of 1,500,000 Class A Shares and 2,662,500 Class B Shares.
- (4) Does not include certain shares indirectly owned by this individual as a result of his membership interest in our Sponsor.
- (5) Interests shown include founder shares, classified as Class B ordinary shares. Such shares are convertible into Class A ordinary shares on a one for one basis, subject to adjustment.
- (6) Consists of 402,598 Class A Shares of Oxus. Based on a Schedule 13G filed on April 11, 2023, by Meteora Capital, LLC, a Delaware limited liability company (“Meteora Capital”) with respect to the ordinary shares held by certain funds and managed accounts to which Meteora Capital serves as investment manager (collectively, the “Meteora Funds”); and Vik Mittal, who serves as the Managing Member of Meteora Capital, with respect to the ordinary shares held by the Meteora Funds. The address of the principal business office for each of the reporting persons is 1200 N Federal Hwy, #200, Boca Raton FL 33432.
- (7) Based on a Schedule 13G filed on April 5, 2023, by Boothbay Fund Management, LLC, a Delaware limited liability company; Boothbay Absolute Return Strategies LP, a Delaware limited partnership; and Ari Glass, a citizen of the United States. The units are held by one or more private funds (the “Funds”), which are managed by Boothbay Fund Management, LLC, a Delaware limited liability company (the “Adviser”). Ari Glass is the Managing Member of the Adviser. Certain subadvisors (“Subadvisors”) have been delegated the authority to act on behalf of the Funds, including exclusive authority to vote and/or direct the disposition of certain Class A Shares held by the Fund, and such Class A Shares may be reported in regulatory filings made by such Subadvisors. The address of the principal business office for each of the reporting persons is 140 East 45th Street, 14th Floor, New York, NY 10017.
- (8) Consists of 55,376,531 Class A Common Shares of Borealis Foods Inc.
- (9) Represents Securities held by Zagros Alpine Capital ULC, which consists of 53,440,906 Class A Common Shares, and Securities held by Z Ventures Inc., which consists of 1,935,625 Class A Common Shares. Reza Soltanzadeh is the President of Zagros Alpine Capital ULC and Z Ventures Inc. and has sole voting and dispositive control over the shares held by Zagros Alpine Capital ULC and Z Ventures Inc.
- (10) Consists of 48,494,719 Class A Common Shares of Borealis Foods Inc.
- (11) Does not include shares to be transferred by the Sponsor pursuant to the incentive agreements upon successful completion of the Business Combination.
- (12) Represents securities held by Belphar. Ltd., of which Shukhrat Ibragimov is the controlling shareholder.

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On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, **Mr. Karim Zahmoul** was appointed as independent director. **On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or \$0.33 per share.** The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares

is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model.

Other SEC Filings

As filed with the Securities and Exchange Commission on **January 11, 2024.**

Registration No. 333-273967

**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549**

Amendment No. 5

to

Form S-4

Registration Statement Under the Securities Act of 1933

OXUS ACQUISITION CORP.

(Exact name of registrant as specified in its charter)

On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, Mr. Karim **Zahmoul** was appointed as independent director. On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim **Zahmoul** by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim **Zahmoul** on June 7, 2022, was \$0.02 million or \$0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model.

Founder Shares are subject to lock-up until (i) with respect to 50% of the Founder Shares, the earlier of one year after the date of the consummation of the initial Business Combination and the date on which the closing price of the Class A ordinary shares equals or exceeds \$12.00 per share (as adjusted for share splits, share dividends, reorganizations and recapitalizations) for any 20 trading days within a 30-trading day period commencing after the consummation of the initial Business Combination and (ii) with respect to the remaining 50% of the Founder Shares, the one-year anniversary of the consummation of the initial Business Combination. Notwithstanding the foregoing, the Founder Shares will be released earlier if, subsequent to the initial Business Combination, the Company consummates a liquidation, merger, share exchange or other similar transaction which results in all of the shareholders having the right to exchange their ordinary shares for cash, securities or other property.

SIGNATURES

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on **January 11, 2024**.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov

Kanat Mynzhanov

Chief Executive Officer and Director

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u> Kanat Mynzhanov	Chief Executive Officer and Director (Principal Executive Officer)	January 11, 2024
<u>*</u> Askar Mametov	Chief Financial Officer (Principal Financial and Accounting Officer)	January 11, 2024
<u>*</u> Kenges Rakishev	Non-executive Chairman and Director	January 11, 2024
<u>*</u> Christophe Charlier	Director	January 11, 2024
<u>*</u> Karim Zahmoul	Director	January 11, 2024
<u>*</u> Shiv Vikram Khemka	Director	January 11, 2024
*By: <u>/s/ Kanat Mynzhanov</u>		
Name: Kanat Mynzhanov		
Title: Attorney-in-Fact		

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AUTHORIZED REPRESENTATIVE IN THE UNITED STATES

Pursuant to the requirements of the Securities Act of 1933, as amended, Oxus Acquisition Corp., has duly caused this registration statement to be signed by the following duly authorized representative in the United States on January 11, 2024.

Puglisi & Associates

By: /s/ Donald J. Puglisi

Name: Donald J. Puglisi

Title: Managing Director

As filed with the Securities and Exchange Commission on **January 5, 2024.**

Registration No. 333-273967

**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549**

Amendment No. 4

to

Form S-4

Registration Statement Under the Securities Act of 1933

OXUS ACQUISITION CORP.
(Exact name of registrant as specified in its charter)

SIGNATURES

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on January 5, 2024.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov

Kanat Mynzhanov
Chief Executive Officer and Director

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u> Kanat Mynzhanov	Chief Executive Officer and Director (Principal Executive Officer)	January 5, 2024
<u>*</u> Askar Mametov	Chief Financial Officer (Principal Financial and Accounting Officer)	January 5, 2024
<u>*</u> Kenges Rakishev	Non-executive Chairman and Director	January 5, 2024
<u>*</u> Christophe Charlier	Director	January 5, 2024
<u>*</u> Karim Zahmoul	Director	January 5, 2024
<u>*</u>	Director	January 5, 2024

Shiv Vikram Khemka

* By: /s/ Kanat Mynzhanov

Name: Kanat Mynzhanov

Title: Attorney-in-Fact

II-3

AUTHORIZED REPRESENTATIVE IN THE UNITED STATES

Pursuant to the requirements of the Securities Act of 1933, as amended, Oxus Acquisition Corp., has duly caused this registration statement to be signed by the following duly authorized representative in the United States on **January 5, 2024.**

Puglisi & Associates

By: /s/ Donald J. Puglisi

Name: Donald J. Puglisi

Title: Managing Director

II-4

UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549

SCHEDULE 14A

**Information Required in Proxy Statement
Schedule 14A Information**

**Proxy Statement Pursuant to Section 14(a) of the
Securities Exchange Act of 1934**

Filed by the Registrant ☒

Filed by a Party other than the Registrant ☐

Check the appropriate box:

☒ Preliminary Proxy Statement

☐ **Confidential, for Use of the Commission Only (as permitted by Rule 14a-6(e)(2))**

☐ Definitive Proxy Statement

☐ Definitive Additional Materials

☐ Soliciting Material Pursuant to §240.14a-12

OXUS ACQUISITION CORP.

(Name of Registrant as Specified In Its Charter)

BENEFICIAL OWNERSHIP OF SECURITIES

The following table sets forth information available to us as of November 3, 2023, with respect to the Ordinary Shares held by:

- each person known by us to be the beneficial owner of more than 5% of the Ordinary Shares;
- each of our executive officers, directors and director nominees that beneficially owns ordinary shares; and
- all our executive officers and directors as a group.

Beneficial ownership is determined according to the rules of the SEC, which generally provide that a person has beneficial ownership of a security if he, she or it possesses sole or shared voting or investment power over that security, including options and warrants that are currently exercisable or will become exercisable within 60 days. Except as described in the footnotes below and subject to applicable community property laws and similar laws, we believe that each person listed below has sole voting and investment power with respect to such shares.

In the table below, percentage ownership is based on 6,561,968 Ordinary Shares outstanding as of November 3, 2023, including 3,749,468 Class A Ordinary Shares and 2,812,500 Class B Ordinary Shares. Voting power represents the combined voting power of Ordinary Shares owned beneficially by such person. On all matters to be voted upon, the holders of the Ordinary Shares vote together as a single class. The table below does not include any Ordinary Shares underlying our outstanding warrants because such securities are not exercisable within 60 days of November 3, 2023.

Name and Address of Beneficial Owner⁽¹⁾	Number of Shares Beneficially Owned	Percentage of Outstanding Ordinary Shares
Oxus Capital PTE. LTD. ⁽²⁾	4,162,500 ⁽³⁾	63.43%
Kenges Rakishev ⁽²⁾	4,162,500 ⁽³⁾	63.43%
Kanat Mynzhanov	—	—
Askar Mametov	—	—
Karim Nouredine Zahmoul	50,000	*
Christophe Charlier	50,000	*
Shiv Vikram Khemka	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500 ⁽⁴⁾⁽⁵⁾	65.72%

* Less than one percent.

- (1) Unless otherwise noted, the business address of each of the following entities or individuals is 300/26 Dostyk Avenue, Almaty 050020.
- (2) Represents securities held by Oxus Capital PTE. LTD., our Sponsor, of which Kenges Rakishev is the controlling shareholder.
- (3) Consists of 1,500,000 Class A Shares and 2,662,500 Class B Shares.
- (4) Does not include certain shares indirectly owned by this individual as a result of his membership interest in our sponsor.
- (5) Interests shown include Founder Shares, including 2,632,500 Class B Ordinary Shares and 1,500,000 Class A Ordinary Shares. The Class B Ordinary Shares are convertible into Class A Ordinary Shares on a one for one basis, subject to adjustment.

2nd Email to Judge

Re. Perjury

7th March 2024

Tuesday, October 8, 2024 at 22:23:27 British Summer Time

Subject: Urgent - BV20D01752 - FALSE REPRESENTATIONS MADE DURING TRIAL
Date: Thursday, March 7, 2024 at 4:49:38 PM Greenwich Mean Time
From: Nadia
To: Knight, Anita
CC: Valeria Gampl
Attachments: BV20D01752 Applicant: Nadia Zahmoul Respondent: Karim Zahmoul.eml, D-11_OXUS_FALSE_REPRESENTATIONS.pdf, 3. SEC_PROSPECTUS_16JAN2024.pdf

Dear Anita,

I hope you are well.

As you probably know, I am acting in person as I no longer have the funds to pay for my legal costs. I attach the email sent yesterday with the notice of acting in person.

I would be most grateful if you could please pass this on to His Lordship as this is an urgent matter which is material to the case.

With my kind wishes,
 Nadia

=====

Your Lordship,

This is not an application to reopen the evidence.

I am not introducing any new evidence. I am also acting in person as no amount of money can be enough to pay for the extraordinary amount of work necessitated to untangle the respondent's transactions, disclosures, statements and etc.

I would like to draw the Court's attention to the false representations the respondent made under oath with regards to Oxus Acquisition Corp. during the Final Hearing.

The trial started on 19th February 2024. On that day, the respondent knew that the Business Combination had been consummated on 7th February 2024. The Business Combination date is crucial as it is the trigger for the respondent's 50,000 shares to become valuable.

The value of his Oxus shares is **binary**: it is zero if there is no Business Combination and it is marked-to-market starting on the exact day the Business Combination is effective, which was 7th February 2024, 10 days before the trial started.

Therefore, the respondent should have assigned a value of approximately \$500,000 to the Oxus shares on ES2 starting on the 7th February 2024 and he should not have instructed his counsel to state that the "**Oxus shares are worth nothing**". In fact, he

should have replaced Oxus shares with BRLS shares and he should have disclosed the number of BRLS shares he now owns given the exchange rate and the redemptions. Furthermore, the respondent has never told the Court how many warrants he received.

When he appeared before Your Lordship on 19th February 2024, the respondent knew that the Business Combination had been consummated on 7th February 2024 and he knew that on 8th February 2024, the newly merged company began trading on Nasdaq under the ticker symbol BRLS. Oxus was retired from Nasdaq on that day.

He assigned a value of zero to the shares on his ES2 schedule dated 19th February 2024. This is an intentional false representation. It is absolutely false and dishonest.

He told the Court that his Oxus shares were “**worth nothing**”. This is a false representation, and this is dishonest.

In summary, during the Final Hearing before Your Lordship, the respondent intentionally misled the Court and me, he made false representations to the Court under oath, he mismarked his ES2 schedule, and he instructed his counsel to make factually incorrect statements in her submissions.

I attach a comprehensive review of what the respondent did, what he knew, when he knew it, and what he told the Court.

As a director of Oxus, the respondent signed the SEC filings of January and February 2024, so he cannot say that he was “overwhelmed” and “stressed”.

My previous solicitors emailed the respondent’s solicitors on 29th February 2024 requesting an explanation. I have not received a reply.

Your Lordship, I would like to say one more time that there is **no new evidence** in the attached statement. My only objective is to bring this to your attention as it is very material to my case. The statement is simply a reconstruction of the respondent’s tortuous and deceitful acts and how they fail to stand up to scrutiny.

Respectfully,

Nadia Zahmoul

BV20D01752

Veritas Numquam Perit

UK: +44 79 1332 8615

US: +1 424 426 9226

D11 - APPLICATION NOTICE

Application notice

If completing this form by hand, please use
black ink and BLOCK CAPITAL LETTERS
and tick the boxes that apply.

To be completed by the relevant party	
Name of court Royal Courts of Justice	Case no. <u>BV20D01752</u>
Name of Petitioner/Applicant Nadia Zahmoul	
Name of Respondent Karim Nouredine Zahmoul	
Name of Co-Respondent (if applicable)	
Solicitor's fee account no.	
Help with Fees – Ref no. (if applicable) – –	
H ☐ W ☐ F ☐	☐ ☐ ☐ ☐

1. Please state your name or, if you are a solicitor, the name of your firm.

Nadia Zahmoul

2. Are you the ☐Petitioner ☒Applicant ☐Respondent ☐Co-Respondent ☐Solicitor in

the main proceedings, or

Other?
(if Other, please specify)

If you are a solicitor, whom do you represent?

Please see attached draft order.



D11 - APPLICATION NOTICE

3. What order are you asking the court to make and why?

Please attach a draft copy of the order you are applying for.

Please see attached draft order.

This application may be considered by a judge on the information you have set out in your application notice. The judge may make an order on that information, without a hearing. However, any party who objects to an order made in this way may apply to the court within 7 days of it being made, for a hearing, at which all parties can attend, when the application will be reconsidered.

1. Are there any reasons why this application should not be dealt with on paper by a judge?

☐ Yes. It should not be dealt with on paper by a judge because

☒ No

Domestic Abuse Act 2021

Provisions in the Domestic Abuse Act 2021 have the effect of preventing an individual accused of abuse from questioning in person a party or witness in the case who is the victim of the abuse, and also prevents a victim of abuse from questioning in person the accused individual in specified circumstances.

If the court directs that the proceedings be listed for a hearing where oral evidence may be given, form **EX740** (person making the abuse accusation) or form **EX741** (person accused of abuse) 'Application and information needed by the court to consider whether to prevent (prohibit) questioning (cross-examination) in person' may need to be completed so that the court can consider whether questioning in person should be prevented. The court will send the appropriate form with the court order.

Note 3: Set out what order you are applying for and why; e.g. to adjourn the hearing because..., to apply for leave to issue my divorce application without my marriage certificate because... etc. If you are applying to vary an existing order or to re-activate proceedings you should enter the details here. A draft copy of any order you are applying for must be attached to your application. The draft should state the amount of any costs to be paid by the other party and a brief calculation of how it was arrived at.

Note 4:

The court will only deal with the application 'without a hearing' in the following circumstances:

- where all the parties agree to the terms of the order being asked for;
- where all the parties agree that the court should deal with the application without a hearing; or
- where the court does not consider that a hearing would be appropriate.

For Deemed Service applications for divorce, Questions 5–9 are not required. See guidance notes for more information.

2. Are there any reasons why this application should not be dealt with at a telephone hearing?

☒ Yes. This hearing should not be dealt with at a telephone hearing because

The applicant has impaired hearing.
This application can be dealt with in writing.

☐ No

3. How long do you think the hearing will last?

hours minutes

4. Is this time estimate agreed by all parties?

☐ Yes

☒ No

5. Give details of any fixed hearing date or period.

• •
Final Hearing took place before His Lordship Justice MacDonald from
19th to 28th February 2024.

6. Does this application need to be heard by a specific judge/level of judge?

☒ Yes. This case is reserved to **His Lordship Justice MacDonald**

☐ No

Deemed Service application

(These applications do not require a hearing.)

The applicant can apply to the court for an application for deemed service when they have evidence the respondent has received the divorce application but has not filed an acknowledgment of service with the court. Evidence can be written confirmation such as a letter, email, or text.

Note 5: Indicate in a covering letter any dates that you are unavailable to attend within the next six weeks.

Telephone hearings are only available in applications where at least one of the parties involved in the case is legally represented.

Not all applications will be suitable for a telephone hearing and the court may refuse your request

Note 6: If you do not know how long the hearing will take do not guess, instead leave these boxes blank.

Note 7: If your case has already been allocated a hearing date or trial period please insert details of those dates in the box.

Note 8: Enter the details if there is a requirement for your case to be heard

7. Who should be served with this application?

Give names, addresses, and email addresses: (If necessary, please continue on a separate sheet.)

Mr. Karim Nouredine Zahmoul
c/o Crisp & Co
No 1 Poultry
London EC2R 8EJ

Note 10: Please indicate in the box provided who you want the court to send a copy of the application to.

8. What information will you be relying on?

- ☒ the attached statement.
- ☐ the divorce/dissolution/nullity/(judicial) separation application.
- ☐ the statement in support of the divorce/dissolution/nullity/(judicial) separation.
- ☐ the evidence set out in the box below:

(If necessary, please continue on a separate sheet)

Please see Affidavit in separate sheet.

Note 11: In this section please set out the information you want the court to take into account in support of the application you are making. If you wish to rely on:

- **a witness statement,** tick the first box and attach the statement to the application notice. A witness statement form is available on request from the court office.
- **a statement of case,** tick the second box if you intend to rely on your particulars of claim or defence in support of your application.
- **written evidence on this form,** tick the fourth box and enter details in the space provided. You must also complete the statement of truth. Proceedings for contempt of court may be brought against a person who signs a statement of truth without an honest belief in its truth.

Statement of truth

I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

☒ **I believe** that the facts stated in this form and any continuation sheets are true.

☐ **The applicant** believes that the facts stated in this form and any continuation sheets are true. **I am authorised** by the applicant to sign this statement.

☐ **The respondent** believes that the facts stated in this form and any continuation sheets are true. **I am authorised** by the respondent to sign this statement.

Signature

N. Zahmoul.

☒ Applicant

☐ Respondent

☐ Applicant's legal representative (as defined by FPR 2.3(1))

☐ Respondent's legal representative (as defined by FPR 2.3(1))

Date

Day

Month

Year

7th

03

2024

Full name

Nadia Zahmoul

Name of the legal representative's firm

Acting in Person

If signing on behalf of firm or company give position or office held

Address details for service of documents

Please only complete this section if you wish to change your address for service. The court will use the address for service you provided in your divorce, dissolution or (judicial) separation proceedings if you do not provide one here.

Do you wish to keep your contact details confidential from your spouse or civil partner?

☐ Yes. Please complete the separate **C8** form with your details in order to do this.

☒ No

If you want to keep your contact details confidential, **do not complete this question**. Please complete form **C8**.

Building and street

3093 Arrowhead Rd

Second line of address

Town or city

Teton Village

County (optional)

Wyoming

Country

U.S.A.

Postcode

8 3 0 2 5

Email address

N a d i a @ r o s e k r o s s
.
c o m

Phone number (optional)

0 7 9 1 3 3 2 8 6 1 5

If the court needs to contact you, it will be able to do so more quickly if you provide your email address and phone number.

The email address should not be the same as the one given for your husband/ wife/civil partner.

Court fee

What you need to pay

the court fee is

£167

How to pay the court fee

☐ I have not included payment because

- ☐ I have applied for Help with Fees online and my reference number is

H	W	F						
---	---	---	--	--	--	--	--	--

- ☐ I am applying for Help with Fees, see attached form **EX160**
- ☐ Other – please explain why

☒ A debit or credit card payment

☒ I will pay over the phone.

- ☐ please email me details on how to pay, my email address is

[illegible][illegible][illegible]

- ☐ I attach a **cheque or postal order**, made payable to 'HMCTS'

 Fee account details – for use by legal professionals

P	B	A	0	0	9	4	3	0	3
---	---	---	---	---	---	---	---	---	---

Your reference (if

[illegible]

Court fee

You can find the current fee in leaflet EX50 Civil and Family Court Fees which can be downloaded from:

<https://www.gov.uk/government/collections/court-and-tribunal-forms>

If you cannot afford the court fee

You may not have to pay a fee, or you may get some money off it if you only have a small amount of savings and investments, receive certain benefits or are on a low income.

You can apply for help with court and tribunal fees online at www.gov.uk/help-with-court-fees or through the 'EX160 Apply for help with fees' form and 'EX160A – How to apply for help with fees' guidance.

A debit or credit card payment. To pay the court fee over the phone, you should call the Court that is currently managing your case.

Fee account – a way for solicitors, local authorities and other regular users to make payments relating to civil and family cases.

Please send your completed application and copies to the court that is managing your case.

The addresses can be found here:

<https://www.find-court-tribunal.service.gov.uk>

Summary

This is not an application to reopen the evidence, nor is it an application to submit new evidence. In fact, this is not even an application because I am not seeking anything. This is a statement I am addressing to the Court because the respondent has made a mockery of the court process and his brazen arrogance and contempt for court were prevalent even at the Final Hearing.

In this note, I will argue and demonstrate that the respondent made false representations under oath during the Final Hearing, and intentionally misled the Court. Furthermore, he instructed his counsel to make statements which he knew to be false. I don't need the approval of the respondent's legal representatives because I am not asking to reopen the evidence. I am asking the Court to recall what the respondent said last week and compare it to the facts. Nothing more.

In this statement, I will demonstrate that the respondent was dishonest at the trial, he intentionally misled the Court, made false statements under oath, mismarked and misreported assets on form ES2, and continued to do so until the very end of these proceedings. Not even the solemnity of the Final Hearing, the witness stand, or the immense privilege of addressing the Court dampened his vindictiveness, his malevolence, and his spiteful determination to "punish" me. He has shown a complete lack of moral and human decency.

Oxus SPAC: False Representations at the Final Hearing (19th – 28th February, 2024)

The ES2 asset schedule the respondent submitted for the Final Hearing identifies Oxus Acquisition Corp. as a "non-matrimonial business interest" and attributes a fair market value of "zero" to the 50,000 Oxus shares as of 19th February 2024.

This is a false representation.

The respondent instructed his counsel to state in closing submissions at the Final Hearing that "the Oxus shares are worth nothing".

This is false representation.

There are **three key dates** which determine the value of the respondent's Oxus shares: the Grant date, the Trigger date, and the Lock-Up period.

Please note a very important point: the critical difference between Vesting Period vs Lock-Up Period is the legal ownership of the asset. Unvested shares are securities for which one does not have legal ownership. Legal economic ownership accrues incrementally over time as the shares vest. By contrast, Lock-Up Period applies to shares which are already fully owned by the individual. The respondent has full ownership of the 50,000 shares in Oxus. He may be restricted as to when he can sell them, but there is no question that he has full legal ownership of the shares as of the Grant date,

and the shares became valuable on the date of the Business Combination.

1. The Founders shares were granted to the respondent on 7th June 2022

The following paragraph is an excerpt from page 340 of the SEC Proxy Statement and Prospectus dated 16 January 2024 which is included in the exhibits to this application.

*“On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, **Mr. Karim Zahmoul** was appointed as independent director. **On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or \$0.33 per share.** The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model”.*

The following paragraph is an excerpt from page 30 of the SEC Proxy Statement and Prospectus dated 16 January 2024. It states that the value of the respondent's beneficial ownership in Oxus is approximately \$565,000 (\$1,695,000/3).

*“The beneficial ownership of Oxus' independent directors, Christophe Charlier, **Karim Zahmoul** and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares”.*

2. ... Subject to a Performance Condition (i.e. the occurrence of a Business Combination).

Thus, the trigger for assigning a fair value to the Founders shares (using Monte Carlo or Black Scholes simulation models) is the Performance Condition, i.e. the closing of the Business Combination which occurred on **7th February 2024**. If the merger transaction does not close, the Founders shares become worthless. If the merger transaction closes, then the Founders shares become valuable, and their fair market value can be calculated every day and marked-to-market as evidenced in the company's prospectus and SEC filings.

The Business Combination was consummated on 7th February 2024 and on 8th February 2024 Newco began trading on Nasdaq under the ticker symbol BRLS.

Fig. 1 below shows the actual beneficial ownership of Oxus Shares as of September 30, 2023, and pro forma information regarding the beneficial ownership of New Borealis Common Shares on the date of the Closing. Oxus believes that all persons named in the table have sole voting and

investment power with respect to all shares beneficially owned by them. The following table *does not reflect record or beneficial ownership of Oxus' warrants* because such warrants are not exercisable within 60 days of the date of this proxy statement/prospectus. The calculation of the pre-transaction percentage of beneficial ownership for Oxus is based on 6,552,131 Oxus Shares outstanding as of January 11, 2024. The calculation of the pre-transaction percentage of beneficial ownership for Borealis is based on 167,159,371 Borealis Shares outstanding as of September 30, 2023.

Fig 1: Beneficial ownership: Directors, Executive Officers and Sponsor of Oxus (page 287)

Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Current Directors and Executive Officers of and Sponsor of Oxus:						
Oxus Capital Pte. Ltd ⁽²⁾	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kenges Rakishev	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kanat Mynzhanov ⁽⁴⁾⁽¹¹⁾	—	—	—	—	—	—
Askar Mametov ⁽¹¹⁾	—	—	—	—	—	—
Karim Zahmoul	50,000	*	50,000	*	50,000	*
Christophe Charlier	50,000	*	50,000	*	50,000	*
Shiv Vikram Khemka	50,000	*	50,000	*	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500 ⁽⁴⁾⁽⁵⁾	65.82%	5,686,333	25.25%	5,686,333	27.63%
Directors and Executive Officers of New Borealis After Consummation of the Business Combination:						
Reza Soltanzadeh	55,376,531 ⁽⁸⁾⁽⁹⁾	33.13%	3,230,969	14.35%	3,230,969	16.28%
Barthelemy Helg	48,494,719 ⁽¹⁰⁾	29.01%	3,230,969	14.35%	3,230,969	16.28%
Stephen Wegrzyn	—	—	33,430	*	33,430	*
Pouneh Rahimi	—	—	194,574	*	194,574	*
Matt Talle	—	—	217,139	*	217,139	*
Henry Wong	—	—	6,143	*	33,430	*
Kanat Mynzhanov	—	—	200,000	*	200,000	*
Shiv Vikram Khemka	—	—	50,000	*	50,000	*
Shukhrat Ibragimov ⁽¹²⁾	—	—	2,754,716	12.23%	2,754,716	13.39%
Steven Oyer	—	—	—	—	—	—
Ertharin Cousin	—	—	—	—	—	—
All directors and executive officers as a group (nine individuals)	3,871,250	62.14%	9,466,654	42.04%	9,466,654	45.95%
Five Percent or More Holders and Certain Other Holders:						
Meteora Capital, LLC ⁽⁶⁾	402,598	6.14%				
Boothbay Fund Management, LLC ⁽⁷⁾	235,331	3.59%				

* less than 1%

** indeterminable in maximum redemption scenario

(1) Unless otherwise noted, the business address of each of the following entities or individuals is c/o Oxus Acquisition Corp., 300/26 Dostyk Avenue, Almaty, Kazakhstan 050020.

(2) Represents securities held by Oxus Capital Pte. Ltd., our Sponsor, of which Kenges Rakishev is the controlling shareholder.

- (3) Consists of 1,500,000 Class A Shares and 2,662,500 Class B Shares.
- (4) Does not include certain shares indirectly owned by this individual as a result of his membership interest in our Sponsor.
- (5) Interests shown include founder shares, classified as Class B ordinary shares. Such shares are convertible into Class A ordinary shares on a one for one basis, subject to adjustment.
- (6) Consists of 402,598 Class A Shares of Oxus. Based on a Schedule 13G filed on April 11, 2023, by Meteora Capital, LLC, a Delaware limited liability company ("Meteora Capital") with respect to the ordinary shares held by certain funds and managed accounts to which Meteora Capital serves as investment manager (collectively, the "Meteora Funds"); and Vik Mittal, who serves as the Managing Member of Meteora Capital, with respect to the ordinary shares held by the Meteora Funds. The address of the principal business office for each of the reporting persons is 1200 N Federal Hwy, #200, Boca Raton FL 33432.
- (7) Based on a Schedule 13G filed on April 5, 2023, by Boothbay Fund Management, LLC, a Delaware limited liability company; Boothbay Absolute Return Strategies LP, a Delaware limited partnership; and Ari Glass, a citizen of the United States. The units are held by one or more private funds (the "Funds"), which are managed by Boothbay Fund Management, LLC, a Delaware limited liability company (the "Adviser"). Ari Glass is the Managing Member of the Adviser. Certain subadvisors ("Subadvisors") have been delegated the authority to act on behalf of the Funds, including exclusive authority to vote and/or direct the disposition of certain Class A Shares held by the Fund, and such Class A Shares may be reported in regulatory filings made by such Subadvisors. The address of the principal business office for each of the reporting persons is 140 East 45th Street, 14th Floor, New York, NY 10017.
- (8) Consists of 55,376,531 Class A Common Shares of Borealis Foods Inc.
- (9) Represents Securities held by Zagros Alpine Capital ULC, which consists of 53,440,906 Class A Common Shares, and Securities held by Z Ventures Inc., which consists of 1,935,625 Class A Common Shares. Reza Soltanzadeh is the President of Zagros Alpine Capital ULC and Z Ventures Inc. and has sole voting and dispositive control over the shares held by Zagros Alpine Capital ULC and Z Ventures Inc.
- (10) Consists of 48,494,719 Class A Common Shares of Borealis Foods Inc.

3. Third Key Date: Lock-Up Agreements

The following paragraph is an extract from Form 8-K filed on 7th February 2024 with the SEC. It defines the Lock-Up periods as follows:

*"At Closing, the holders entered into Lock-Up Agreements, pursuant to which (A) 50% of the New Borealis Common Shares held by either a director, officer, or 5% or greater holder party to such agreements (the "**Restricted Securities**") will be locked-up during the period commencing from Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of New Borealis Common Shares equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from Closing and ending on 12 months after the date of Closing, subject to certain specifications and exceptions".*

To sum up, the trigger dates are as follows:

- a) Grant date: 7th June 2022
- b) Shares become valuable on Merger date: 7th February 2024
- c) Shares can be sold according to the Lock-Up schedule.

Conclusion:

On 19th February 2024 when the Final Hearing for BV20D01752 started, the respondent knew that the value of the Oxus shares was NOT zero because the Business Combination had already been consummated on 7th February 2024, and because 7th February comes before 19th February on the timeline.

On 19th February 2024, it was wrong on the part of the respondent to instruct his counsel to state in her

submissions that the “Oxus shares are worth nothing” because at that time, their fair market value was approximately \$0.5 million depending on which valuation model is used (Monte Carlo, Black Schole).

Lastly, and in order to pre-empt any future useless and costly back-and-forth and waste of time, I would like to reiterate that the Lock-Up period has nothing to do with the value of the shares just in case the respondent is tempted to argue that he assigned a value of zero to the shares because of the Lock-Up period.

I attach in enclosures a timeline and the SEC Prospectus filed on 16 January 2024.

The Oxus shares are worth approximately \$0.5 million, and I would like to take this opportunity to tell the Court that this dishonest conduct is permeating everything in the financial remedies and despite my relentless work around the clock for four years, it is humanly impossible to unwind every single asset, bank account, tax computation, crypto wallet, etc...It is an impossible task, the resources are on his side and he controls the assets, the information, and the unknowns.

Date	SEC Document Type	Description of Document	Applicant's Comments
2021			
4/1/2021	Form S-1	REGISTRATION STATEMENT UNDER THE SECURITIES ACT OF 1933. Oxus Acquisition Corp, a newly formed blank check company (SPAC) incorporated as a Cayman Island exempted company for the purpose of entering into a merger, share exchange, asset acquisition, share purchase, recapitalization, reorganization or other similar business combination with one or more businesses or entities, referred to as "Target Business". This form S-1 is the Draft Registration / preliminary prospectus for the IPO of the securities issued by Oxus. Each unit has an offering price of \$10.00 and consists of one Class A ordinary share and one-half of one warrant. Each whole warrant entitles the holder thereof to purchase one Class A ordinary share at a price of \$11.50 per share	
8/19/2021	Form S-1 (1st amendment)	Each unit has an offering price of \$10.00 and consists of one Class A ordinary share and one warrant. Each warrant entitles the holder thereof to purchase one Class A ordinary share at a price of \$11.50 per share, subject to adjustment as described herein. Each warrant will become exercisable 30 days after the completion of the initial business combination and will expire on the fifth anniversary of the completion of an initial business combination, or earlier upon redemption or liquidation.	
9/2/2021	Nasdaq Form 8-A 12 (b)	Registration of (i) Units, each consisting of one Class A ordinary share and one warrant, (ii) of Class A ordinary shares with par value of \$0.0001 per share, and Warrants, each whole warrant exercisable for one Class A ordinary share at an exercise price of \$11.50.	
9/2/2021	SEC Notice of Effectiveness of Form S-1		
9/2/2021	Pursuant to SEC Rule 424 (b) (4)	PROSPECTUS	
02/09/2021 (reported 9 sept 2021)	Form 8-K	On 8 Sept 2021 the Cie raised \$150m in a public offering. A total of \$153,000,000 of the net proceeds from the Offering and the Private Placement was placed in a trust account established for the benefit of the Company's public shareholders (the "Trust Account"), with Continental acting as trustee.	
08-Sep-21	Form 8-K	On September 8, 2021, Oxus Acquisition Corp., a Cayman Islands exempted company (the "Company"), consummated its initial public offering (the "Offering") of 15,000,000 units (the "Units"). The Units were sold at an offering price of \$10.00 per Unit, generating gross proceeds of \$150,000,000. Simultaneously with the consummation of the Offering, Oxus completed a private placement of an aggregate of 8,400,000 warrants (the "Private Placement Warrants") at a price of \$1.00 per Private Placement Warrant, generating gross proceeds of \$8,400,000 (the "Private Placement"). A total of \$153,000,000 of the net proceeds from the Offering and the Private Placement was deposited in a trust account established for the benefit of the Company's public shareholders. On September 9, 2021, the underwriters notified the Company of their exercise of the over-allotment option in full and purchased 2,250,000 additional Units at \$10.00 per Unit upon the closing of the over-allotment option, generating gross proceeds of \$22,500,000	
2022			
01/06/2022	SEC-Form 8-K	Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the Audit Committee of the BOD.	

Date	SEC Document Type	Description of Document	Applicant's Comments
03/06/2022	Exhibit 24.1 to SEC-Form 8-K	Karim Zahmoul causes POA to be executed KNOW ALL BY THESE PRESENTS, that the undersigned hereby constitutes and appoints each and any of Alan I _ Annex, Jason T. Simon, Yuta N. Delarck, and Yangyang Jia its hue and lawful attorney-in-fact and agent, with full power of substitution and re-substitution, for it and in its name, place and stead, in any and all capacities (until revoked in writing) to Sign any and all instruments, certificates and documents appropriate or required to be executed on behalf of the undersigned pursuant to sections 13 and 16 of the Securities Exchange Act of 1934, as amended (the "Exchange Act"), and any and all regulations promulgated thereunder (including, without limitation, any Joint Filing Agreement with respect thereto), and to file the same, with all exhibits thereto, and any other documents in connection therewith, with the Securities and Exchange Commission (the "SEC"), and with any other entity when and if such is mandated by the Exchange Act or by the Bylaws of the Financial Industry Regulatory Authority; 2. prepare, execute, acknowledge, deliver and file a Form ID (including any amendments or authentications thereto) with respect to obtaining EDGAR codes, with the SEC; 3. seek or obtain, as the representative of the undersigned and on behalf of the undersigned, information on transactions in securities, from any third party, including brokers, employee benefit plan administrators and trustees, and the undersigned hereby authorizes any such person to release any such information to such attorneys-in-fact and the undersigned approves and ratifies any such release of information; and 4. perform any and all other acts which in the discretion of such attorneys-in-fact are necessary or desirable for and on behalf of the undersigned in connection with the foregoing.	Date as of which he had knowledge of appointment and share allocation contrary to HFC's representation of appointment and contingent compensation.
06/06/2022	SEC-Form 8-K Current Report	SEC-Form 8 Accepted Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the Audit Committee of the BOD.	
06/06/2022	Letter from HFC to Withers	<i>My client has been offered a directorship role in an SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this but they will be provided once executed.'</i>	Factually incorrect as Mr. Zahmoul (1) was appointed to the BOD on 1 June 2022; and (2) caused a POA to be executed on 3 June 2022 which facilitated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A shares. None of this was disclosed by HFC. In fact, HFC goes out of their way to mislead us: 'he may receive shares in the company subject to its performance'.
06/06/2022	Letter from HFC to Withers	<i>My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are.'</i>	Factually incorrect as Mr. Zahmoul caused a POA to be executed on 3 June 2022 which facilitated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A Shares.
07/06/2022	SEC-Form 3 Initial Statement of Beneficial Ownership of Securities	INITIAL STATEMENT OF BENEFICIAL OWNERSHIP OF SECURITIES. Karim Zahmoul receives 50,000 Class A Ordinary Shares in Oxus Acquisition Corp.	HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."
09/06/2022	SEC-Form 3 Initial Statement of Beneficial Ownership of Securities	INITIAL STATEMENT OF BENEFICIAL OWNERSHIP OF SECURITIES. SEC-Form 3 Files Karim Zahmoul receives 50,000 Class A Ordinary Shares in Oxus Acquisition Corp.	HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."
17/06/2022	Yahoo Finance	OXUS Shares @ \$9.99 per Share; Current Enterprise Value of 215.36 Million	Increase in Net Worth of \$500,000 despite claim that he "may receive shares in the company subject to its performance." This is not a performance bonus, this is a joining bonus and it is not contingent on performance benchmarks.
2023			
23/02/2023	Reg FD	Business Combination Agreement. On February 24, 2023, Oxus Acquisition Corp. and Borealis Foods Inc., a corporation incorporated under the laws of Canada, jointly issued a press release announcing the execution of a business combination agreement on February 23, 2023	

Date	SEC Document Type	Description of Document	Applicant's Comments
03/03/2023	SEC-Form 8-K	EXTRAORDINARY GENERAL MEETING. On March 3, 2023, in connection with the Extraordinary General Meeting, Oxus filed an amendment (the "Charter Amendment") to the Company's Amended and Restated Memorandum and Articles of Association (the "Charter") with the Registrar of Companies in the Cayman Islands to (1) extend the date by which the Company must consummate its initial business combination from March 8, 2023 to December 8, 2023 , or such earlier date as determined by the Company's board of directors (the "Extended Date") and (2) provide for the right of a holder of Class B ordinary shares of the Company to convert into Class A ordinary shares on a one-for-one basis prior to the closing of a business combination at the election of such holder. The Company's shareholders approved the Charter Amendment at the Extraordinary General Meeting on March 2, 2023.	
14/08/2023	SEC-Form S-4	REGISTRATION STATEMENT UNDER THE SECURITIES ACT OF 1933 PROXY STATEMENT AND PROSPECTUS	
13/11/2023	SEC-Form S-4 (2nd amendment)	BENEFICIAL OWNERSHIP OF DIRECTORS: The beneficial ownership of Oxus' independent directors, Christophe Charlier, Karim Zahmoul and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,657,500 based on the closing price of Class A Shares of \$11.05 on the Nasdaq on October 17, 2023. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares; LOCK-UP AGREEMENTS: In connection with the Closing, Oxus and certain directors/officers/five percent or greater shareholders of Borealis (the "Subject Party") will enter into Lock-Up Agreements, pursuant to which (A) 50% of the shares of New Borealis held by the Subject Party (the "Restricted Securities") will be locked-up during the period commencing from the Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of common shares of New Borealis equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from the Closing and ending on 12 months after the date of the Closing, subject to certain specifications and exceptions.	
2024			
16/01/2024	Proxy Statement and Prospectus	See Summary of Key Points	
07/02/2024	Form 8-K	CLOSING OF BUSINESS COMBINATION: On February 7, 2024 (the "Closing Date"), Borealis Foods Inc., a corporation incorporated under the laws of Canada ("Borealis"), Oxus Acquisition Corp., a Cayman Islands exempted company ("Oxus"), and 1000397116 Ontario Inc., an Ontario corporation and a wholly owned subsidiary of Oxus ("Newco"), consummated the transactions (collectively, the "Transaction") contemplated by the Business Combination Agreement, dated as of February 23, 2023, EXCHANGE RATE OF EQUITY. Upon the closing of the Transaction, the following occurred: The common shares of Borealis were exchanged for shares of New Borealis Common Shares equal to the quotient of (a) \$150,000,000 minus Borealis' Closing Net Indebtedness, as agreed to by the parties, of \$17,000,000, which equals \$133,000,000, divided by (b) \$10.00 (the "Aggregate Transaction Consideration"). Each Borealis Common Share was exchanged for 0.0661 of a New Borealis Common Share, which is equal to the quotient obtained by dividing the Aggregate Transaction Consideration by the aggregate number of Borealis Common Shares issued and outstanding immediately prior to the Borealis Amalgamation. As of the Closing Date, the Aggregate Transaction Consideration was 13,300,000 New Oxus Common Shares, and was based on 201,206,834 Borealis Common Shares issued and outstanding, with an exchange rate of 0.0661, which the process is described in the final prospectus and definitive proxy statement, dated January 16, 2024 (the "ProIndustry Regulatory Authority);	
08/02/2024	NASDAQ Press Release	Borealis Foods Inc commenced trading on the Nasdaq under the ticker symbol "BRLS" on February 8, 2024.	

Form type	Form description	Filing date	Reporting date
4	Statement of changes in beneficial ownership of securities	2024-02-29	2024-02-28
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
3	Initial statement of beneficial ownership of securities	2024-02-20	2024-02-07
SC 13D	General statement of acquisition of beneficial ownership	2024-02-14	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-14	
SC 13D	General statement of acquisition of beneficial ownership	2024-02-14	
SC 13D	General statement of acquisition of beneficial ownership	2024-02-14	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-14	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2024-02-13	
4	Statement of changes in beneficial ownership of securities	2024-02-13	2024-02-09
3	Initial statement of beneficial ownership of securities	2024-02-13	2024-02-07
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-13	
8-K	Current report	2024-02-13	2024-02-07
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-13	
4	Statement of changes in beneficial ownership of securities	2024-02-09	2024-02-07
4	Statement of changes in beneficial ownership of securities	2024-02-09	2024-02-07
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-09	
25-NSE	Notification filed by national security exchange to report the removal from listing and registration of matured, redeemed or retired securities	2024-02-07	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2024-02-07	
425	Prospectuses and communications, business combinations	2024-02-02	

8-K	Current report	2024-02-02	2024-02-02
425	Prospectuses and communications, business combinations	2024-01-17	
EFFECT	Notice of Effectiveness	2024-01-16	
424B3	Prospectus [Rule 424(b)(3)]	2024-01-16	
CORRESP	Correspondence	2024-01-12	
S-4/A	Registration of securities, business combinations - amendment	2024-01-12	
S-4/A	Registration of securities, business combinations - amendment	2024-01-05	
S-4/A	Registration of securities, business combinations - amendment	2023-12-26	
CORRESP	Correspondence	2023-12-22	
8-K	Current report	2023-12-07	2023-12-05
UPLOAD	SEC-generated letter	2023-11-24	
DEF 14A	Other definitive proxy statements	2023-11-20	2023-12-05
10-Q	Quarterly report [Sections 13 or 15(d)]	2023-11-20	2023-09-30
NT 10-Q	Notification of inability to timely file Form 10-Q or 10-QSB	2023-11-14	2023-09-30
CORRESP	Correspondence	2023-11-13	
S-4/A	Registration of securities, business combinations - amendment	2023-11-13	
UPLOAD	SEC-generated letter	2023-11-09	
PRE 14A	Other preliminary proxy statements	2023-11-08	2023-11-07
S-4/A	Registration of securities, business combinations - amendment	2023-10-24	
CORRESP	Correspondence	2023-10-23	
8-K	Current report	2023-10-06	2023-10-02
UPLOAD	SEC-generated letter	2023-09-11	
10-Q	Quarterly report [Sections 13 or 15(d)]	2023-08-18	2023-06-30
425	Prospectuses and communications, business combinations	2023-08-17	
8-K	Current report	2023-08-17	2023-08-11
425	Prospectuses and communications, business combinations	2023-08-16	
8-K	Current report	2023-08-16	2023-08-16
NT 10-Q	Notification of inability to timely file Form 10-Q or 10-QSB	2023-08-15	2023-06-30
S-4	Registration of securities, business combinations	2023-08-14	
8-K	Current report	2023-06-13	2023-06-12

10-Q	Quarterly report [Sections 13 or 15(d)]	2023-05-22	2023-03-31
NT 10-Q	Notification of inability to timely file Form 10-Q or 10-QSB	2023-05-12	2023-03-31
4	Statement of changes in beneficial ownership of securities	2023-04-14	2023-04-12
8-K	Current report	2023-04-12	2023-04-05
SC 13G	Statement of acquisition of beneficial ownership by individuals	2023-04-11	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2023-04-05	
3	Initial statement of beneficial ownership of securities	2023-04-05	2023-03-31
10-K	Annual report [Section 13 and 15(d), not S-K Item 405]	2023-03-31	2022-12-31
425	Prospectuses and communications, business combinations	2023-03-03	
8-K	Current report	2023-03-03	2023-03-02
425	Prospectuses and communications, business combinations	2023-03-01	
8-K	Current report	2023-03-01	2023-02-23
425	Prospectuses and communications, business combinations	2023-02-28	
8-K	Current report	2023-02-28	2023-02-28
425	Prospectuses and communications, business combinations	2023-02-24	
8-K/A	Current report - amendment	2023-02-24	2023-02-23
8-K	Current report	2023-02-24	2023-02-23
425	Prospectuses and communications, business combinations	2023-02-24	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2023-02-14	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2023-02-13	
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2023-02-10	
DEF 14A	Other definitive proxy statements	2023-02-10	2023-02-28
UPLOAD	SEC-generated letter	2023-02-09	
PRER14A	Preliminary Proxy Soliciting materials	2023-02-07	
PRE 14A	Other preliminary proxy statements	2023-01-30	2023-01-27
10-Q	Quarterly report [Sections 13 or 15(d)]	2022-11-14	2022-09-30
8-K	Current report	2022-09-14	2022-09-08
10-Q	Quarterly report [Sections 13 or 15(d)]	2022-08-02	2022-06-30
3	Initial statement of beneficial ownership of securities	2022-06-09	2022-06-07
8-K	Current report	2022-06-06	2022-05-31

10-Q	Quarterly report [Sections 13 or 15(d)]	2022-05-23	2022-03-31
NT 10-Q	Notification of inability to timely file Form 10-Q or 10-QSB	2022-05-16	2022-03-31
10-K	Annual report [Section 13 and 15(d), not S-K Item 405]	2022-03-31	2021-12-31
4	Statement of changes in beneficial ownership of securities	2022-03-10	2022-03-09
3	Initial statement of beneficial ownership of securities	2022-03-09	2022-03-09
SC 13G/A	Statement of acquisition of beneficial ownership by individuals - amendment	2022-02-14	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2022-02-14	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2022-02-10	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2022-02-03	
SC 13G	Statement of acquisition of beneficial ownership by individuals	2021-12-13	
10-Q	Quarterly report [Sections 13 or 15(d)]	2021-11-15	2021-09-30
SC 13G	Statement of acquisition of beneficial ownership by individuals	2021-09-20	
8-K	Current report	2021-09-15	2021-09-08
8-K	Current report	2021-09-09	2021-09-02
424B4	Prospectus [Rule 424(b)(4)]	2021-09-07	
EFFECT	Notice of Effectiveness	2021-09-02	
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
3	Initial statement of beneficial ownership of securities	2021-09-02	2021-09-02
CERT	Form - CERT	2021-09-02	
8-A12B	Registration of securities [Section 12(b)]	2021-09-02	
CORRESP	Correspondence	2021-08-31	
CORRESP	Correspondence	2021-08-31	
CORRESP	Correspondence	2021-08-19	
S-1/A	General form for registration of securities under the Securities Act of 1933 - amendment	2021-08-19	
UPLOAD	SEC-generated letter	2021-08-12	
S-1	General form for registration of securities under the Securities Act of 1933	2021-07-27	

CORRESP	Correspondence	2021-07-26	079
UPLOAD	SEC-generated letter	2021-04-29	
DRS	Draft Registration Statement	2021-04-02	

Filed Pursuant to Rule 424(b)(3)
Registration No. 333-273967
PROXY STATEMENT AND PROSPECTUS
DATED JANUARY 16, 2024

OXUS ACQUISITION CORP. (excerpts)

300/26 Dostyk Avenue

Almaty, Kazakhstan 050020

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The beneficial ownership of Oxus' independent directors, Christophe Charlier, **Karim Zahmoul** and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares;

- the fact that given the differential in the purchase price that the Sponsor paid for the Founder Shares as compared to the price of the Public Units sold in the IPO and the substantial number of Class A Shares that the Sponsor will receive upon conversion of the Founder Shares in connection with the Business Combination, **the Sponsor may earn a positive rate of return on their investment even if the Class A Shares trade below the price initially paid for the Public Units in the IPO** and the public shareholders experience a negative rate of return following the completion of the Business Combination;

PAGE 43: Lock-Up Agreements

In connection with the Closing, Oxus and certain directors/officers/five percent or greater shareholders of Borealis (the "Subject Party") will enter into Lock-Up Agreements, pursuant to which (A) 50% of the shares of New Borealis held by the Subject Party (the "Restricted Securities") will be locked-up during the period commencing from the Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of common shares of New Borealis equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from the Closing and ending on 12 months after the date of the Closing, subject to certain specifications and exceptions.

PAGE 245-246:**Directors and Officers**

The below lists Oxus' current officers and directors.

Name	Age	Title
Kenges Rakishev	44	Non-executive Chairman and Director
Kanat Mynzhanov	40	Chief Executive Officer and Director
Askar Mametov	40	Chief Financial Officer
Christophe Charlier	51	Director
Karim Zahmoul	58	Director
Shiv Vikram Khemka	61	Director

Karim Zahmoul has served as one of Oxus' independent directors since June 2022. Mr. Zahmoul has 25 years of investment banking experience. He has served as a Founder and CEO of EMVirya Ltd, an FCA regulated investment advisor based in London since February 2018. EMVirya Ltd, is a privately held financial services firm with extensive experience in global emerging markets that is positioning itself at the cross road of Emerging markets and renewable energy. Prior to founding EMVirya, Mr. Zahmoul was a Partner at Temporis Capital from September 2014 to April 2017 in London, where he was responsible for the firm's international investments business and developed renewable energy project in the emerging market jurisdiction including extended focus in Morocco and Argentina. Prior to that from 2004 to 2014, Mr. Zahmoul was a Managing Director at Barclays Investment Bank where he held various senior positions over his 10-year tenure at the bank. In his last position, he was responsible for the Global Emerging Market business for the investment bank. Prior to Barclays from 1999 to 2004, Mr. Zahmoul spent five years at Deutsche Bank where he was a Managing Director and Head of Emerging Market Structuring for the Americas in New York. He started his financial career and spent six years at Goldman Sachs, in both New York and London, where his last position was Executive Director in EEMEA Trading. Mr. Zahmoul received an MSc and a BSc from Columbia School of Engineering and Applied Sciences in Operation Research and a BA in Physics from Columbia College.

PAGE 248:**Number and Terms of Office of Officers and Directors**

The Oxus Board consists of five members. The Oxus Board is divided into three classes, with only one class of directors being elected in each year, and with each class (except for those directors appointed prior to Oxus' first annual meeting of stockholders) serving a three-year term. The term of office of the first class of directors, consisting of **Karim Zahmoul**, will expire at Oxus' first annual meeting of shareholders. The term of office of the second class of directors, consisting of Christophe Charlier and Shiv Vikram Khemka, will expire at Oxus' second annual meeting of

shareholders. The term of office of the third class of directors, consisting of Kenges Rakishev and Kanat Mynzhanov, will expire at Oxus' third annual meeting of shareholders.

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Audit Committee

Oxus gas established an audit committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The audit committee's duties, which are specified in Oxus' Audit Committee Charter, include, but are not limited to:

- reviewing and discussing with management and the independent auditor the annual audited financial statements, and recommending to the board whether the audited financial statements should be included in Oxus' Form 10-K;
- discussing with management and the independent auditor significant financial reporting issues and judgments made in connection with the preparation of Oxus' financial statements;
- discussing with management major risk assessment and risk management policies;
- discussing with management major risk assessment and risk management policies;
- monitoring the independence of the independent auditor;
- verifying the rotation of the lead (or coordinating) audit partner having primary responsibility for the audit and the audit partner responsible for reviewing the audit as required by law;
- reviewing and approving all related party transactions;
- inquiring and discussing with management Oxus' compliance with applicable laws and regulations;
- pre-approving all audit services and permitted non-audit services to be performed by Oxus' independent auditor, including the fees and terms of the services to be performed;
- appointing or replacing the independent auditor;
- determining the compensation and oversight of the work of the independent auditor (including resolution of disagreements between management and the independent auditor regarding financial reporting) for the purpose of preparing or issuing an audit report or related work;
- establishing procedures for the receipt, retention and treatment of complaints received by Oxus regarding accounting, internal accounting controls or reports which raise material issues regarding Oxus' financial statements or accounting policies; and

- approving reimbursement of expenses incurred by Oxus' management team in identifying potential target businesses.

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Financial Experts on Audit Committee

The audit committee will at all times be composed exclusively of "independent directors" who are "financially literate" as defined under the Nasdaq's listing standards. The Nasdaq's standards define "financially literate" as being able to read and understand fundamental financial statements, including a company's balance sheet, income statement and cash flow statement.

In addition, Oxus must certify to the Nasdaq that the committee has, and will continue to have, at least one member who has past employment experience in finance or accounting, requisite professional certification in accounting, or other comparable experience or background that results in the individual's financial sophistication. The board of directors has determined that Christophe Charlier qualifies as an "audit committee financial expert," as defined under rules and regulations of the SEC.

Nominating Committee

Oxus has established a nominating committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The nominating committee is responsible for overseeing the selection of persons to be nominated to serve on the Oxus Board. The nominating committee considers persons identified by its members, management, shareholders, investment bankers and others.

Guidelines for Selecting Director Nominees

The guidelines for selecting nominees, which are specified in the Nominating Committee Charter, generally provide those persons to be nominated:

- **should have demonstrated notable or significant achievements in business, education or public service;**
- should possess the requisite intelligence, education and experience to make a significant contribution to the board of directors and bring a range of skills, diverse perspectives and backgrounds to its deliberations; and
- **should have the highest ethical standards, a strong sense of professionalism and intense dedication to serving the interests of the shareholders.**

The Nominating Committee will consider a number of qualifications relating to management and leadership experience, background and integrity and professionalism in evaluating a person's candidacy for membership on the board of directors. The nominating committee may require certain skills or attributes, such as financial or accounting experience, to meet specific board needs that arise from time to time and will also consider the overall experience and makeup of its

members to obtain a broad and diverse mix of board members. The nominating committee does not distinguish among nominees recommended by shareholders and other persons.

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Compensation Committee

Oxus has established a compensation committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The compensation committee's duties, which are specified in Oxus' Compensation Committee Charter, include, but are not limited to:

- reviewing and approving on an annual basis the corporate goals and objectives relevant to Oxus' Chief Executive Officer's compensation, evaluating Oxus' Chief Executive Officer's performance in light of such goals and objectives and determining and approving the remuneration (if any) of Oxus' Chief Executive Officer based on such evaluation;
- reviewing and approving the compensation of all of Oxus' other executive officers;
- reviewing Oxus' executive compensation policies and plans;
- implementing and administering Oxus' incentive compensation equity-based remuneration plans;
- assisting management in complying with Oxus' proxy statement and annual report disclosure requirements;

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- approving all special perquisites, special cash payments and other special compensation and benefit arrangements for Oxus' executive officers and employees;
- if required, producing a report on executive compensation to be included in Oxus' annual proxy statement; and
- reviewing, evaluating and recommending changes, if appropriate, to the remuneration for directors.

Code of Ethics

Oxus has adopted a code of ethics that applies to all of Oxus' executive officers, directors and employees. The code of ethics codifies the business and ethical principles that govern all aspects of Oxus' business.

Legal Proceedings

As of the date of this proxy statement/prospectus, to the knowledge of Oxus' management, there was no material litigation, arbitration or governmental proceeding pending against Oxus or any

members of Oxus' management team in their capacity as such, and Oxus and the members of Oxus' management team have not been subject to any such proceeding.

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Unless otherwise indicated, Oxus believes that all persons named in the table have sole voting and investment power with respect to all shares beneficially owned by them. **The following table does not reflect record or beneficial ownership of Oxus' warrants because such warrants are not exercisable within 60 days of the date of this proxy statement/prospectus.** The calculation of the pre-transaction percentage of beneficial ownership for Oxus is based on 6,552,131 Oxus Shares outstanding as of January 11, 2024. The calculation of the pre-transaction percentage of beneficial ownership for Borealis is based on 167,159,371 Borealis Shares outstanding as of September 30, 2023.

Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Current Directors and Executive Officers of and Sponsor of Oxus:						
Oxus Capital Pte. Ltd. ⁽²⁾	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kenges Rakishev	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kanat Mynzhanov ⁽⁴⁾⁽¹¹⁾	—	—	—	—	—	—
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Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Askar Mametov ⁽¹¹⁾	—	—	—	—	—	—
Karim Zahmoul	50,000	*	50,000	*	50,000	*
Christophe Charlier	50,000	*	50,000	*	50,000	*
Shiv Vikram Khemka	50,000	*	50,000	*	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500 ⁽⁴⁾⁽⁵⁾	65.82%	5,686,333	25.25%	5,686,333	27.63%
Directors and Executive Officers of New Borealis After Consummation of the Business Combination:						
Reza Soltanzadeh	55,376,531 ⁽⁸⁾⁽⁹⁾	33.13%	3,230,969	14.35%	3,230,969	16.28%
Barthelemy Helg	48,494,719 ⁽¹⁰⁾	29.01%	3,230,969	14.35%	3,230,969	16.28%
Stephen Wegrzyn	—	—	33,430	*	33,430	*
Pouneh Rahimi	—	—	194,574	*	194,574	*
Matt Talle	—	—	217,139	*	217,139	*
Henry Wong	—	—	6,143	*	33,430	*

Kanat Mynzhanov	—	—	200,000	*	200,000	*
Shiv Vikram Khemka	—	—	50,000	*	50,000	*
Shukhrat Ibragimov ⁽¹²⁾	—	—	2,754,716	12.23%	2,754,716	13.39%
Steven Oyer	—	—	—	—	—	—
Ertharin Cousin	—	—	—	—	—	—
All directors and executive officers as a group (nine individuals)						
	3,871,250	62.14%	9,466,654	42.04%	9,466,654	45.95%
Five Percent or More Holders and Certain Other Holders:						
Meteora Capital, LLC ⁽⁶⁾	402,598	6.14%				
Boothbay Fund Management, LLC ⁽⁷⁾	235,331	3.59%				

* less than 1%

** indeterminable in maximum redemption scenario

- (1) Unless otherwise noted, the business address of each of the following entities or individuals is c/o Oxus Acquisition Corp., 300/26 Dostyk Avenue, Almaty, Kazakhstan 050020.
- (2) Represents securities held by Oxus Capital Pte. Ltd., our Sponsor, of which Kenges Rakishev is the controlling shareholder.
- (3) Consists of 1,500,000 Class A Shares and 2,662,500 Class B Shares.
- (4) Does not include certain shares indirectly owned by this individual as a result of his membership interest in our Sponsor.
- (5) Interests shown include founder shares, classified as Class B ordinary shares. Such shares are convertible into Class A ordinary shares on a one for one basis, subject to adjustment.
- (6) Consists of 402,598 Class A Shares of Oxus. Based on a Schedule 13G filed on April 11, 2023, by Meteora Capital, LLC, a Delaware limited liability company (“Meteora Capital”) with respect to the ordinary shares held by certain funds and managed accounts to which Meteora Capital serves as investment manager (collectively, the “Meteora Funds”); and Vik Mittal, who serves as the Managing Member of Meteora Capital, with respect to the ordinary shares held by the Meteora Funds. The address of the principal business office for each of the reporting persons is 1200 N Federal Hwy, #200, Boca Raton FL 33432.
- (7) Based on a Schedule 13G filed on April 5, 2023, by Boothbay Fund Management, LLC, a Delaware limited liability company; Boothbay Absolute Return Strategies LP, a Delaware limited partnership; and Ari Glass, a citizen of the United States. The units are held by one or more private funds (the “Funds”), which are managed by Boothbay Fund Management, LLC, a Delaware limited liability company (the “Adviser”). Ari Glass is the Managing Member of the Adviser. Certain subadvisors (“Subadvisors”) have been delegated the authority to act on behalf of the Funds, including exclusive authority to vote and/or direct the disposition of certain Class A Shares held by the Fund, and such Class A Shares may be reported in regulatory filings made by such Subadvisors. The address of the principal business office for each of the reporting persons is 140 East 45th Street, 14th Floor, New York, NY 10017.
- (8) Consists of 55,376,531 Class A Common Shares of Borealis Foods Inc.
- (9) Represents Securities held by Zagros Alpine Capital ULC, which consists of 53,440,906 Class A Common Shares, and Securities held by Z Ventures Inc., which consists of 1,935,625 Class A Common Shares. Reza Soltanzadeh is the President of Zagros Alpine Capital ULC and Z Ventures Inc. and has sole voting and dispositive control over the shares held by Zagros Alpine Capital ULC and Z Ventures Inc.
- (10) Consists of 48,494,719 Class A Common Shares of Borealis Foods Inc.
- (11) Does not include shares to be transferred by the Sponsor pursuant to the incentive agreements upon successful completion of the Business Combination.
- (12) Represents securities held by Belphar. Ltd., of which Shukhrat Ibragimov is the controlling shareholder.

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On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, **Mr. Karim Zahmoul** was appointed as independent director. **On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or**

\$0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model.

Email to Judge Re. Safety Incident

High Court BV20D01752

9th April 2024

Your Lordship,

I apologise for writing to Your Lordship while your judgement is still reserved, however I have grave concerns for the safety and security of the children and mine, and legitimate reasons to fear for our lives. These events are material and I feel strongly they should be brought to your attention because they are related to these proceedings and also represent a risk to our safety post-divorce.

In 2023, I was involved in two separate incidents which made me very concerned for our safety. I took steps and reported them to the police. The third incident happened on Sunday 24th March while I was out in Kensington, London with our 16-year-old daughter Lila Mae.

I believe that these tangible threats to our security are directly related to the respondent's position as a Director with Oxus Acquisition Corp. ("Oxus") and his affiliation with Kenes Rakishev ("Rakishev") who ultimately controls Oxus. Since learning of the respondent's appointment to the board of Oxus in June 2022 I immediately became concerned regarding the reasons for his appointment. Until that time, I had not known the respondent to have conducted significant business in Kazakhstan or have significant Kazakh relationships. Moreover, it appeared odd that the respondent, a French-Tunisian businessman having previously focused on renewable energy in the middle East and North Africa, be given such a position of trust by Kazakh businessmen who are known for their insular – even secretive – business dealings.

Rakishev's documented status as a Kazakh Oligarch and Kleptocrat has been the subject of investigation by countless authorities in the United States and the United Kingdom as a result of his involvement in the pilfering and laundering of national assets belonging to the people of Kazakhstan and his reputation as a front-man not only for Karim Massimov ("Massimov"), the former Prime Minister of Kazakhstan and Head of the Kazakh KGB, but also for Ramzan Kadyrov ("Kadyrov"), Chechen warlord leader of the Russian republic of Chechnya and Putin's strongest ally in the war in Ukraine. Kadyrov is the subject of several international sanctions. Most concerning is Rakishev's manufacturing of the Arlan mine-resistant armored platform ("MRAP") military vehicles and his apparent supplying of these vehicles to Kadyrov in violation of international sanctions and in support of the Chechen invasion of the Ukraine in April 2022. International opinion considers the Chechen invasion and Rakishev's facilitation of financial transactions around the globe to ultimately be serving as a means for Russia to be evading sanctions in addition to Kadyrov. Rakishev's various business ventures, including Oxus, are considered to serve the purpose of laundering the proceeds of kleptocracy for the Kazakh Oligarchs and disguising funds derived from Kadyrov.

Whilst the respondent has attempted to minimize the extent of his involvement with Oxus and Rakishev, his standing as part of the “inner circle” amongst the Kazakhs has surfaced in several channels and been posted by Rakishev himself.



Kenes Rakeshev (second from right) and the respondent (second from left) outside Nasdaq on 8th February 2024 when Oxus/Borealis was launched (BRLS).



Head of the Chechen Republic, Ramzan Kadyrov is pictured to the right of Rakishev in an undated photo. Kadyrov is under US sanctions for his involvement in Putin's Ukraine invasion.



Kenes Rakishev (left), a Kazakh businessman worth more than \$950million who became friends and business partners with Hunter, is seen in a photo with Hunter, Joe Biden, and the Prime Minister of Kazakhstan Karim Massimov

During the final hearing I was given the opportunity to touch upon the respondent's laundering of prostitution proceeds generated by Ms. Molina; however, that is but a snapshot of the illicit activities I have discovered during the last four years that the respondent has engaged in. Given his background, it is evident to me that his status with the U.S. Securities and Exchange Commission (SEC) and Financial Conduct Authority (FCA) approval through Enviroya Limited in particular, as well as his established institutional relationship with Forte Securities, may be serving Rakishev's financial goals well beyond Oxus.

Since Sunday 24th March, I have worked relentlessly to research, read, and analyse the publicly available information related to Rakishev in yet another effort to piece together the level of involvement and protection the respondent enjoys amongst such notorious individuals. I have put together a summary of the evidence which supports my belief that the threats to the children and my safety are directly connected to the respondent's dealings in Kazakhstan.

It is crucial for the safety of the children and mine that I have proper legal representation throughout the end of the process to make sure that we are safe and have no ties to the respondent post-divorce. I have not had legal representation since 8th March 2024 and am unable to instruct counsel for the judgement due to lack of funds. My previous solicitor informed me on 18 March 2024 that her firm requires a minimum of £28,000 in order to be re-instructed (£12,000 to discharge the outstanding balance and £16,000 on account for the estimated work related to the judgement).

The respondent has failed to make the MPS payment in April and as a result, I am in a dire financial situation and have no money for our living expenses and basic needs. He did not make the payment for Jade Mia's living expenses as per your LSPO/MPS order of 9 June 2023. Our personal belongings are still in storage since July 2023, I have no money for Lila Mae's educational support, for Easter holidays, and for travel. I am under intense pressure to pay the outstanding invoices for the third-party experts who have supported me throughout the proceedings. The children and I have no home at present and cannot stay in our home in Wyoming because I am unable to pay the outstanding maintenance and property charges owed to the management company which are approximately \$40k. The management company asked if the charges for our home could be paid from the rental revenue of the second, unoccupied property but the respondent categorically refused. As such, the children and I were forced to vacate our home in order to rent it to cover the property charges. Lila Mae and I are currently staying in a small flat in London and I am unable to pay the rent in full for the months of March and April. We have to leave the flat in mid-April and that stage, we will have nowhere to go.

The only liquid asset I have visibility of is our joint account at Bank of Jackson Hole ending in *2458 which currently has an available balance of approximately \$82,267.

1. Fears for our safety: three incidents

- i. The first one happened on 9 June 2023 immediately after the hearing for the LSPO/MPS application before Your Lordship. I was at Paddington Station, standing in the middle of the evening crowd, looking up at the screens, and waiting for the announcement of the platform information of the train to Cheltenham Spa. I heard someone behind me say something about the court case and warning me to "stop going to court". When I turned around the person was walking away from me, I only saw his back. I reported the incident to my then-solicitors and to my counsel James Ewins KC. I also reported the incident to the Gloucestershire Police on 16 June 2023 (page 66 in Exhibits) and on 19 June 2023 two detectives visited me at home to ask further questions.

- ii. The houses in Wyoming are only two metres apart and since the start of the proceedings I have felt very vulnerable and fearful to be there when the respondent was occupying the house next-door. My solicitors requested several times that we coordinate our trips in order to avoid being in Wyoming at the same time. The respondent ignored our requests, and in fact, on two occasions he actually made plans to travel to Wyoming *after* he found out I would be there. I moved to Wyoming on a permanent basis in the summer of 2023. The respondent arrived next-door in December 2023 and shortly after his arrival I became severely ill with epigastric pain. I was hospitalised and told the doctors that I feared I may have been poisoned. Upon being discharged I was advised to make a report with Law Enforcement. I met with the Deputy Sheriff of Teton County and provided comprehensive information about the respondent's associates in Kazakhstan. The police recorded the complaint (case number 2307-4269, page 67-68) and referred me to *Victim Services* for additional support. I met with the Victim Coordinator on three separate occasions, and she recommended that I should stay at the women's shelter in Jackson Hole if I continued to feel unsafe at home. I started drafting an application for a Protection Order but had to pause the process in order to travel to London to attend the PTR hearing of 16 January 2024.
- iii. The third incident happened on Sunday 25th of March 2024 and is by far the most disturbing because Lila Mae was with me. We had picked up takeaway dinner from a restaurant near Kensington High St. tube station and were walking back home. I noticed a man following us from Kensington High St. to Queensgate Gardens SW7 where we are currently staying. He was following us too closely, and I don't think he was trying to hide. I noticed the same man the next day outside our building. I am extremely anxious for our safety and have not been able to sleep or eat since the incident of 24th March. I finally saw a GP on Saturday 6th April and told her everything. I made an appointment to see Prof. Libby, my long-time consultant psychiatrist, on 9th April to get some help for my symptoms. I will report the recent incidents to the Earl's Court Police Centre in the next few days.

Laundering of Kleptocracy Proceeds on Behalf of Kazakh Oligarchs

Glossary

Kenes Rakishev: Kazakh oligarch, estimated worth \$1 billion, son-in-law of Imangali Tasmagambetov, Chairman of the Board of Directors of Oxus, employer of the respondent.

- Oct 2017- Feb 2024: Chairman, Fincraft Group (mining, oil & gas production, finance, brokerage, renewable energy)
- May 2013- Feb 2024: Managing Partner, Singulariteam Ltd. (VC fund).
- Nov 2008- Feb 2024: Chairman, Sat & Company (mining).
- 2012-2018: Board of Directors, Net Element (Fin Tech).

Imangali Tasmagambetov: Rakishev's father-in-law.

- Nov 2022- Feb 2024: Appointed Secretary General of the Collective Security Council of the Collective Security Treaty Organization (CSTO), the NATO version of the Russian block.
- Feb 2017- Dec 2019: Ambassador of Kazakhstan to Russia.
- 2016-2017: Deputy Prime Minister of Kazakhstan.
- Oct 2014-2016: Minister of Defense of Kazakhstan.
- 2008-2014: Mayor of Astana.
- 2004-2008: Mayor of Almaty.
- Jan 2002- June 2003: Prime Minister of Kazakhstan.

Karim Massimov: Former prime minister of Kazakhstan, former head of Kazakh KGB, close ally of Rakishev, arrested on 8 January 2022 on charges of treason and attempted coup. Sentenced to 18 years of prison.

Ramzan Kadyrov: Leader of Chechen Republic, warlord, close ally of Rakishev.

Nursultan Nazarbayev: Former president of Kazakhstan, 83, stepped down in 2019.

Kassym-Jomart Tokayev: President of Kazakhstan (2019- Feb 2024)

Chronology

- **May 2005 – February 2009:** **Mukhtar Ablyazov** was chairman and controlling shareholder of BTA Bank, a bank incorporated in Kazakhstan.
- **Early 2009:** In the wake of the financial crisis, Kazakhstan banking regulators forced a recapitalization of the bank. The state-owned sovereign wealth fund **Samruk-Kazyna** seized control, the bank was nationalized, and Mr. Ablyazov was forced out. He fled to London amidst allegations of embezzlement and fraud.
- **2009:** BTA Bank filed 11 civil claims against Mr. Ablyazov in London and alleged that Mr. Ablyazov had embezzled some \$6 billion. The U.K. High Court issued a worldwide freezing order over his assets.
- **14 February 2014:** **Rakishev** acquired an initial stake in BTA Bank from the government and over the next few years he consolidated his control and became the owner of the bank.
- **20 February 2014:** Russian invasion of Crimea.
- **5 February 2014:** **Hunter Biden** met with **Kenes Rakishev** at the Hay Adams Hotel in Washington, D.C. In email correspondences with Devon Archer surrounding the meeting, Mr. Rakishev requested Secretary of State John Kerry visit Kazakhstan. Archer replied, “if we have some business started as planned, I will ensure its planned soonest.”
- **16 April 2015:** Vice President **Joe Biden** attended a dinner with **Kenes Rakishev**, **Karim Massimov**, **Hunter Biden**, and **Devon Archer** at Cafe Milano in Washington.
- **2 January 2022:** Protests and civil unrest in **Kazakhstan**. Russia sends “peacekeeping” troops.
- **24 February 2022:** Russian invasion of **Ukraine**.
- **25 February 2022:** U.S. and its allies impose sanctions to restrict Russia’s access to capital markets and the banking system, as well as its procurement channels to import advanced technologies and its ability to produce and stockpile military equipment.
- **1 June 2022:** the respondent is appointed to the Board of Directors of Oxus.

1. Kenes Rakishev

From 2009 until in or about September 2014, BTA Bank was majority owned and controlled by the Republic of Kazakhstan through its sovereign wealth fund Samruk-Kazyna. In February 2014, **Kenes Rakishev** and **Kazkommertsbank** acquired 46.5% of the shares of BTA Bank each from the sovereign fund and Rakishev became the new chairman of BTA's board of directors. Over the next few years, Rakishev gradually grew his share of BTA into a controlling stake and transformed the institution, shedding its banking business, and turning BTA effectively into an investment company whose main assets were its claims against Ablyazov, estimated at \$6 billion in (*Qazkom*), eventually becoming its largest shareholder and chairman of the board of directors. In 2018, Kazkommertsbank merged with Halyk Bank, the largest bank in Kazakhstan by total assets.

According to a U.S. lawsuit, "Kazakhstan v. Felix Sater", **Rakishev** was a go-between tasked with buying Hunter Biden's loyalty and gaining access to the U.S. markets. The lawsuit documents provide a short summary of Rakishev's background: "*Rakishev is reputed to have raped underage girls in Russia*" and organized "*no holds barred*" fighting contests involving eight-year-old children. The Russian authorities refused to investigate these crimes because Rakishev was under **Karim Massimov's** protection and also because Rakishev's father-in-law (**Imangali Tasmagambetov**), former Prime Minister and former ambassador of Kazakhstan to Russia, intervened to stop the investigation."

The lawsuit further states: "*The Kazakh plot against Sater was coordinated by Karim Massimov, Chairman of the Kazakh KGB, and his henchman Kenes Rakishev, known in Kazakhstan as "Massimov's Wallet."* During this time, Massimov and Rakishev were actively seeking influence with American politicians. Sater learned of this plot when the FBI released documents in January 2021 as part of Special Counsel Robert Mueller's investigation into supposed Russian collusion in the 2016 election".

Kenes Rakishev owns a network of companies, with interests in the U.S., U.K., Kazakhstan, Russia, China, Israel, and the E.U. He has been implicated in the theft, concealment and laundering of kleptocracy proceeds on behalf of his father-in-law, and through his own control and pilfering of a number of Kazakh conglomerates and state-owned entities.

2. **Ramzan Kadyrov**

Rakishev is a close friend and business partner of **Ramzan Kadyrov**, the leader of Russia's Chechen Republic who is regarded as one of Vladimir Putin's most loyal warlords. **Ramzan**

Kadyrov has been linked to an array of human rights abuses including torture, forced disappearances and extra-judicial killings. He has also reportedly led anti-gay purges in Chechnya. Rakishev is a frequent visitor to Chechnya, often appearing in social media alongside Kadyrov, his support to the Chechen leader publicly acknowledged and praised. Past social media posts attest to his ongoing financial patronage, showing for instance that he paid for actors Jean-Claude Van Damme and Hilary Swank to appear at the country's Independence Day celebrations, and he funded the multi-million dollars construction project of the Chechen leader's palace in Grozny. Kadyrov has described the oligarch as his "dear brother".

In the U.S. lawsuit, the defendant (Felix Sater) stated that he was *"forced to hide in Israel for several months because Kenes Rakishev had, through Kadyrov, hired Chechen hit men to murder him"*.

It is alleged that Kadyrov was instrumental in assisting Rakishev recover several BTA assets located in Russia, including plots of land, development projects, and a port. The Chechen's methods of asset recovery included strong-arming the opposing parties and using "unjustified criminal-law methods of influence."

In June 2016, Ramzan Kadyrov posted the following in his Instagram account:

"The person who plots a terrorist attack must be neutralized. Prison or two meters underground. There are no other methods. A good example is Syria, where instead of really fighting terrorism, Western countries give them names like "oppositionists," "moderates" and others, while the Syrian people are dying. I want to assure Nursultan Abishevich [Nazarbayev] that we are ready to provide the brotherly people of Kazakhstan with any assistance and support in the fight against the worst enemy of all mankind - terrorism. I would like to remind you that we discussed the issues of cooperation in the fight against terrorism during the meeting in Grozny which was attended by Secretaries of the Security Councils of Russia - Nikolai Patrushev and of Kazakhstan - Nurlan Yermekbayev, and my dear brother Kenes Rakishev who has always been a patron [provided financial aid to] of our important projects. I wish peace, stability, and prosperity to fraternal Kazakhstan! Allah Akbar!" [emphasis added]

Below is a screenshot of the original post.



[Главная](#) » [НОВОСТИ](#) » [Власть и политика](#) » [Рамзан Кадыров](#)
выразил соболезнования Президенту Казахстана Нурсултану
Назарбаеву в связи с терактом в Алматы

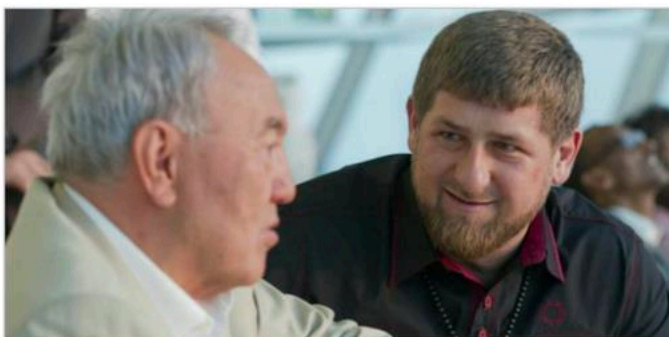
Рамзан Кадыров выразил соболезнования Президенту Казахстана Нурсултану Назарбаеву в связи с терактом в Алматы

18.07.2016 21:10

[Алматы](#) [Кадыров](#) [Казахстан](#) [Назарбаев](#) [теракт](#)

*Глава Чеченской Республики Рамзан Кадыров
выразил соболезнования Президенту
Республики Казахстан Нурсултану Назарбаеву
в связи с терактом в г. Алматы.*

*Соответствующую запись он разместил на
своей странице в социальной сети Инстаграм.*



In the bottom photo (left to right): Kadyrov, Rakishev, Yermekbayev and Patrushev.



Rakishev and Kadyrov are pictured together. Kadyrov was quoted gushing about 'my dear brother Kenes Rakishev who has always been a patron of our important projects,' in a July 2016 article on Russian-language news site Grozny-Inform

3. SDNs / Blocking Sanctions Following Ukraine Invasion

Following the Russian military invasion of Ukraine in February 2022, the U.S. Government has deployed a number of economic tools aimed at disrupting and degrading Russia's economy and war machine. The U.S. has imposed blocking sanctions on a large number of individuals and entities under its sanctions programs by listing them as Specially Designated Nationals ("SDNs"). The sanctions and related Executive Orders require U.S. Persons to block the property and property interests of SDNs and entities owned 50% or more by them, directly or indirectly. The U.S. Treasury Department's Office of Foreign Assets Control ("OFAC") defines "US Persons" to include U.S. citizens or green-card holders globally, anyone physically located in the U.S., and any U.S. domiciled entity, including their non-U.S. branches. OFAC also requires non-U.S. persons to comply with the sanctions whenever their transactions involve U.S. Persons or the U.S. financial system ("U.S. Elements"). Entities listed as SDNs include major Russian financial institutions such

as: Vnesheconombank (VEB), Promsyvazbank (PSB), VTB Bank, Bank Otkritie, Sovcombank, Novikombank, Sberbank, Rosbank, and many of their subsidiaries. In addition, OFAC has designated many Russian politicians and oligarchs as SDNs. The OFAC SDN list is regularly updated and is searchable at:

<https://sanctionssearch.ofac.treas.gov/>

As of 23 February 2024, the Departments of the Treasury and State have designated over 4,000 entities and individuals pursuant to Russia-related sanctions authorities.

However, Russia has spent decades developing complex and resilient networks to raise, transfer, hide, and obscure the origin and movement of the funds generated through illicit activity, including corruption, sanctions evasion and illicit arms sales, and used for its malign activity. The National Intelligence Council (NIC) leads and coordinates efforts across the intelligence community (IC) to produce analysis and support policymakers regarding Russian illicit financial activity, as well as to inform efforts to identify and disrupt these illicit financial networks.

It seems that Russia's efforts to circumvent Western sanctions are successful, and advanced microchips, drones, and defense equipment are flowing into the country. According to a recently published report by the Royal United Services Institute (RUSI), Russia has invigorated the channels for illegal procurement of foreign technology that were utilized by the Soviet Union during the Cold War.

Nations that maintain ties with Russia at one level or another — the Czech Republic, Serbia, Armenia, Kazakhstan, Turkey, India, and the UAE — have also been mentioned as potential third-party pass-throughs that could place large orders for these electronic systems and then illegally transship them to Russia.

4. Sergei Magnitsky Rule of Law Accountability Act of 2012

In December 2017, OFAC issued its sixth tranche of sanctions under the Sergei Magnitsky Rule of Law Accountability Act of 2012, bringing to 49 the total number of individuals targeted by OFAC under this authority. This round of names included Ramzan Kadyrov, the Head of the Chechen Republic, who oversees an administration involved in disappearances and extra-judicial killings.

10 December 2020

The U.S. Department of the Treasury's Office of Foreign Assets Control (OFAC) issued the following statement under the Sergei Magnitsky Rule of Law Accountability Act of 2012 (the Magnitsky Act).

“Ramzan Kadyrov, the Head of the Chechen Republic, is being designated today pursuant to the Global Magnitsky E.O. for being a foreign person who is a leader of an organization, the Kadyrovtsy, that has engaged in, or whose members have engaged in, serious human rights abuses. Kadyrov and the forces he commands, commonly known as the Kadyrovtsy, are implicated in the murder of Boris Nemtsov, an opposition politician to Russian President Vladimir Putin, and other serious violations of human rights. On December 20, 2017, OFAC designated Kadyrov pursuant to the Russia Magnitsky Act for being responsible for extrajudicial killing, torture, or other gross violations of internationally recognized human rights committed against individuals seeking to expose illegal activity carried out by officials of the Government of the Russian Federation, or to obtain, exercise, defend, or promote internationally recognized human rights and freedoms, such as the freedoms of religion, expression, association, and assembly, and the rights to a fair trial and democratic elections, in the Russian Federation.

Following Kadyrov's previous designation (December 2017), the Kadyrovtsy, under the guidance of Kadyrov, continued these egregious activities, to include kidnapping, torturing, and killing members of the LGBTI population in the Chechen Republic. The Kadyrovtsy are accused of illegal abductions, torture, extrajudicial executions, and other abuses, including the detention of journalists and activists”.

September 15, 2022

OFAC announced additional sanctions on Ramzan Kadyrov, his influence network "Kadyrovtsy", and the people who have materially assisted, sponsored, or provided financial material or technological support for, or goods and services to, or supported, Kadyrov. ***Kenes Rakishev was identified as a key person in the "Kadyrovtsy" network with significant influence who provides substantial financial and material support to Kadyrov and his inner-circle, as well as personally benefits from his close relations with Kadyrov and his inner-circle.***

OFAC issued the following statement: *“Ramzan Akhmatovich Kadyrov (Kadyrov), the leader of Russia’s Republic of Chechnya and a brutal warlord with reported links to previous instances of torture and murder, has mobilized Chechens to fight in Ukraine. Publicly describing himself as Putin’s “foot soldier,” Kadyrov was promoted to the rank of “lieutenant-general” for his role in Russia’s further invasion of Ukraine. Chechen units allied to Kadyrov have operated in Bucha, where Russia’s troops committed atrocities and destroyed homes. Kadyrov has recruited for Russia’s war efforts through mixed martial arts clubs, which enables him and his units to continue their activity in Ukraine.”*

OFAC redesignated Kadyrov pursuant to *Executive Order (E.O.) 14024 for being or having been a leader, official, senior executive officer, or member of the board of directors of the Government of the Russian Federation (GoR)*. OFAC also designated several of his family members and entities owned or controlled by him or by his family members. *Kadyrov was sanctioned by Australia, Canada, the EU, Japan, Switzerland, and the UK.*

Rakishev faces scrutiny due to **Kadyrov’s** inclusion in the Magnitsky list. His active role in advancing **Kadyrov’s** interests and allegedly investing his funds globally could bring U.S. sanctions upon him as well.

5. Rakishev is Instrumental in Putin’s War

In April 2022, an Arlan mine-resistant armored platform (MRAP) (military vehicle) was spotted in the streets of Mariupol as a part of Ramzan Kadyrov’s Chechen troops, invading Ukraine. The Arlan military vehicle, a winterized version of South African **Paramount Group’s** Marauder, is designed to perform quick reaction force operations, infantry fire support, and long-range border patrol. Arlan MRAPs are manufactured in Kazakhstan by **Kazakhstan Paramount Engineering (KPE)**, a partnership between **Kenes Rakishev** and **Paramount Group**, a South African military defense equipment manufacturer. Rakishev was appointed to the board of directors of JSC National Company Kazakhstan Engineering in March 2014. That same year, his father-in-law, **Imangali Tasmagambetov**, was named Kazakhstan’s Minister of Defense in Karim Massimov’s government. Rakishev leveraged his close connections with the Kazakh regime to consolidate his position in the defense industry in a very short time. With the full backing of the country’s principal military stakeholders: JSC National Company Kazakhstan Engineering, the state-

owned defense consortium, and the Ministry of Defense, Rakishev moved rapidly to achieve a dominant position in the defense sector. His beneficial ownership in KPE is hidden behind his nominees.



Background of BTA v Ablyazov, a “fraud on epic scales”

1. Between May 2005 and February 2009, **Mr. Mukhtar Ablyazov** was the chairman and controlling shareholder of BTA, a bank incorporated in Kazakhstan. It is alleged that during this

period, he embezzled some US\$6 billion of the Bank's funds. In February 2009, the Bank was nationalized, and Mr. Ablyazov was removed from office. He fled to England, where he ultimately obtained asylum. In August 2009, the Bank began proceedings against him in the Commercial Court, alleging misappropriation of its funds. Other proceedings followed, in the Commercial Court and the Chancery Division. Mr. Ablyazov was ultimately the defendant in eleven actions brought by the Bank against him, either alone or in conjunction with alleged associates.

2. At the outset of the litigation, the Bank obtained a disclosure order requiring Mr. Ablyazov to identify and disclose the whereabouts of his assets and a Worldwide Freezing Order preventing him from dealing with them. Mr. Ablyazov's failure to comply with that injunction and other court orders, led to a litany of litigation in the English courts, as well as other jurisdictions. Mr. Justice Teare described the English chapter of the saga as a "fraud on epic scales" (JSC BTA Bank v Ablyazov [2012] EWHC 237 (Comm), paragraph 4).

3. In response to Ablyazov's failure to abide by the Worldwide Freezing Orders, in August 2010 the U.K. High Court took the additional step of ordering Ablyazov's assets to be put in the receivership of the accounting firm KPMG (the "Receivership Orders"). The Receivership Orders empowered certain identified receivers at KPMG (the "Receivers") to take control of and recover Ablyazov's network of hundreds of offshore entities used to launder billions of dollars. In light of Ablyazov's criminal contempt and violation of the Worldwide Freezing Orders, his defenses in the U.K. proceedings were struck out, and BTA was awarded more than \$4 billion in judgments by the U.K. courts, with interest continuing to accrue. On 6 November 2012, the U.K. Court of Appeal unanimously upheld the contempt orders against Ablyazov. Concurring in this judgment, Lord Justice Maurice Kay stated that it was "difficult to imagine a party to commercial litigation who has acted with more cynicism, opportunism and deviousness towards court orders than Mr. Ablyazov."

U.K. Parliament – Kazakhstan Anti-Corruption Sanctions (3 February 2022)

In February 2022, **Dame Margaret Hodge** asked the Parliament to vote for tougher sanctions and effective measures against corruption, "dirty money", and kleptocracy. She singled out Kazakhstan, a country rich in minerals and natural resources ruled by a kleptocratic elite which

has grown rich at the expense of its people. In Kazakhstan, 162 individuals own 55% of the nation's wealth, and they are mostly members of Nazarbayev's family or close associates. A recent Chatham House report reveals that the Kazakh elite owns over half a billion pounds of real estate property in the U.K.

Against the backdrop of the horrific Russian invasion of Ukraine, and the brutal squashing of the political unrest in Kazakhstan in January 2022, **Dame Hodge** called for an end to Britain's complacency. She denounced those who turn a blind eye and enable the corrupt Kazakh regime to launder its dirty money and spend it in the U.K. Parliament Members went on to "name and shame" some 20 Kazakh oligarchs who possess massive unexplained wealth, and are implicated in bribery, corruption, opaque transactions, complex networks of offshore shell companies, trusts, and funds, and illicit activities. The Parliament moved to impose anti-corruption sanctions against corrupt Kazakh oligarchs, those who have appropriated state assets, or committed human rights abuse. **Dame Margaret Hodge** specifically referenced **Mr. Rakishev** as "*a mysteriously wealthy Kazakh businessman worth up to \$1.6 billion, with close ties to the political elite, and a close associate of the head of the Chechen Republic, who has been sanctioned by the U.S. Office of Foreign Asset Control*".

Mr. Rakishev struck up a close relationship with **Prince Andrew** and reportedly brokered the sale of the prince's Sunninghill estate, a wedding gift from the Queen, to **Timur Kulibayev**, son-in-law to Kazakhstan's president **Nursultan Nazarbayev**. The sale raised eyebrows because the 12-bedroom property had languished on the market for five years before being bought in 2007 for £15 million, £3 million above the asking price, leading to allegations of improper payments.

Karim Massimov, former Prime Minister of Kazakhstan, was subject to bribery allegations, including from U.K. listed companies, as reported in the *FT*. He was also implicated in allegations of bribery by Airbus for the purchase of 45 helicopters. On 24 April 2023, Mr. Massimov was sentenced to 18 years in prison for treason, abuse of power, and for attempting a coup.

U.S. House Bi-Partisan Committee on Oversight and Accountability.

On 9 August 2023, the House Oversight Committee released a memorandum re: "*New Evidence Resulting from the Oversight Committee's Investigation into the Biden Family's Influence Peddling and Business Schemes*". The report corroborates the Committee's findings that money was

transferred to Hunter Biden's bank accounts from foreign nationals and entities when Joe Biden was Vice-President.

- i. **Hunter Biden and his partner, Devon Archer, used Rosemont Seneca entities to bring in millions from oligarchs in Europe and Asia.** Using accounts nominally tied to Devon Archer (but using the familiar "Rosemont Seneca" branding), Hunter Biden received incremental payments originating from foreign sources, attempting to hide the source and size of the payments.
- ii. **In February 2014, a Russian oligarch sent \$3.5 million to a shell company associated with Hunter Biden and Devon Archer.** Russian billionaire Yelena Baturina transferred \$3.5 million to Rosemont Seneca Thornton, a shell company. Approximately \$1 million was transferred to Devon Archer, and the remainder was used to initially fund a new company account, Rosemont Seneca Bohai, which Devon Archer and Hunter Biden used to receive other foreign wires.
- iii. **In Spring 2014, a Ukrainian oligarch placed Archer and Biden on the Burisma Board of Directors and agreed to pay them \$1 million each per year.** Subsequently, Vice-President Joe Biden visited Ukraine soon after the first payment was received. Payments from Burisma for both Devon Archer and Hunter Biden were wired to Rosemont Seneca Bohai. Payments were transmitted in incremental amounts to Hunter Biden's different bank accounts.
- iv. **In April 2014, Kenes Rakishev wired the exact price of Biden's sportscar to a bank account used by Archer and Biden.** In February 2014, Hunter Biden met with Kenes Rakishev at a Washington, D.C. hotel. Rakishev worked closely with the prime minister of Kazakhstan, **Karim Massimov**. In April, Rakishev wired \$142,300 to Rosemont Seneca Bohai. The next day, a payment was made from Rosemont Seneca Bohai for a sportscar for Hunter Biden in the amount of \$142,300. Archer and Biden then arranged for Burisma executives to visit Kazakhstan in June 2014 to evaluate a three-way deal among Burisma, a Chinese state-owned company, and the government of Kazakhstan.
- v. **Hunter Biden received millions of dollars in payments from Yelena Baturina, Burisma, and Kenes Rakishev. Vice President Biden had dinner with them in the spring of 2014 and 2015 in Washington, D.C.**



Kenes Rakishev (left), a Kazakh businessman worth more than \$950million who became friends and business partners with Hunter, is seen in a photo with Hunter, Joe Biden, and the Prime Minister of Kazakhstan Karim Massimov



NURSULTAN NAZARBAYEV
Former Kazakh President
Kenes Rakishev Coined
“Nazarbayev’s Wallet”



TIMUR KUBILAYEV
Son-in-Law of Former
Kazakh President Nazarbayev
Owner of Halyk Bank



IMANGALI TASMAGAMBETOV
Kenes Rakishev’s Father-in-Law
Secretary General of CSTO
Fmr Kazakh PM
Fmr Kazakh Minister of Defense
Fmr Ambassador to Russia



KARIM MASSIMOV
Former Kazakh PM
Fmr Head of Kazakh KGB



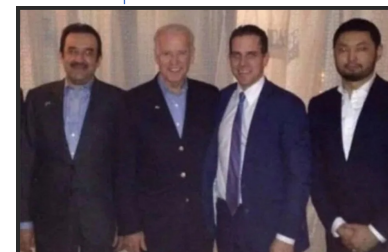
KASSIM-JOMART TOKAYEV
Current Kazakh President



MARC HOLTZMAN
Former Chairman Kazkommerstbank
Fmr Head of Sovereign Wealth Fund
Fmr Vice Chairman, **Barclays Capital**



RESPONDENT KARIM ZAHMOUL
Director, Oxus Acquisition Corp
Fmr MD, **Barclays Capital**
Owner of Emvryia Ltd, FCA-regulated



JOE & HUNTER BIDEN
Current US President & Son



RAMZAN KADYROV
Warlord, Leader of Chechnia
Loyal Putin Ally

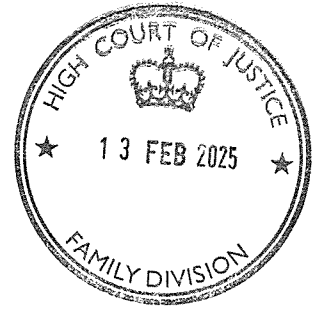
Contempt Application

High Court BV20D01752

27th November 2024

Contempt application

(other than an application under Part 8) CPR 81.3 and 81.4



Name of court

Claim no.

Claimant's name (including ref.)

Defendant's name (including ref.)

Date

Day

Month

Year

1. What is your name or, if you are a legal representative, the name of your firm?

2. Are you a



Claimant



Legal representative of the claimant

3. Who should be served with this application?

First name(s)

Last name

4. Please give the service address of any party named in question 3

Building and street

Second line of address

Town or city

County (optional)

Postcode

1	1	5	0	2	8	2
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The written evidence of the claimant in support of this application, in the form of an affidavit or affirmation, is attached to this application

If permission is required to make this application, the application for permission (headed 'Application for permission') must be included in this application

If upon determination of this application you are held to be in contempt of court you may be imprisoned or fined, or your assets may be seized

Your rights

You have the right to be legally represented in the contempt proceedings.

You are entitled to a reasonable opportunity to obtain legal representation and to apply for legal aid which may be available without any means test.

You may be entitled to the services of an interpreter.

You are entitled to a reasonable time to prepare for the hearing of the contempt application against you.

You are entitled but not obliged to give written and oral evidence in your defence.

You have the right to remain silent and may not be compelled to answer any question the answer to which may incriminate you.

If you do not attend the hearing, the court may proceed in your absence. Whether or not you attend, the court will only find you in contempt if satisfied beyond reasonable doubt of the facts constituting contempt and that they do constitute contempt.

If the court is satisfied that you have committed a contempt, the court may punish you by a fine, imprisonment, confiscation of assets or other punishment permitted under the law.

If you admit the contempt and wish to apologise to the court, that is likely to reduce the seriousness of any punishment by the court.

The court's findings will be provided in writing as soon as practicable after the hearing.

The court will sit in public, unless and to the extent that the court orders otherwise. Its findings will be made public.

The following information is required to be included in the application pursuant to rule 81.4(2) of the Civil Procedure Rules 1998.

5. Nature of the contempt (for example, breach of an order or undertaking or contempt in the face of the court)

The trial took place on 19th - 28th Feb 2024 in High Court. The Perjury Act 1911 defines Perjury as follows: "If any person lawfully sworn as a witness or as an interpreter in a judicial proceeding wilfully makes a statement material in that proceeding, which he knows to be false or does not believe to be true."

The defendant committed perjury and made false representations in his sworn statement of assets ES2 and in his witness evidence under oath. He instructed his counsel to make false representations in closing submissions to the court. The perjury is material because the claimant's case is that the defendant's disclosures are deficient, fraudulent and cannot be trusted. The defendant denies this. Thus the perjury under oath at the trial is crucial because it provides evidence of the defendant's contempt of court, which is recorded, and which is available in the court transcripts.

The defendant's contempt is pervasive in all his disclosures, sworn statements, and representations throughout the proceedings.
(Continued in accompanying affidavit).

6. Is the application based on breach of an order?

☐ Yes. **Go to question 7**

☒ No. **Go to question 10**

7. Date and terms of the order allegedly breached or disobeyed ('the order'). (If there is more than one such order, set out the date and terms of each order.)

8. Date of personal service of the order

Day

Month

Year

If the order was not personally served, state the date and terms of any order dispensing with personal service of the order.

9. Did the order include a penal notice?☐ Yes☐ No**10. Date and the terms of any undertaking allegedly breached ('the undertaking'). (If there is more than one such undertaking set out the date and terms of each undertaking.)**

The trial took place from 19th to 28th February 2024 at the Royal Courts of Justice before Justice MacDonald.

1. The defendant's sworn ES2 asset schedule dated 19.02.2024 identifies Oxus Acquisition Corp. as a "non-matrimonial business interest" and attributes a fair market value of "zero" to the 50,000 Oxus shares.

2. The defendant gave his witness evidence under oath on 22nd, 23rd, and 26th February. He made three assertions concerning Oxus: (i) he represented that he had resigned his position as an independent director of the board of Oxus, (ii) he stated that his Founders Shares were worth \$0, and (iii) he represented that his "involvement" with Oxus was a "non-matrimonial interest".

3. On 26.02.2024, the defendant's counsel made closing submissions and stated: "Oxus, Karim Zahmoul was assisting on an advisory basis. He has some shares, but they have no value"

1, 2, and 3 are false representations and constitute acts of fraud by false representation. The defendant dishonestly made representations which he knew to be false at the time he made them in order to make a financial gain for himself and cause a financial loss to the claimant.

11. Does the claimant, believe that the person who gave the undertaking understood its terms and the consequences of failure to comply with it?

☒ Yes

☐ No

12. Summary of facts alleged to constitute the contempt (set these out very briefly, in chronological order, in numbered points)

Oxus Proxy Statement and Prospectus filed with the SEC on 16 January 2024 (p. 340) states:

1. "On June 1, 2022, Mr. Karim Zahmoul was appointed as independent director. On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or \$0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model".
2. SEC Form 3 Initial Statement of Beneficial Ownership of Securities dated 7 June 2022 states: "The shares of Class B ordinary shares have no expiration date and will automatically convert into shares of Class A ordinary shares at the time of the Issuer's initial business combination, or earlier at the option of the holder, on a one-for-one basis, subject to adjustment as set forth in the Issuer's registration statement on Form S-1."
3. The SEC Proxy Statement and Prospectus dated 16 January 2024 states that the value of the respondent's beneficial ownership in Oxus is approximately \$565,000 (\$1,695,000/3). "The beneficial ownership of Oxus' independent directors, Christophe Charlier, Karim Zahmoul and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares" (p. 34).
4. On 2 February 2024, Oxus held an extraordinary general meeting of shareholders and approved the closing of the transaction.
4. On 7 February 2024 (the Closing Date) the Business Combination was consummated (ie the Performance Conditions were met). The directors' Class B shares were automatically converted into the new company shares in accordance with the exchange ratio.
5. On 8 February 2024, the new company began trading on Nasdaq under the ticker symbol BRLS. The value of the respondent's shares can be calculated by direct observation using a marked-to-market valuation (number of shares times share price in \$).
6. On 8 February 2024, Kenes Rakishev posted on his Instagram account several pictures of himself, the respondent and the Oxus/Borealis team at the Nasdaq Exchange in New York, celebrating the launch of BRLS. Pictures of the respondent are also published on the Nasdaq's website.
7. The U.K. trial took place from 19 to 28 Feb 2024. In his sworn statement of assets dated 19.02.2024 the defendant reported \$0 for the Oxus shares and he instructed his counsel to state in her closing submissions on 26.02.2024 that his shares in Oxus "have no value" (continued in attached affidavit).

Statement of truth

I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

☒ **I believe** that the facts stated in this contempt application are true.

☐ **The claimant believes** that the facts stated in this contempt application are true.

Signature for the statement of truth

Nadia Zahmoul

☒ Claimant

☐ Litigation friend

☐ Claimant's legal representative

Date

Day

2	7
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Month

1	1
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Year

2	0	2	4
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Full name

Nadia Zahmoul

Name of claimant's legal representative's firm

N.A.

Position or office held (if signing on behalf of a company)

N.A.

Signature for the Contempt application

Nadia Zahmoul

- ☒ Claimant
- ☐ Litigation friend
- ☐ Claimant's legal representative

Date

Day

2	7
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Month

1	1
---	---

Year

2	0	2	4
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Full name

Nadia Zahmoul

Name of claimant's legal representative's firm

N.A.

Position or office held (if signing on behalf of a company)

N.A.

Claimant's address to which documents about this application should be sent

Building and street

35 Queens Gate Gardens

Second line of address

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Town or city

London

County (optional)

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Postcode

S	W	7	5	R	R	
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Phone number

+44 (0) 79 1332 8615

Email address

Nadia@rosekross.com

Fax number

N.A.

DX number

N.A.

Reference number

N.A.

Court fee

What you need to pay

The court fee for this application is **£303**

How to pay the court fee

- ☐ I attached a **Cheque/Postal order**, made payable to 'HMCTS'
- ☐ **A debit/credit card payment**
- ☐ I will pay over the phone, please call me on the number below

☐ please email me details on how to pay, my email address is

- ☐ **Prepayment** – If you have already made a payment please note the reference number here

Your reference

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- ☐ **In person at** the court/office
- ☐ **I have not included payment because**

☐ I have applied for Help with Fees online and my reference number is

H	W	F							
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☒ I am applying for Help with Fees, see attached form **EX160**

☐ Other – please explain why

- ☐ **Payment by account** – for use by legal professionals

Your account number

P	B	A							
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Your reference (if applicable)

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What if I cannot afford to pay a court fee?

You may not have to pay a fee, or you may get some money off it if you only have a small amount of savings and investments, receive certain benefits or are on a low income. This is sometimes known as 'fee remission.'

You can apply for help with court and tribunal fees online at www.gov.uk/help-with-court-fees or through the 'EX160 Apply for help with fees' form and 'EX160A – How to apply for help with fees' guidance.

Fee account – a way for solicitors, local authorities and other regular users to make payments relating to civil and family cases.

Summary

I make this statement in support of my Contempt Application dated 18 October 2024. I set forth the defendant's acts which I allege constitute contempt and will provide evidence, which is credible, reliable, and sufficient to prove contempt to the criminal standard. The defendant's conduct has rendered it impossible to hold a fair trial. He set out to use the court process as an instrument of fraud and has resorted to forgery, perjury and the suppression of evidence in order to prevent the court from finding out the truth. He is determined to subvert the adjudicative process by fraudulent means and is abusing the judiciary process.

The defendant's destructive litigation strategy aims to deflect from his substantial non-disclosure of assets and his illicit activities. To that end, the children and I have been subjected to extreme economic abuse and coercion. Our daughters are 17 and 19-years old, and both are under my care. We have been homeless since February 2024, and we do not financial resources for food, groceries, and basic needs. The defendant maintains sole ownership and control over our joint matrimonial assets and liquidity and is abusing his position.

I am a litigant in person and intend to bring to justice the defendant's acts of perjury, fraud, and contempt of court. I am seeking a fair, public, and impartial trial.

The principal issues to consider are (1) how serious is the conduct (i.e. what was, or could have been, the impact on the administration of justice?); (2) what is the culpability of the defendant (his knowledge and involvement, was the action premeditated, was there a motivation, has the conduct been repeated?); (3) whether the defendant's actions were or created a risk of an interference with the administration of justice that was sufficiently serious to amount to criminal contempt; and (4) whether the respondent had a specific intention to interfere with the administration of justice.

In terms of harm, as a result of the defendant's conduct the outcome of the proceedings was unfair and the case is still in the courts. This was as the respondent intended. I suffered substantial harm as a result of these actions. The defendant's conduct undermines the public's trust in the judiciary system. The defendant was motivated by his personal gain and his lack of

remorse, moral, and decency. The defendant committed fraud by false representation. He dishonestly made a false representation and intended, by making the representation, to make a gain for himself or another, or to cause loss to another, or to expose another to a risk of loss.

In terms of culpability, the defendant was responsible for his sworn statement of assets ES2 dated 19 February 2024 which he filed with the court as evidence for the trial. Likewise, the defendant was responsible for the submissions and the evidence before the trial judge, whether in writing or in oral submissions. He directed his counsel to make statements which were untrue on three occasions: (i) in her opening statement on behalf of the defendant on 19th February 2024, (ii) in her oral submissions of 26th February 2024, and (iii) in her closing submissions of 28th February 2024. The defendant knew these representations to be false, untrue or misleading at the time when he made them or directed his counsel to make them. He was in no doubt that his conduct amounted to contempt, and he directed his solicitors to ignore my emails of 29th February 2024, 4th and 6th March 2024 requesting an explanation regarding the false representation.

The defendant was a director on the board of Oxus Acquisition Corp. He was on the Audit Committee, the Compensation Committee, and the Nominating Committee. He executed all the SEC forms and had a duty to comply with the SEC disclosure requirements of Regulation S-K Title 17, Part 229.103.

Between June 2021 and February 2024, he signed all the Registration Statements on Form S-4 filed with the SEC. The defendant had knowledge of all matters related to the Oxus SPAC transaction and this is evidenced in the SEC filing which are available via the Edgar website.

<https://www.sec.gov/edgar/browse/?CIK=1852973&owner=exclude>

Perjury Act 1911

The Perjury Act 1911 states that perjury occurs ***“If any person lawfully sworn as a witness or as an interpreter in a judicial proceeding willfully makes a statement material in that proceeding, which he knows to be false or does not believe to be true.”*** In his sworn financial statement on Form ES2 dated 19 February 2024, and in his witness evidence at the trial the defendant

represented that the value of his Oxus shares was \$0. At the time he made these representations under oath he knew them to be false and he knowingly committed perjury with the intention of making a financial gain for himself and causing me a financial loss. He withheld **material information** from the court, failing to disclose that the performance condition for his stock-based compensation had been met eleven days prior to the start of trial and that his Founders Shares had a market value of \$500,000.

What is a SPAC?

SPACs are shell companies organized and managed by a sponsor for the purpose of merging with or acquiring one or more unidentified private operating companies, commonly known as a de-SPAC transaction, within a certain time frame. The de-SPAC transaction is a hybrid transaction that contains elements of both an initial public offering (“IPO”) and a merger and acquisition (“M&A”) transaction. While structured as an M&A transaction, the de-SPAC transaction also is the functional equivalent of the private target company’s IPO, because it results in the target company becoming part of a combined company that is a reporting company and provides the private target company with access to cash proceeds that the SPAC had previously raised from the public. As part of this process, the shareholders of the SPAC go from owning shares in a shell company to owning shares in a combined company that conducts the business of the private target.

Once formed, a SPAC will conduct its IPO in the form of a firm commitment underwritten IPO of \$5 million or more in units consisting of redeemable shares and of warrants. The underwriting fees for a SPAC IPO typically approximate 5% to 5.5% of the offering proceeds, and a significant portion of those fees (around 3% of the IPO proceeds) are conditioned on the completion of a de-SPAC transaction. The SPAC sponsor is usually compensated through a “promote” or “founder’s shares”—i.e., discounted SPAC shares received prior to the SPAC’s IPO that generally only have value if a de-SPAC transaction occurs.

Following its IPO, a SPAC places all or substantially all of the IPO proceeds into a trust or escrow account. The SPAC typically registers its shares and warrants under section 12(b) of the Securities Exchange Act of 1934 (“Exchange Act”) and lists the units (typically consisting of a common share

and a fraction of a warrant) for trading on a national securities exchange.

Next, the SPAC seeks to identify a target company for a de-SPAC transaction within the time frame specified in its governing documents. If the SPAC does not complete a de-SPAC transaction within that time frame, it may seek an extension (often requiring approval from its shareholders) or dissolve and liquidate. If the SPAC enters into a business combination agreement with a target company, the SPAC files a Form 8-K announcing the transaction that includes certain information on the material terms of the business combination agreement.

Directors' Founders Shares

The following paragraph is an excerpt the Proxy Statement and Prospectus Oxus SPAC filed with the SEC on 16 January 2024. It states that the value of the respondent's beneficial ownership in Oxus is approximately \$565,000 (\$1,695,000/3).

"The beneficial ownership of Oxus' independent directors, Christophe Charlier, Karim Zahmoul and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares" (exhibit NZ1 p. 65).

As of 18 October 2024, the SEC filings show the defendant's position remains 50,000 shares. He has not disclosed his ownership of warrants, which trade separately on Nasdaq under the ticker symbol BRLSW.

Timeline of the Oxus De-SPAC

31 st May 2022	SEC Form 8-K Current Report Oxus Acquisition Corp. (exhibit NZ1 p. 8) “On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, Mr. Karim Zahmoul was appointed as independent director. On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or \$0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model. Stock-based compensation would be recognized at the date the performance conditions are met (i.e. upon consummation of a Business Combination)”.
3 rd June 2022	Form 8-K Exhibit 24.1 (exhibit NZ1 p. 12) The defendant causes a Power of Attorney to be executed. As such, he had knowledge of his appointment and the transfer of shares on 3 June 2022. This is not consistent with the representation made by his solicitors on 6 June 2022.
6 th June 2022	Correspondence from defendant’s solicitors (exhibit NZ1 p. 15) “My client has been offered a directorship role in a SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this, but they will be provided once executed. My client will not receive income from the role, but he may receive shares in the company subject to its performance – full details are yet to be finalized but will be confirmed when they are.”
7 th June 2022	SEC Form 3 “Initial Statement of Beneficial Ownership of Securities” (exhibit NZ1 p. 14) Mr. Zahmoul received 50,000 Class B ordinary shares. This was announced on 31 May 2024 on Form 8-K. The Founders shares were granted on 7th June 2022 and recorded on 9th June 2022 on Form 3 “Initial Statement of Beneficial Ownership of Securities”. Form 3 states as follows: “The shares of Class B ordinary shares have no expiration date and will automatically convert into shares of Class A ordinary shares at the time of the Issuer's initial business combination, or earlier at the option of the holder, on a one-for-one basis, subject to adjustment as set forth in the Issuer's registration statement on Form S-1 (File No. 333-258183).”
14 th August 2023	Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 39) The defendant signs the Registration Statement in his capacity as a director.
23 rd October 2023	Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 42) The defendant signs the Registration Statement in his capacity as a director.
13 th Nov 2023	Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 46) The defendant signs the Registration Statement in his capacity as a director.

22nd Dec 2023	Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 50) The defendant signs the Registration Statement in his capacity as a director.
5th Jan 2024	Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 55) The defendant signs the Registration Statement in his capacity as a director.
11th Jan 2024	Form S-4 Registration Statement Under the Securities Act of 1933 (exhibit NZ1 p. 60) The defendant signs the Registration Statement in his capacity as a director.
16th Jan 2024	Proxy Statement and Prospectus (exhibit NZ1 p. 70) The defendant's beneficial ownership of Oxus shares is 50,000 as of 11 January 2024.
6th Feb 2024	Form 8-K Exhibit 3.1 Certificate of Continuance (exhibit NZ1 p. 77) The Board approved the Continuance (as defined in the Proxy Statement), and the adoption of the articles and by-laws of New Borealis (as defined in the Proxy Statement) in substantially the form attached to the Proxy Statement as Annex I for purposes of the articles and by-laws of New Borealis following the completion of the Continuance. The defendant's signature appears in p. 77 of the Certificate of Continuance.
7th Feb 2024	Form 8-K filed on 13 Feb 2024 reports the closing of the Business Combination. Borealis, Oxus, and Newco, consummated the Transaction, following the approval at the Extraordinary General Meeting. As set forth in the Securities and Exchange Commission (SEC) S-4 Registration Statements signed by the defendant, the closing of the Business Combination on 7th February 2024 is a material event because it triggers the Performance Condition for the Founders Shares which were granted subject to the closing of the Business Combination transaction.
8th Feb 2024	SEC Form 8-K Exhibit 99.1 stated that following the Business Combination of 7 February 2024 Borealis would start trading on Nasdaq on 8 February 2024 under the ticker symbol BRLS. Eleven days before the U.K. trial began, Oxus SPAC completed its business combination, and the new shares began trading on Nasdaq. On 8 February 2024 at 4:45pm EST, Rakishev posted a photograph on his Instagram account featuring the defendant, three associates, and himself at the Nasdaq exchange in New York's Times Square. The time stamp is visible on the picture.

Kenes Rakeshev (second from right) and Mr. Zahmoul (second from left) outside Nasdaq on 8th February 2024 when Oxus/Borealis was launched (BRLS).



Timeline of perjuries and false statements

18 th to 28 th Feb 2024	Perjury in Sworn Statement of Assets on Form ES2 (exhibit NZ1 p. 91) The trial started on 19 February 2024 at the Royal Courts of Justice, High Court. The defendant filed his sworn statement of assets on Form ES2 dated 19 February 2024. He reported a fair value of \$0 for the Oxus shares. On that day, the market value of the shares shares was \$500,000 as per Nasdaq closing price.
19 th Feb 2024	Counsel Note on Behalf of the Respondent Husband (exhibit NZ2 p. 111) Para. 24. “During these proceedings, H has continued to invest and has channeled some of these projects through EMVirya Ltd a company in which he is an 80% shareholder. The company does nothing other than receive fees. H has also taken on work as a non-executive director for Oxus Acquisition Corp. He is not paid a salary but has been awarded founder shares for his input [4335]. He is hopeful that those shares will in time have value to reflect his input. Otherwise, H plans, subject to liquidity pressures, to carry on as a niche private investor seeking out profitable returns in the future”. This is a false statement. On 19 February 2024 the shares’s market value was approximately \$500,000.
22 nd Feb 2024	Witness Evidence The defendant was lawfully sworn as a witness in the U.K. trial. He wilfully made false statements which he knew to be false and did not believe to be true; and which were material in the proceedings. He falsely stated in his witness evidence to the Court that the value of the Oxus shares was \$0.
27 th Feb 2024	Counsel Oral Submissions on Behalf of Respondent Husband (exhibit NZ2 p. 93) In her closing submissions on behalf of the defendant Ms Campbell KC asserted: “Oxus, Karim Zahmoul was assisting on an advisory basis. He has some shares; they are of no value ”. This was a false statement. On that day, the market value of the Oxus shares was \$500,000, as per Nasdaq trading prices.
28 th Feb 2024	Counsel Closing Submissions on Behalf of the Respondent Husband (exhibit NZ2 p. 170) Income resources – s.25(2)(a) “25. H has not been in banking since 2014. Those days of high income awards have long passed. He worked for a renewable energy development project between 2014 and 2017. The income earned in those years has been calculated by his accountant at [2229]. These are modest sums. The work did not last. Between 2018 and 2020 H worked for Sphere Digital in Morocco. He had to go overseas to get that job, which ended in litigation. H attempted to use his consultancy skills to generate income through EMVirya Ltd, but this has not been successful, and the business has not made sufficient income to draw a salary or profit. He no longer works as a director of Oxus (a role he lost when the business merged with Borealis) but did not earn any income and was only reimbursed business related expenses, [s.25 statement paragraph 30].”

28th February 2024

Immediately after the conclusion of the trial, I checked my SEC notifications and realized that the business combination had closed on 7 February 2024, and that the defendant had committed perjury at the trial. I met with my barrister, Brent Molyneux KC, on the same day. He read the information and confirmed that the defendant had committed a perjury and that this constituted material information which should be communicated to the judge as soon as possible.

29th February 2024

First email to defendant's solicitors.

My solicitors sent the following email to the defendant's legal team (exhibit NZ1 p. 95)

*"Dear Valeria, we attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post-merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of \$9.20 (and your client had 50,000 shares in the pre-merger OXUS) **please can you explain the value of his stockholding with reference to the attached documents and any others in your client's possession – and why he ascribed a nil value to his equity in the ES2.** We look forward to hearing from you. Kind regards, Faye".*

We sent two follow-on emails on 4 March 2024 at 12:46, and 6 March 2024 at 2:28 (exhibit NZ1 p. 99 and 102) but the defendant's team did not reply. At that stage, my counsel, Mr. Molyneux KC advised me to write to the judge, which I did on 6th and 7th March 2024.

6th March 2024

On 6 March 2024 I became a litigant in person due to lack of funding. I informed the judge that the Business Combination transaction occurred on 7 February 2024 and the Performance Condition had been met. I stated that the new company shares had started trading on Nasdaq on 8 February 2024, providing full visibility on the market value of the defendant's shares. I attached documentary evidence of the defendant's knowledge and

his involvement in the entire lifecycle of the SPAC and De-SPAC transactions, consistent with his duties as an independent director of Oxus SPAC. The evidence is in exhibits NZ1 and NZ2 and consists primarily of SEC filings which are available through Edgar.com, the filing platform of the SEC. My email to the judge and enclosures are in **exhibit NZ1 p. 101 through 122.**

7th March 2024

As I was a litigant in person and did not have legal advice, I wasn't sure of the procedure. I prepared a comprehensive statement on Form D-11 setting forth the events and the evidence and filed it with the Court on 7 March 2024. I included a timeline of the SEC filings for the period from 2021 to 2024, and excerpts from the Proxy Statement and Prospectus Oxus of 16 January 2024.

The table below shows the actual beneficial ownership of Oxus Shares as of September 30, 2023, and pro forma information regarding the beneficial ownership of New Borealis Common Shares on the date of the Closing. Oxus believes that all persons named in the table have sole voting and investment power with respect to all shares beneficially owned by them. The following table does not reflect record or beneficial ownership of Oxus' warrants because such warrants are not exercisable within 60 days of the date of this proxy statement/prospectus. The calculation of the pre-transaction percentage of beneficial ownership for Oxus is based on 6,552,131 Oxus Shares outstanding as of **January 11, 2024**. The calculation of the pre-transaction percentage of beneficial ownership for Borealis is based on 167,159,371 Borealis Shares outstanding as of September 30, 2023.

Fig 1: Beneficial ownership: Directors, Executive Officers and Sponsor of Oxus (page 287)

Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Askar Mametov ⁽¹¹⁾	—	—	—	—	—	—
Karim Zahmoul	50,000	*	50,000	*	50,000	*
Christophe Charlier	50,000	*	50,000	*	50,000	*
Shiv Vikram Khemka	50,000	*	50,000	*	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500 ⁴⁾⁽⁵⁾	65.82%	5,686,333	25.25%	5,686,333	27.63%
Directors and Executive Officers of New Borealis After Consummation of the Business Combination:						
Reza Soltanzadeh	55,376,531 ⁸⁾⁽⁹⁾	33.13%	3,230,969	14.35%	3,230,969	16.28%
Barthelemy Helg	48,494,719 ¹⁰⁾	29.01%	3,230,969	14.35%	3,230,969	16.28%
Stephen Wegrzyn	—	—	33,430	*	33,430	*
Pouneh Rahimi	—	—	194,574	*	194,574	*
Matt Talle	—	—	217,139	*	217,139	*
Henry Wong	—	—	6,143	*	33,430	*
Kanat Mynzhanov	—	—	200,000	*	200,000	*
Shiv Vikram Khemka	—	—	50,000	*	50,000	*
Shukhrat Ibragimov ⁽¹²⁾	—	—	2,754,716	12.23%	2,754,716	13.39%
Steven Oyer	—	—	—	—	—	—
Ertharin Cousin	—	—	—	—	—	—
All directors and executive officers as a group (nine individuals)	3,871,250	62.14%	9,466,654	42.04%	9,466,654	45.95%
Five Percent or More Holders and Certain Other Holders:						

Source: SEC Filing S-4, 11th January 2024

Statement of truth

I understand that the proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

I believe that the facts stated in this witness statement are true

Signed

Nadia Zahmoul

Nadia Zahmoul
this 18th Day of October 2024



Claim Form

In the	133
Fee Account no.	
Help with Fees - Ref no. (if applicable)	H W F - -
For court use only	
Claim no.	
Issue date	

You may be able to issue your claim online which may save time and money. Go to www.moneyclaim.gov.uk to find out more.

Claimant(s) name(s) and address(es) including postcode

Ms. Nadia Zahmoul
35 Queens Gate Gardens
London SW7 5RR



Defendant(s) name and address(es) including postcode

Mr. Karim Nouredine Zahmoul
158 Rua Rodrigues Sampaio, 1 Esq
Lisbon
Portugal
1150282

Brief details of claim

The defendant committed perjury and made false representations in his sworn statement of assets ES2 and in his witness evidence under oath. He instructed his counsel to make false representations in closing submissions to the court. In his sworn financial statement on Form ES2 dated 19 February 2024, and in his witness evidence at the trial the defendant represented that the value of his Oxus shares was \$0. At the time he made these representations under oath he knew them to be false and he knowingly committed perjury with the intention of making a financial gain for himself and causing me a financial loss. He withheld material information from the court, failing to disclose that the performance condition for his stock-based compensation had been met eleven days prior to the start of trial and that his Founders Shares had a market value of \$500,000.

Value

\$500,000 plus value of the warrants (BRLSW) plus damages and compensation for harm. The defendant committed fraud by false representation. I suffered substantial harm as a result of these actions. The defendant's conduct undermines the public's trust in the judiciary system. He was motivated by his personal gain and he lacks remorse, and moral decency.

Defendant's name and address for service including postcode

Mr. Karim Zahmoul
158 Rua Rodrigues Sampaio, 1 Esq
Lisbon
Portugal
1150282

£

Amount claimed	
Court fee	
Legal representative's costs	
Total amount	

For further details of the courts www.gov.uk/find-court-tribunal.

When corresponding with the Court, please address forms or letters to the Manager and always quote the claim number.

Claim no.

You must indicate your preferred County Court Hearing Centre for hearings here
(see notes for guidance)

Kings Bench Division Royal Courts of Justice Strand
London WC2A 2LL

Do you believe you, or a witness who will give evidence on your behalf, are vulnerable in any way which the court needs to consider?

- ☒ Yes. Please explain in what way you or the witness are vulnerable and what steps, support or adjustments you wish the court and the judge to consider.

I have mental health disabilities (PTSD and autism) which impair my daily social and occupational functioning. I struggle with severe sensory overwhelm and "autism burnout" especially when I am experiencing distress. My motor movements can become erratic and my presentation can be a source of concern to those who are not familiar with autism, PTSD, and neurological disorders. Part 3A participation measures help me stay calm, focussed, and give my best possible witness evidence. In the past, these measures have included (i) formulating the questions with clarity, (ii) avoiding innuendos, (iii) calling for a break if I become distressed or overwhelmed, and (iv) ensuring that the defendant has no contact with me whatsoever, under any circumstances.

☐ No

Does, or will, your claim include any issues under the Human Rights Act 1998?

- ☒ Yes
☐ No

Particulars of Claim ☐ attached☐ to follow

1. At the final hearing of the financial proceedings the defendant's sworn asset schedule ES2 dated 19.02.2024 identified Oxus Acquisition Corp. as a "non-matrimonial business interest" and attributes a fair market value of "zero" to the 50,000 Oxus shares.
2. The defendant gave his witness evidence under oath on 22nd, 23rd, and 26th February. He made three assertions concerning Oxus: (i) he represented that he had resigned his position as an independent director of the board of Oxus, (ii) he stated that his Founders Shares were worth \$0, and (iii) he represented that his "involvement" with Oxus was a "non-matrimonial interest".
3. On 26.02.2024, the defendant's counsel made closing submissions and stated: "Oxus, Karim Zahmoul was assisting on an advisory basis. He has some shares, but they have no value" 1, 2, and 3 are false representations and constitute acts of fraud by false representation. The defendant dishonestly made representations which he knew to be false at the time he made the

The principal issues to consider are (1) how serious is the conduct (i.e. what was, or could have been, the impact on the administration of justice?); (2) what is the culpability of the defendant (his knowledge and involvement, was the action premeditated, was there a motivation, has the conduct been repeated?); (3) whether the defendant's actions were or created a risk of an interference with the administration of justice that was sufficiently serious to amount to criminal contempt; and (4) whether the respondent had a specific intention to interfere with the administration of justice.

In terms of harm, as a result of the defendant's conduct the outcome of the proceedings was unfair and the case is still in the courts. This was as the respondent intended. I suffered substantial harm as a result of these actions. The defendant's conduct undermines the public's trust in the judiciary system. The defendant was motivated by his personal gain and his lack of remorse, moral, and decency. The defendant committed fraud by false representation. He dishonestly made a false representation and intended, by making the representation, to make a gain for himself or another, or to cause loss to another, or to expose another to a risk of loss.

In terms of culpability, the defendant was responsible for his sworn statement of assets ES2 dated 19 February 2024 which he filed with the court as evidence for the trial. Likewise, the defendant was responsible for the submissions and the evidence before the trial judge, whether in writing or in oral submissions. He directed his counsel to make statements which were untrue on three occasions. The defendant knew these representations to be false, untrue or misleading at the time when he made them or directed his counsel to make them. He was in no doubt that his conduct amounted to contempt, and he directed his solicitors to ignore my emails of 29th February 2024, 4th and 6th March 2024 requesting an explanation regarding the false representation.

Note: you are reminded that a copy of this claim form must be served on all other parties.

Statement of truth

I understand that proceedings for contempt of court may be brought against a person who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

☒ **I believe** that the facts stated in this claim form and any attached sheets are true.

☐ **The claimant** believes that the facts stated in this claim form and any attached sheets are true. **I am authorised** by the claimant to sign this statement.

Signature

Nadia Zahmoul

☒ Claimant

☐ Litigation friend (where claimant is a child or protected party)

☐ Claimant's legal representative (as defined by CPR 2.3(1))

Date

Day

3 0

Month

1 0

Year

2 0 2 4

Full name

Nadia Zahmoul

Name of claimant's legal representative's firm

N.A.

If signing on behalf of firm or company give position or office held

Claimant's or claimant's legal representative's address to which documents should be sent.

Building and street

35 Queens Gate Gardens

Second line of address

Town or city

London

County (optional)

Postcode

S | W | 7 | 5 | R | R |

If applicable

Phone number

+44 (0)79 1332 8615

DX number

Your Ref.

Email

Nadia@rosekross.com

Oxus Acquisition Corp.

SEC Filings

DATE	SEC DOCUMENT TYPE	DESCRIPTION OF DOCUMENT	APPLICANT'S COMMENTS
REGULATORY DISCLOSURES AND SEC FILLINGS IN 2021			
01/04/2021	SEC Form S-1	REGISTRATION STATEMENT UNDER THE SECURITIES ACT OF 1933. Oxus Acquisition Corp, a newly formed blank check company (SPAC) incorporated as a Cayman Island exempted company for the purpose of entering into a merger, share exchange, asset acquisition, share purchase, recapitalization, reorganization or other similar business combination with one or more businesses or entities, referred to as "Target Business". This form S-1 is the Draft Registration / preliminary prospectus for the IPO of the securities issued by Oxus. Each unit has an offering price of \$10.00 and consists of one Class A ordinary share and one-half of one warrant. Each whole warrant entitles the holder thereof to purchase one Class A ordinary share at a price of \$11.50 per share	
19/08/2021	SEC Form S-1 (1st amendment)	Each unit has an offering price of \$10.00 and consists of one Class A ordinary share and one warrant. Each warrant entitles the holder thereof to purchase one Class A ordinary share at a price of \$11.50 per share, subject to adjustment as described herein. Each warrant will become exercisable 30 days after the completion of the initial business combination and will expire on the fifth anniversary of the completion of an initial business combination, or earlier upon redemption or liquidation.	
02/09/2021	Nasdaq Form 8-A 12 (b)	Registration of (i) Units, each consisting of one Class A ordinary share and one warrant, (ii) of Class A ordinary shares with par value of \$0.0001 per share, and Warrants, each whole warrant exercisable for one Class A ordinary share at an exercise price of \$11.50.	
02/09/2021	SEC Notice of Effectiveness of Form S-1		
02/09/2021	Pursuant to SEC Rule 424 (b) (4)	PROSPECTUS	
02/09/2021 (reported 9 sept 2021)	SEC Form 8-K	On 8 Sept 2021 the Cie raised \$150m in a public offering. A total of \$153,000,000 of the net proceeds from the Offering and the Private Placement was placed in a trust account established for the benefit of the Company's public shareholders (the "Trust Account"), with Continental acting as trustee.	
08/09/2021	SEC Form 8-K	On September 8, 2021, Oxus Acquisition Corp., a Cayman Islands exempted company (the "Company"), consummated its initial public offering (the "Offering") of 15,000,000 units (the "Units"). The Units were sold at an offering price of \$10.00 per Unit, generating gross proceeds of \$150,000,000. Simultaneously with the consummation of the Offering, Oxus completed a private placement of an aggregate of 8,400,000 warrants (the "Private Placement Warrants") at a price of \$1.00 per Private Placement Warrant, generating gross proceeds of \$8,400,000 (the "Private Placement"). A total of \$153,000,000 of the net proceeds from the Offering and the Private Placement was deposited in a trust account established for the benefit of the Company's public shareholders. On September 9, 2021, the underwriters notified the Company of their exercise of the over-allotment option in full and purchased 2,250,000 additional Units at \$10.00 per Unit upon the closing of the over-allotment option, generating gross proceeds of \$22,500,000	

DATE	SEC DOCUMENT TYPE	DESCRIPTION OF DOCUMENT	APPLICANT'S COMMENTS
REGULATORY DISCLOSURES AND SEC FILLINGS IN 2022			
01/06/2022	SEC-Form 8-K	Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the Audit Committee of the BOD.	
03/06/2022	Exhibit 24.1 to SEC-Form 8-K	Karim Zahmoul causes POA to be executed KNOW ALL BY THESE PRESENTS, that the undersigned hereby constitutes and appoints each and any of Alan I _ Annex, Jason T. Simon, Yuta N. Delarck, and Yangyang Jia its true and lawful attorney-in-fact and agent, with full power of substitution and re-substitution, for it and in its name, place and stead, in any and all capacities (until revoked in writing) to Sign any and all instruments, certificates and documents appropriate or required to be executed on behalf of the undersigned pursuant to sections 13 and 16 of the Securities Exchange Act of 1934, as amended (the "Exchange Act"), and any and all regulations promulgated thereunder (including, without limitation, any Joint Filing Agreement with respect thereto), and to file the same, with all exhibits thereto, and any other documents in connection therewith, with the Securities and Exchange Commission (the "SEC"), and with any other entity when and if such is mandated by the Exchange Act or by the Bylaws of the Financial Industry Regulatory Authority; 2. prepare, execute, acknowledge, deliver and file a Form ID (including any amendments or authentications thereto) with respect to obtaining EDGAR codes, with the SEC; 3. seek or obtain, as the representative of the undersigned and on behalf of the undersigned, information on transactions in securities, from any third party, including brokers, employee benefit plan administrators and trustees, and the undersigned hereby authorizes any such person to release any such information to such attorneys-in-fact and the undersigned approves and ratifies any such release of information; and 4. perform any and all other acts which in the discretion of such attorneys-in-fact are necessary or desirable for and on behalf of the undersigned in connection with the foregoing.	Date as of which he had knowledge of appointment and share allocation contrary to HFC's representation of appointment and contingent compensation.
06/06/2022	SEC-Form 8-K Current Report	SEC-Form 8 Accepted Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the <i>Audit Committee of the BOD</i> .	
06/06/2022	Letter from HFC to Withers	"My client has been offered a directorship role in an SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this but they will be provided once executed."	Factually incorrect as Mr. Zahmoul (1) was appointed to the BOD on 1 June 2022; and (2) caused a POA to be executed on 3 June 2022 which facilitated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A shares. None of this was disclosed by HFC. In fact, HFC goes out of their way to mislead us: 'he may receive shares in the company subject to its performance'.
06/06/2022	Letter from HFC to Withers	"My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."	Factually incorrect as Mr. Zahmoul caused a POA to be executed on 3 June 2022 which facilitated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A Shares.
07/06/2022	SEC-Form 3 Initial Statement of Beneficial Ownership of Securities	INITIAL STATEMENT OF BENEFICIAL OWNERSHIP OF SECURITIES. Karim Zahmoul receives 50,000 Class A Ordinary Shares in Oxus Acquisition Corp.	HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."
09/06/2022	SEC-Form 3 Initial Statement of Beneficial Ownership of Securities	INITIAL STATEMENT OF BENEFICIAL OWNERSHIP OF SECURITIES. SEC-Form 3 Files Karim Zahmoul receives 50,000 Class A Ordinary Shares in Oxus Acquisition Corp.	HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."
17/06/2022	Yahoo Finance	OXUS Shares @ \$9.99 per Share; Current Enterprise Value of 215.36 Million	

DATE	SEC DOCUMENT TYPE	DESCRIPTION OF DOCUMENT	APPLICANT'S COMMENTS
REGULATORY DISCLOSURES AND SEC FILLINGS IN 2023			
23/02/2023	SEC Reg FD	Business Combination Agreement. On February 24, 2023, Oxus Acquisition Corp. and Borealis Foods Inc., a corporation incorporated under the laws of Canada, jointly issued a press release announcing the execution of a business combination agreement on February 23, 2023	
03/03/2023	SEC-Form 8-K	EXTRAORDINARY GENERAL MEETING. On March 3, 2023, in connection with the Extraordinary General Meeting, Oxus filed an amendment (the "Charter Amendment") to the Company's Amended and Restated Memorandum and Articles of Association (the "Charter") with the Registrar of Companies in the Cayman Islands to (1) extend the date by which the Company must consummate its initial business combination from March 8, 2023 to December 8, 2023 , or such earlier date as determined by the Company's board of directors (the "Extended Date") and (2) provide for the right of a holder of Class B ordinary shares of the Company to convert into Class A ordinary shares on a one-for-one basis prior to the closing of a business combination at the election of such holder. The Company's shareholders approved the Charter Amendment at the Extraordinary General Meeting on March 2, 2023.	
14/08/2023	SEC-Form S-4	REGISTRATION STATEMENT UNDER THE SECURITIES ACT OF 1933 PROXY STATEMENT AND PROSPECTUS	
13/11/2023	SEC-Form S-4 (2nd amendment)	BENEFICIAL OWNERSHIP OF DIRECTORS: The beneficial ownership of Oxus' independent directors, Christophe Charlier, Karim Zahmoul and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,657,500 based on the closing price of Class A Shares of \$11.05 on the Nasdaq on October 17, 2023. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares; LOCK-UP AGREEMENTS: In connection with the Closing, Oxus and certain directors/officers/five percent or greater shareholders of Borealis (the "Subject Party") will enter into Lock-Up Agreements, pursuant to which (A) 50% of the shares of New Borealis held by the Subject Party (the "Restricted Securities") will be locked-up during the period commencing from the Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of common shares of New Borealis equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from the Closing and ending on 12 months after the date of the Closing, subject to certain specifications and exceptions.	

DATE	SEC DOCUMENT TYPE	DESCRIPTION OF DOCUMENT	APPLICANT'S COMMENTS
REGULATORY DISCLOSURES AND SEC FILLINGS IN 2024			
16/01/2024	SEC Proxy Statement and Prospectus	See Summary of Key Points	
07/02/2024	SEC Form 8-K	CLOSING OF BUSINESS COMBINATION: On February 7, 2024 (the "Closing Date"), Borealis Foods Inc., a corporation incorporated under the laws of Canada ("Borealis"), Oxus Acquisition Corp., a Cayman Islands exempted company ("Oxus"), and 1000397116 Ontario Inc., an Ontario corporation and a wholly owned subsidiary of Oxus ("Newco"), consummated the transactions (collectively, the "Transaction") contemplated by the Business Combination Agreement, dated as of February 23, 2023, EXCHANGE RATE OF EQUITY. Upon the closing of the Transaction, the following occurred: The common shares of Borealis were exchanged for shares of New Borealis Common Shares equal to the quotient of (a) \$150,000,000 minus Borealis' Closing Net Indebtedness, as agreed to by the parties, of \$17,000,000, which equals \$133,000,000, divided by (b) \$10.00 (the "Aggregate Transaction Consideration"). Each Borealis Common Share was exchanged for 0.0661 of a New Borealis Common Share, which is equal to the quotient obtained by dividing the Aggregate Transaction Consideration by the aggregate number of Borealis Common Shares issued and outstanding immediately prior to the Borealis Amalgamation. As of the Closing Date, the Aggregate Transaction Consideration was 13,300,000 New Oxus Common Shares, and was based on 201,206,834 Borealis Common Shares issued and outstanding, with an exchange rate of 0.0661, which the process is described in the final prospectus and definitive proxy statement, dated January 16, 2024 (the "Proxy Statement/Prospectus") filed by Oxus with the SEC.	
08/02/2024	NASDAQ Press Release	Borealis Foods Inc commenced trading on the Nasdaq under the ticker symbol "BRLS" on February 8, 2024.	
19/02/2024	High Court Trial/Sworn Statement of Assets ES2	The defendant swears his asset schedule on Form ES2 and assigns a value of zero to his 50,000 shares in Oxus Acquisition Corp.	Sworn Statement of Assets ES2 - see evidence before the court
22/02/2024	High Court Trial/Witness evidence	The defendant gives evidence under oath and states that his Oxus shares have no value.	
26/02/2024	High Court Trial/Closing Submissions	In her closing submissions, the respondent's counsel, Ms. Campbell KC, states: " Oxus, Karim Zahmoul was assisting on an advisory basis. He has some shares; they are of no value "	See Transcript of Evidence - page 92

DATE	SEC DOCUMENT TYPE	DESCRIPTION OF DOCUMENT	APPLICANT'S COMMENTS
28/02/2024	High Court Trial	Immediately after the conclusion of the trial, the claimant checks her SEC notifications and sees the regulatory filings Oxus made in February in connection with the closing transaction with Borealis. She realizes that the defendant committed perjury.	
28/02/2024	Email to Defendant's legal team	The claimant's legal team sends the following email to the other side: "Dear Valeria, we attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post-merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of \$9.20 (and your client had 50,000 shares in the pre-merger OXUS) please can you explain the value of his stockholding with reference to the attached documents and any others in your client's possession – and why he ascribed a nil value to his equity in the ES2. We look forward to hearing from you. Kind regards, Faye".	
3/29/2024 & 04/03/2024	Email to Defendant's legal team	The claimant's solicitors sent two follow-on emails on 29 February 2024 at 17:07, and 4 March 2024 at 12:46, but the defendant's legal team did not reply.	
06/03/2024	1st email to the judge	The claimant becomes a litigant in person due to lack of funding. She emails the judge the SEC filings and provides documentary evidence of the defendant's knowledge prior to the start of the High Court trial, including his signature on all the SEC filings as a Director of Oxus,	
07/03/2024	2nd email to the judge	The claimant sends a second email to inform the court that the defendant committed perjury. As she no longer has legal advice, she uses a Form D-11 in case the procedure requires it.	
09/04/2024	3rd email to the judge	The claimant sends a third email to the court with substantial background information on the Kazakh oligarch who controls Oxus Spac and employs the defendant. She sends a photograph the oligarch posted in his own Instagram account on 9 February 2024 celebrating the company's public listing on NASDAQ.	
19/04/2024	The judgment is handed down	The judgment makes findings which are not consistent with the evidence before the court at the trial, nor are they consistent with the transcripts of oral evidence and the closing submissions.	See Transcript of Evidence and Form ES2 sworn on 19 February 2024

Oxus Acquisition Corp.
2022

**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549**

FORM 8-K

CURRENT REPORT

**Pursuant to Section 13 or 15(d) of the
Securities Exchange Act of 1934**

Date of report (Date of earliest event reported): **May 31, 2022**

Oxus Acquisition Corp.

(Exact name of registrant as specified in its charter)

Cayman Islands	001-40778	N/A
(State or other jurisdiction of incorporation)	(Commission File Number)	(I.R.S. Employer Identification No.)
300/26 Dostyk Avenue Almaty, Kazakhstan 050040		050020
(Address of principal executive offices)		(Zip Code)

+7(727)355-8021

(Registrant's telephone number, including area code)

Not Applicable

(Former name or former address, if changed since last report)

Check the appropriate box below if the Form 8-K is intended to simultaneously satisfy the filing obligation of the registrant under any of the following provisions:

- ☐ Written communications pursuant to Rule 425 under the Securities Act (17 CFR 230.425)
- ☐ Soliciting material pursuant to Rule 14a-12 under the Exchange Act (17 CFR 240.14a-12)
- ☐ Pre-commencement communications pursuant to Rule 14d-2(b) under the Exchange Act (17 CFR 240.14d-2(b))
- ☐ Pre-commencement communications pursuant to Rule 13e-4(c) under the Exchange Act (17 CFR 240.13e-4(c))

Securities registered pursuant to Section 12(b) of the Act:

Title of each class	Trading Symbol(s)	Name of each exchange on which registered
Units, each consisting of one class A ordinary share and one Warrant	OXUSU	The Nasdaq Stock Market LLC
Class A ordinary shares, par value \$0.0001 per share	OXUS	The Nasdaq Stock Market LLC
Warrants, each whole warrant exercisable for one Class A ordinary share at an exercise price of \$11.50	OXUSW	The Nasdaq Stock Market LLC

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933 (§230.405 of this chapter) or Rule 12b-2 of the Securities Exchange Act of 1934 (§240.12b-2 of this chapter).

Emerging growth company ☒

If an emerging growth company, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 13(a) of the Exchange Act. ☐

Item 5.02 Departure of Directors or Certain Officers; Election of Directors; Appointment of Certain Officers; Compensatory Arrangements of Certain Officers.

On May 31, 2022, Sergei Ivashkovsky tendered his resignation as a director of the board of directors of Oxus Acquisition Corp. (the “Company”) effective immediately. Mr. Ivashkovsky’s resignation is not based on any disagreement with the Company on any matter relating to the Company’s operations, policies or practice.

In addition, on June 1, 2022, the Board of Directors appointed Karim Zahmoul to fill the vacancy created by Mr. Ivashkovsky’s resignation, effective immediately. Mr. Zahmoul will serve on the audit committee of the Company’s Board of Directors.

Karim Zahmoul, 56, has 25 years of investment banking experience. He has served as a Founder and CEO of EMVirya Ltd, an FCA regulated investment advisor based in London since February, 2018. EMVirya Ltd, is a privately held financial services firm with extensive experience in global emerging markets that is positioning itself at the cross road of Emerging markets and renewable energy. Prior to founding EMVirya, Mr. Zahmoul was a Partner at Temporis Capital from September 2014 to April 2017 in London, where he was responsible for the firm’s international investments business and developed renewable energy project in the emerging market jurisdiction including extended focus in Morocco and Argentina. Prior to that from 2004 to 2014, Mr. Zahmoul was a Managing Director at Barclays Investment Bank where he held various senior positions over his 10-year tenure at the bank. In his last position, he was responsible for the Global Emerging Market business for the investment bank. Prior to Barclays from 1999 to 2004, Mr. Zahmoul spent five years at Deutsche Bank where he was a Managing Director and Head of Emerging Market Structuring for the Americas in New York. He started his financial career and spent six years at Goldman Sachs, in both New York and London, where his last position was Executive Director in EEMEA Trading. Mr. Zahmoul received an MSc and a BSc from Columbia School of Engineering and Applied Sciences in Operation Research and a BA in Physics from Columbia College. The Company believes that Mr. Zahmoul’s qualifications to serve on our Board of Directors include his extensive experience in investment and financial industry.

SIGNATURE

Pursuant to the requirements of the Securities Exchange Act of 1934, the registrant has duly caused this report to be signed on its behalf by the undersigned hereunto duly authorized.

OXUS ACQUISITION CORP.

By: /s/ Kanat Mynzhanov

Name: Kanat Mynzhanov

Title: Chief Executive Officer

Date: June 6, 2022

EX-24.1 2 ea161404ex24-1_oxusacq.htm POWER OF ATTORNEY

Exhibit 24.1**Power of Attorney**

KNOW ALL BY THESE PRESENTS, that the undersigned hereby constitutes and appoints each and any of Alan I. Annex, Jason T. Simon, Yuta N. Delarck, and Yangyang Jia its true and lawful attorney-in-fact and agent, with full power of substitution and re-substitution, for it and in its name, place and stead, in any and all capacities (until revoked in writing) to:

1. Sign any and all instruments, certificates and documents appropriate or required to be executed on behalf of the undersigned pursuant to sections 13 and 16 of the Securities Exchange Act of 1934, as amended (the "Exchange Act"), and any and all regulations promulgated thereunder (including, without limitation, any Joint Filing Agreement with respect thereto), and to file the same, with all exhibits thereto, and any other documents in connection therewith, with the Securities and Exchange Commission (the "SEC"), and with any other entity when and if such is mandated by the Exchange Act or by the Bylaws of the Financial Industry Regulatory Authority;
2. prepare, execute, acknowledge, deliver and file a Form ID (including any amendments or authentications thereto) with respect to obtaining EDGAR codes, with the SEC;
3. seek or obtain, as the representative of the undersigned and on behalf of the undersigned, information on transactions in securities, from any third party, including brokers, employee benefit plan administrators and trustees, and the undersigned hereby authorizes any such person to release any such information to such attorneys-in-fact and the undersigned approves and ratifies any such release of information; and
4. perform any and all other acts which in the discretion of such attorneys-in-fact are necessary or desirable for and on behalf of the undersigned in connection with the foregoing.

The undersigned acknowledges that:

1. this Power of Attorney authorizes, but does not require, such attorneys-in-fact to act in their discretion on information provided to such attorneys-in-fact without independent verification of such information;
2. any documents prepared and/or executed by such attorneys-in-fact on behalf of any of the undersigned pursuant to this Power of Attorney will be in such form and will contain such information and disclosure as such attorney-in-fact, in his or her discretion, deems necessary or desirable;
3. the attorneys-in-fact do not assume (a) any liability for responsibility to comply with the requirements of the Exchange Act for any of the undersigned, (b) any liability for any failure to comply with such requirements for any of the undersigned, or (c) any obligation or liability for profit disgorgement under Section 16(b) of the Exchange Act for any of the undersigned; and
4. this Power of Attorney does not relieve any of the undersigned from responsibility for compliance with the undersigned's obligations under the Exchange Act, including without limitation the reporting requirements under Sections 13 and 16 of the Exchange Act.

The undersigned hereby gives and grants the foregoing attorneys-in-fact full power and authority to do and perform all and every act and thing whatsoever requisite, necessary or appropriate to be done in and about the foregoing matters as fully to all intents and purposes as the undersigned might or could do if present, with full power of substitution and revocation, hereby ratifying all that such attorney-in-fact, or such attorney-in-fact's substitute or substitutes, of, for and on behalf of the undersigned, shall lawfully do or cause to be done by virtue of this Power of Attorney. This Power of Attorney shall remain in full force and effect until revoked by the undersigned in a signed writing delivered to such attorneys-in-fact.

[Signature page follows]

IN WITNESS WHEREOF, the undersigned has caused this Power of Attorney to be executed as of this 3rd day of June, 2022.

/s/ Karim Zahmoul

Name: Karim Zahmoul

SEC Form 3

FORM 3**UNITED STATES SECURITIES AND EXCHANGE
COMMISSION**

Washington, D.C. 20549

**INITIAL STATEMENT OF BENEFICIAL OWNERSHIP OF
SECURITIES****OMB APPROVAL**

OMB Number: 3235-0104
 Estimated average burden
 hours per response: 0.5

Filed pursuant to Section 16(a) of the Securities Exchange Act of 1934
 or Section 30(h) of the Investment Company Act of 1940

1. Name and Address of Reporting Person* <u>Zahmoul Karim Nouredine</u> (Last) (First) (Middle) <u>C/O OXUS ACQUISITION CORP.</u> <u>300/26 DOSTYK AVENUE</u> (Street) <u>ALMATY 1P 050020</u> (City) (State) (Zip)	2. Date of Event Requiring Statement (Month/Day/Year) <u>06/07/2022</u>	3. Issuer Name and Ticker or Trading Symbol <u>Oxus Acquisition Corp. [OXUS]</u> 4. Relationship of Reporting Person(s) to Issuer (Check all applicable) ☒ Director 10% Owner Officer (give title below) Other (specify below)		5. If Amendment, Date of Original Filed (Month/Day/Year) 6. Individual or Joint/Group Filing (Check Applicable Line) ☒ Form filed by One Reporting Person Form filed by More than One Reporting Person
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Table I - Non-Derivative Securities Beneficially Owned

1. Title of Security (Instr. 4)	2. Amount of Securities Beneficially Owned (Instr. 4)	3. Ownership Form: Direct (D) or Indirect (I) (Instr. 5)	4. Nature of Indirect Beneficial Ownership (Instr. 5)
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**Table II - Derivative Securities Beneficially Owned
(e.g., puts, calls, warrants, options, convertible securities)**

1. Title of Derivative Security (Instr. 4)	2. Date Exercisable and Expiration Date (Month/Day/Year)		3. Title and Amount of Securities Underlying Derivative Security (Instr. 4)		4. Conversion or Exercise Price of Derivative Security	5. Ownership Form: Direct (D) or Indirect (I) (Instr. 5)	6. Nature of Indirect Beneficial Ownership (Instr. 5)
	Date Exercisable	Expiration Date	Title	Amount or Number of Shares			
Class B ordinary shares	(1)	(1)	Class A ordinary shares	50,000	(1)	D	

Explanation of Responses:

1. The shares of Class B ordinary shares have no expiration date and will automatically convert into shares of Class A ordinary shares at the time of the Issuer's initial business combination, or earlier at the option of the holder, on a one-for-one basis, subject to adjustment as set forth in the Issuer's registration statement on Form S-1 (File No. 333-258183).

Remarks:

See Exhibit 24.1 - Power of Attorney

/s/ Yuta N. Delarck,
Attorney-in-Fact

06/09/2022

** Signature of Reporting Person

Date

Reminder: Report on a separate line for each class of securities beneficially owned directly or indirectly.

* If the form is filed by more than one reporting person, see Instruction 5 (b)(v).

** Intentional misstatements or omissions of facts constitute Federal Criminal Violations See 18 U.S.C. 1001 and 15 U.S.C. 78ff(a).

Note: File three copies of this Form, one of which must be manually signed. If space is insufficient, see Instruction 6 for procedure.

Persons who respond to the collection of information contained in this form are not required to respond unless the form displays a currently valid OMB Number.



Your ref: dcp/slf/ln89320/0001/mqc

Our ref: CP.ZAH003.I

Kate Landells
Withers
DX 160 London/Chancery Lane

6 June 2022

By email only: Katharine.Landells@withersworldwide.com

Dear Kate

Nadia Zahmoul and Karim Zahmoul – finances

My client has been offered a directorship role in an SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this but they will be provided once executed.

My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are.

Yours sincerely

CAROLINE PARK

Our ref: ksl/ln89320/0001/clw
Your ref:

20 Old Bailey, London EC4M 7AN
t: +44 20 7597 6000
f: +44 20 7597 6543
DX 160 London/Chancery Lane
www.withersworldwide.com

29 June 2022

Ms C Park
Hughes Fowler Carruthers

By email only: c.park@hfclaw.com

Dear Caroline

Nadia Zahmoul and Karim Zahmoul - Finances

I wrote to you on 22 June 2022 with a number of questions in relation to your client's disclosure. His response was to write to my client with the subject heading 'Your lawyers are wasting money' and to attach a link to a paper in relation to SPACs. It is characteristic of him to allege, in the face of being asked perfectly legitimate questions, that my client is running up costs or in some way not justified in posing them.

My client wishes to have no further direct communication with your client, save in so far as is necessary in relation to our clients' daughters. She finds his correspondence oppressive, and overbearing and his vitriol towards our client, including in correspondence with the girls' school, is offensive. She does not trust your client, and has good reason not to given the way he has engaged in these proceedings to date.

Yours sincerely



Katharine Landells
on behalf of Withers LLP

direct: +44 20 7597 6188
e-mail: katharine.landells@withersworldwide.com

Withers LLP is a limited liability partnership registered in England and Wales with registered number OC301149 and is authorised and regulated by the Solicitors Regulation Authority with registered number 352314. A full list of members' names and professional qualifications may be inspected at our registered office, 20 Old Bailey, London EC4M 7AN.

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New York Greenwich New Haven San Francisco
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3194

Date	Document Type	Description of Document Content	Comments
01/06/2022	SEC-Form 8 Current Report	Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the Audit Committee of the BOD.	
03/06/2022	Exhibit 24.1 to SEC-Form 8	Karim Zahmoul causes POA to be executed KNOW ALL BY THESE PRESENTS, that the undersigned hereby constitutes and appoints each and any of Alan I _ Annex, Jason T. Simon, Yuta N. Delarck, and Yangyang Jia its true and lawful attorney-in-fact and agent, with full power of substitution and re-substitution, for it and in its name, place and stead, in any and all capacities (until revoked in writing) to Sign any and all instruments, certificates and documents appropriate or required to be executed on behalf of the undersigned pursuant to sections 13 and 16 of the Securities Exchange Act of 1934, as amended (the "Exchange Act"), and any and all regulations promulgated thereunder (including, without limitation, any Joint Filing Agreement with respect thereto), and to file the same, with all exhibits thereto, and any other documents in connection therewith, with the Securities and Exchange Commission (the "SEC"), and with any other entity when and if such is mandated by the Exchange Act or by the Bylaws of the Financial Industry Regulatory Authority; 2. prepare, execute, acknowledge, deliver and file a Form ID (including any amendments or authentications thereto) with respect to obtaining EDGAR codes, with the SEC; 3. seek or obtain, as the representative of the undersigned and on behalf of the undersigned, information on transactions in securities, from any third party, including brokers, employee benefit plan administrators and trustees, and the undersigned hereby authorizes any such person to release any such information to such attorneys-in-fact and the undersigned approves and ratifies any such release of information; and 4. perform any and all other acts which in the discretion of such attorneys-in-fact are necessary or desirable for and on behalf of the undersigned in connection with the foregoing.	Date as of which he had knowledge of appointment and share allocation contrary to HFC's representation of appointment and contingent compensation.
06/06/2022	SEC-Form 8 Current Report	SEC-Form 8 Accepted Oxus Acquisition Corp. Appoints Karim Zahmoul to BOD effective immediately. Mr. Zahmoul will serve on the Audit Committee of the BOD .	
06/06/2022	Letter from HFC to Withers	<i>My client has been offered a directorship role in an SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this but they will be provided once executed.'</i>	Factually incorrect as Mr. Zahmoul (1) was appointed to the BOD on 1 June 2022; and (2) caused a POA to be executed on 3 June 2022 which facilitated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A shares. None of this was disclosed by HFC. In fact, HFC goes out of their way to mislead us: 'he may receive shares in the company subject to its performance'.
06/06/2022	Letter from HFC to Withers	<i>My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are.'</i>	Factually incorrect as Mr. Zahmoul caused a POA to be executed on 3 June 2022 which facilitated his filing of SEC-Form 3 disclosing his ownership of 50,000 Class A Shares.
07/06/2022	SEC-Form 3 Initial Statement of Beneficial Ownership of Securities	Karim Zahmoul receives 50,000 Class A Ordinary Shares in Oxus Acquisition Corp.	HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."
09/06/2022	SEC-Form 3 Initial Statement of Beneficial Ownership of Securities	SEC-Form 3 Files Karim Zahmoul receives 50,000 Class A Ordinary Shares in Oxus Acquisition Corp.	HFC's statement is misrepresenting the facts: "My client will not receive income from the role but he may receive shares in the company subject to its performance – full details are yet to be finalised but will be confirmed when they are."
17/06/2022	Yahoo Finance	OXUS Shares @ \$9.99 per Share; Current Enterprise Value of 215.36 Million	Increase in Net Worth of \$500,000 despite claim that he "may receive shares in the company subject to its performance." This is not a performance bonus, this is a joining bonus and it is not contingent on performance benchmarks.

ZAHMOUL

Position Statement – Applicant Wife – PTR – 13th July 2022

1. Can the Husband be believed by his own *fiat* or ought his disclosure to be treated with appropriate scepticism? Will his Form E be found to belong in the fiction or the non-fiction section of the judicial library? Even he seemed to acknowledge that the Curious Case of the Topanga Valuation (with its unexpected twist being that an asset valuation of \$75,000 was in fact worth \$7 million [e261]) did not deserve a sequel. Thus, he acknowledged [e389] “...that my own stress in trying to manage this process has meant that I have not always managed everything well and I accept that with hindsight, there are some matters I would have done differently in these proceedings, principally in respect of the timing of the disclosure relating to the SPV, Topanga Canyon Holdings LLC...”, and apologised [e399] for the fact that there had been “...a few accidental omissions” in relation to providing in his replies to questionnaire, information about investments identified in his Form E

2. Fair to say that anyone reading that would have been hopeful for better things to come from him (“With the benefit of hindsight I would have approached it very differently” he observed penitentially [e413]). Indeed, with the clarity offered by such an epiphany one might have thought that this Husband would have been anxious to avoid any repetition of the mischief caused by his deficient Topanga disclosure. But some writers have only one genre. On the 6th June H’s solicitors wrote to W’s solicitors and said (in a letter not in the bundle):-

“My client has been offered a directorship role in a SPAC, Oxus Acquisition Corp. He has not yet received the relevant documents / agreements he will enter into as part of this but they will be provided once executed. My client will not receive income from the role but he **may** receive shares in the company subject to its performance – **full details are yet to be finalised** but will be confirmed when they are” [emphasis added]

3. This – unbeknownst to them – was not true in multiple respects. In fact, as that company’s filings make clear, by the time that letter was written
 - a) He had been appointed as a director (on the 1st June 2022)¹;

¹ [Oxus Acquisition Corp. Form 8-K Current Report Filed 2022-06-06 \(secdatabase.com\)](https://www.sec.gov/edgar/data/1718118/000171811822000006/oxus.htm)

- b) He had (on 3rd June 2022), executed a Power of Attorney (Filed as Exhibit 24.1 to Form E3 with the SEC²) which facilitated the filing of SEC-Form 3 on 7th June 2022 disclosing his ownership of 50,000 Class B shares³ which would, automatically convert into A shares on the acquisition of a business by the SPAC;
 - c) Those A shares in the SPAC are valued at \$10 (and are quoted on the NASDAQ).
4. And so not for the first time in these proceedings the Wife's industry has revealed what the Husband did not; that despite his presentation of a *possible* equity stake hedged round by conditionality and performance, the B shares were his – and would convert to A shares on the acquisition by the SPASC of a business whereupon they would be worth – at today's stock price – \$500,000. His explanation for the misleading manner in which his involvement in Oxus was portrayed is awaited (look out for mention of *illiquidity, uncertainty, tradability* – and then remember that he said he may receive equity at a time when not only did he already have B shares, but he knew that its value on current figures, would be \$500,000). Will provide in separate note overnight addressing HFC's updating disclosures of 8 July 2022 re. Oxus B shares and their conversion value. Oxus filed an S-1 Registration Statement and the argument put forth by H in updating disclosures re. Oxus B shares is deficient and misleading.
5. This casual attitude to the provision of accurate disclosure in a case where suspicion is already high, simply is not good enough; and alongside the complexities of Husband's the crypto-currency trading, it should inform how the litigation is progressed.

Issues to be resolved for today

6. The Court will be well familiar with the background to this case, it having last been before this tribunal on the 31st May 2022. The Order made when it was last before this is at [e225]

Tax

² [Zahmoul Karim Noureddine 2022 Security Ownership Statement Form 3](#)

³ [SEC FORM 3](#)

7. The Court envisaged that [e225] by 7 June 2022 the respondent would send a letter summarising his position on the tax figures (to include his proposed time line and grounds for being granted residency in any country other than Portugal if that be part of his position). This has not happened and the Court and the Wife continue to deal in hypotheticals. As Withers explained in their letter of the 29th June [e467]

Your client must provide a comprehensive memorandum in relation to this proposal, to include a detailed explanation of the mechanics and economics of the transaction as well as the timeline. Your client's proposal should be prepared by a US financial adviser with input from a Portuguese tax adviser and should include an opinion from an immigration lawyer detailing the residency process and the timeline for becoming a US tax-payer. In addition to the description of the transaction and the terms and conditions, the memorandum should also include details of the risk factors and should attempt to quantify the potential risk to my client of this proposal.

8. The Wife has set out why she cannot agree with the Husband's figures (either by dint of uncertainty as to whether he will be able to achieve US tax residency or because he has not shown his workings or both. Consideration needs to be given to the way forward. The mechanics of H's proposed two-step settlement must be described in writing and with computations. It is not enough to say 'we will settle the divorce in November 2022 and then do the US real estate transfers in November 2023 when I have my US residency'. The reason this Utopian is because it is impossible to quantify the risk and the valuations in advance. At time T zero, we reach a financial settlement and divide the assets. The real estate is valued at that time, let's say 24 November 2022. The division of assets is based on the value of the real estate at time T zero, the built-in capital-gains tax, transfer tax, the impact of Frost St property on W tax liability in the UK, all the metrics are defined at time T zero. One year later, H has become a US tax-resident and wants to proceed with the transfer. Everything has changed. Real estate is driven by a variety of factors, including US Federal Reserve Rate, interest rates, mortgage rates, inflation rate and GDP growth. It is also driven by market factors, demand, supply, demographics, work trends, real estate taxes, estate taxes and broader regulatory measures. It is driven by Acts of God, such as the Pandemic. W convinced H to buy the second property not as a 'trick' but because she had rightly predicted that the pandemic would drive the wealthy from both East and West Coasts to seek a safe haven for themselves and their families, a place where a hedge fund owner can ski, be mask-free and work as usual, away from germs and other nuisances. The property

purchased in September 2020 at \$4.4m was recently appraised at \$7.2m, a 64% increase in two years. This was not to trick the H; this was a good call. Now one year after the settlement the entire landscape has changed. The values agreed at the settlement are no longer current. Prices, rates, the market, the economy, everything has changed. The settlement at time T1 in 2023 cannot be predicted at T zero in 2022. There is not a single financial institution who could price this risk, which involves too many drivers, including Acts of God. What H is proposing is two settlements, but please do not tell him. He is just testing us, throwing in an absurdity and seeing how we respond to it. He has nothing to lose. The best answer is to ask him to provide a step-by-step memorandum for the proposed transaction, including a comprehensive description of the economics of the deal, the risks, the mechanics, the pricing at T zero and at T 1 and to please have the memo produced by a certified Financial Advisor in the US. Then and only then will I consider this outlandish proposal and will submit to my own Financial Advisor. Please note that such transaction, if H can structure it and execute it must include a compensation to W for the time in which she is not a full owner of her properties (time value of money). It must also include extensive guarantees that H will cover every single risk imaginable during the period T zero-T 1. I know this is absolutely impossible and I know H is throwing it and pretending he is serious because he has no downside. We have spent enough time on this. Please ask for formal transaction memorandum prepared by a Financial Consultant as well as Immigration Opinion. These are the minimum documents W requires to entertain the Utopian idea.

Disclosure

9. A schedule of deficiencies and further questions has been prepared. The deficiencies represent orders already made by the Court with which there must be compliance. The reasons for the further questions are identified in the text of the questionnaire. Given the Husband's flawed approach to disclosure to date, these questions must be answered if there is to be any hope of an accurate quantification of his resources.
10. A response to this questionnaire has just been received (this morning – 12th July). That response will need to be considered and will inform whether an Order is sought for the Schedule of deficiencies and further questions to be answered.

11. As first blush, the most glaring deficiencies which must be addressed immediately are the H's comprehensive tax returns for the years 2019, 2020, and 2021 including crypto-asset reporting for the US (IRS) and the UK (HMRC) jurisdictions. The H's comment on the schedule of deficiencies that 'H has provided all tax returns required in these proceedings including further returns with updating disclosures' is not acceptable. W requires and is entitled to full tax returns, not partial ones. It is not H who chooses which forms he will send with his IRS returns; his duty is to provide the comprehensive returns. If H refuses to provide full and comprehensive tax returns (including crypto assets) for the US and the UK for 2019, 2020, and 2021 please include in Court Order to obtain directly from the IRS and HMRC.
12. W has also asked why H commits perjury in all his IRS returns from 2004 through 2018. H did not provide full returns for 2019, 2020, and 2021. He denies having been a Green Card holder and he denies having been a US resident. Both are serious misrepresentations and W has asked several times why the perjury, but H has yet to provide an answer.

13.

Listing before a High Court Judge⁴

14. The Wife made this application on the 18th February 2022. Nothing that has happened since has weakened the force of the application. Nobody involved in this case could truthfully say other than this is a piece of litigation of rare complexity (and not just because of the indecipherability of the crypto space to anyone other than the Husband, and the expert).
15. The criteria for allocation within the Family Court to a Judge of High Court level are set out in the Statement of Mr. Justice Mostyn of the 1st February 2016

Issue	Relevance to this case
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⁴ If the case has been transferred to High Court Judge level by a district or circuit judge sitting in the Family Court on circuit (other than the South-Eastern Circuit) the order for transfer, together with available dates of counsel for the next hearing, must be emailed to the relevant FDLJ (c/o his or her clerk) who will determine the allocated judge.

The overall net assets exceed £15m; and/or the overall net earned annual income exceeds £1m.	Yes. The assets exceeded £15 million on the disclosed Form E assets – subsequently asset fluctuation has reduced the disclosed resource but the Wife alleges non-disclosure so the disclosed resource is not the key metric
There is a serious case advanced of non-disclosure of assets.	Yes. The Wife alleges non-disclosure (evidenced in relation to Topanga (see [e374-375]) – alleged [with a good <i>prima facie</i> case] in relation <i>inter alia</i> , to the crypto assets as well as in relation to the Husband's involvement with Cornish Lithium [e380], Bitwyre ⁵ [e380-382], Ambulanz ⁶ [e384], Tyfone [e386] and a crypto fund start up [e385]). The novelty and evident <i>complexity</i> of this asset class, the complexity of the expert evidence, the scope for dispute in relation to that expert evidence and the scope of non-disclosure alleged, all justify the allocation of this case to a Judge of High Court level. The particular nature of the cryptocurrency holdings in this case and the issues which are likely arise in relation to them are highly complex, and do

⁵ The shares were priced at **\$0.001129** in round three funding (in which H participated); in round four \$4,000,000 pre-money (i.e. \$3.89 million + \$110k raised) values 886,000,000 original common stock at \$0.004391 per share plus 25,053,985 new shares issued – a rise of 289%; the same maths produces a rise of 1,053% by funding round 6

⁶ In November 2016, the Husband emailed [199] the Wife a business plan in respect of Ambulnz (an Uber type enterprise in the healthcare space), a business in respect of which he told her he was considering investing with another collaborator – Mike Deeg. Thereafter [C138] the Wife says (a) that the Husband made a capital contribution of \$50,000 to Vast Ventures Healthcare LLC (a special purpose vehicle set up for the sole purpose of investing in Ambulnz) (b) that he received a membership in the LLC (c) that the investment was arranged by Nikhil Kalghati (a friend of the Husband and Mike Deeg who also invested) who had also arranged the Topanga investment (d) that he recorded and shared (via Google Drive) details of this investment with her in an Excel spreadsheet. In March 2021, Ambulnz announced a merger with a Special Purpose Acquisition Company (Motion Acquisition Corp.). The merger completed on 5th November 2021 and Ambulnz became DocGo. It began trading on the NASDAQ on 8th November 2021 under the ticker symbol DCGO. Its 2021 4th quarter results, announced on 29th January 2021, showed a 246% increase over the corresponding quarter in 2020 whilst 2021 showed a 224% increase in turnover over 2020. The Husband has produced an email chain from 2017 which sets out his wish to invest in Ambulnz and the potential obstacles presented by the fact that he is not a US citizen. Those emails conclude with the invitation "...can you give me a quick call at +1-508-740-9128 and we can sort this out asap". As to what happened next, nobody – save for the Husband – knows.

	render the proceedings more suitable for determination by a High Court Judge. W relies amongst other things on: (a) the extensive and historic nature of H's admitted cryptocurrency holdings; (b) the fact that H's cryptocurrency holdings were stored in a variety of manners including on exchanges and in self-custodial wallets, making the process of identifying H's holdings and transactions so much more difficult; (c) the fact that Mr Pinto has already recognised that information from the cryptocurrency exchanges would assist in uncovering the extent of H's holdings, going as far to say that "<i>Binance will need to be approached</i>" in relation to two transactions (see e.g. [e500] and [e516]) (d) this may in turn require applications for disclosure from third-parties inside (and potentially outside) the jurisdiction; (e) the fact that H appears to have been involved in transactions in which "<i>peel chains</i>" have been used (see [e510]), which can suggest that a transferor is seeking to disguise the transfer; (f) the fact that H has been involved in cryptocurrency mining, which gives rise to its own issues as to the extent to which H has been earning cryptocurrency and where it has been deposited; (g) the fact that Mr Pinto has already concluded that there are "<i>wallets of interest</i>" and that H's explanations on certain issues to do not stand up to "<i>analysis</i>", and further that Mr Pinto was unable to identify the source of funds for numerous transactions, all of which are likely to justify the Court making further orders to uncover the true extent of H's holdings.
Substantial assets are held offshore either directly or through the medium of trust or corporate entities and there	UK-based assets are only 2.7% of total gross assets (excluding Pension Funds) Real estate property (Tunisia, South of France, Portugal,

may be issues as to the enforceability of any award	Panama, USA [Texas, New York & Wyoming⁷]), private equity & other shareholdings in private companies (various jurisdictions inc. Panama, Lichtenstein, USA, Ethiopia, Argentina, Kazakhstan, Indonesia), publicly traded equity (USA) and pension resources (USA & Jersey)⁸ are all held offshore (USA, Jersey, Tunisia⁹) The corollary of this is the complexity of the tax evidence on distribution of the assets (to be calculated by reference to UK, US and Portuguese tax rules)
Substantial assets are held in cryptocurrency in the US, as well as Asia, Indonesia, Seychelles, Cayman Islands, Panama ...	H cryptocurrency activities are at the level of complexity of an institutional player. H seems to be making markets and is engaged in derivative products, smart contracts, mining, trading and there is clear evidence of trading at a large scale, revenue generating activities, trading strategies (paired trading), etc... In volume and in complexity H cryptocurrency dealings are on par with what we would expect of an institutional market participant and market maker. The complexity is further compounded by the skeletal disclosures which arrive drip by drip and are far from sufficient. H has only disclosed what he is prepared to disclose to the tax authorities, maybe even less as he has not provided any of the tax returns for 2019, 2020, and 2021. These should in theory include crypto assets as H is preparing to bring to the surface part of the crypto business to avoid tax audits and regulatory scrutiny. H cryptocurrency asset revenue generating activities,

⁷ Units x 4 at Frost St, New York; 3100 & 3093 West Arrowhead Road, Wyoming; 189 Litchfield Lane, Texas; Residence Zayzafoune, Tunis; 308D L'Estivaliere, Vallauris, France

⁸ USA (Deutsche Bank and Goldman Sachs) and Jersey (Barclays Capital)

⁹ NourZa Power Sarl

	trading (including bot trading), mining, DeFi etc.. requires specialized knowledge.
Substantial assets are held through the medium of unquoted corporate entities and detailed expert valuation evidence will be required	Substantial assets <i>are</i> held through the medium of unquoted corporate entities, but valuation is not thought necessary if the equity in the entities are divided equally
A serious, carefully considered and potentially influential argument is being advanced of (a) compensation, (b) non-matrimonial property, or (c) conduct.	The issue of conduct is live – the Wife accuses the Husband of non-disclosure, assets held under third parties’ names (Ambulnz), misrepresentation to the IRS and £1m in litigation fees caused by H in his attempt to hide activities which may have do not have full approval of the regulators; each party accuses the other of litigation misconduct
There are serious, substantial third party claims to the assets otherwise subject to the dispositive powers of the court	The Husband asserts that 50% of his shareholding in Mint Green [CoinShares] [e380] is held on behalf of Marsha Kutkevitch (a director of EMViya). The Husband asserts that Mr. Sal Gargano invested in Chia mining equipment, this is extremely unlikely. Miss Molina runs an escort business in Dubai and London. By her own admission in her publicly available YouTube channel, she claims H is the ‘Mastermind’ behind the business and he helped her with the book-keeping. H started invoicing her clients in Bitcoins and used these crypto addresses for some of his own activities. Miss Molina is a person on interest in crypto and is a third party who parks assets under her name for the benefit of H. Other third-party collaborators include Mike Deeg, of course, but also Mr. and Mrs. Gargano, Dendy Suhubdi, CEO of Bitwyre,
There is a serious, carefully considered and potentially influential issue as to the effect of a nuptial agreement.	N/A

The application involves a novel and important point of law	N/A
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Imerman

16. This comprised (a) the lap top H gave his daughter in secret of W's knowledge to watch movies , (b) the One Touch device containing a backup of the laptop data and (c) a hard drive. Review by his solicitors of (a)-(c) was paused by agreement [letter 20th May 2021], in advance of the FDR (and without prejudice to the right to call for that review to be resumed). It must¹⁰ now be resumed – In light of previous searches undertaken by H solicitors in the course of these proceedings, W would like an independent party to conduct the review of the Imerman exercise. The silver lining of undertaking the Imerman exercise at this stage in the proceedings, 18 months after the First Hearing, is that it will be very narrow and focused exercise, informed by the quasi-institutional sophistication of H's cryptocurrency trading activities, the non-disclosures, and the pattern of disclosures vs non-disclosures. This is an essential exercise to obtain information H is not willing to disclose in the most cost-effective manner possible. Indeed, had W's request for a Cryptocurrency expert at the FDA been granted, a significant part of the £1m legal fees incurred to date may have been avoided. This ought not to be controversial as (a) it represents the precise basis on which the documents were returned¹¹ and (b) thereafter it was confirmed that this agreement was being implemented¹² by the Husband's solicitors.

The Another Day report on Crypto

¹⁰ "The husband's solicitor, who owes a high duty to the court, will read them and disclose those of them that are both admissible and relevant to the wife's claim, pursuant to the husband's duty of full and frank disclosure. If before that exercise has taken place the husband's solicitor is dis-instructed the solicitor must retain those documents pending a further order of the court." *UL v BK* [2013] EWHC 1735 (Fam) paragraph 56 (iii)

¹¹ "Dealing with practical matters, I confirm that everything collected will come directly to my firm in the first instance and the laptop and USB stick will be held by us. We will of course comply with our obligations to review the documents and provide anything of relevance." *HFC to Withers 9/4/21*

¹² "Quite properly, we are undertaking the review. I confirm that the only items which have been passed to my client are his Helium hotspots and his briefcase and it is frankly offensive to be asked repeatedly to confirm that we are adhering to our professional responsibilities in terms of review and disclosure, especially as this has already been confirmed. There are c.1500 pages of hard copy documents, plus the hard drive and computer. This process is well underway and indeed, my Associate spent a large part of his weekend reviewing the material." *HFC to Withers 26/4/21*

17. On 30 June 2022, the Single Joint Expert (“Mr Pinto”) instructed by the parties to investigate H’s cryptocurrency holdings produced his report (“the Pinto Report”) [e483]. In the process of producing his report, Mr Pinto asked H various questions and sought further information from him.
18. The Pinto Report establishes that W’s longstanding concerns in relation to H’s cryptocurrency holdings are well-founded. Not only does Mr Pinto reach the view that certain of H’s explanations in relation to his cryptocurrency activities were not supported by “analysis” of the documents, his opinion is that there are cryptocurrency “wallets that have a significant amount flowing through them” such that they are “of interest”, and recommends that further investigations be undertaken.
19. Beyond that overall view, Mr Pinto was unable to identify the source of funds for very many of the transactions disclosed by H, in particular what he refers to as Transactions 2, 3, 11, 12, 14 and 15, often due to deficiencies in the information received from H. In many cases, Mr Pinto suggests that in order to rectify these deficiencies third-party exchanges now must be approached to provide further information.
20. Notwithstanding those conclusions, W has concerns in relation to the Pinto Report, including as to: (i) whether the Pinto Report does in fact provide a “summary of all of [H]’s holdings, activities and dealing” as per the Letter of Instruction [e472]; (ii) whether Mr Pinto is even able to provide that summary on the basis of the materials which he has been provided with, and H’s answers to his questions; (iii) whether Mr Pinto has addressed all of the relevant materials (for example, the Pinto Report does not contain any discussion of the Multibit Wallet, through which very significant numbers of Bitcoin flowed and which links to several exchanges and wallets which are critical to the overall picture) and time periods; and (iv) what the next steps are in order to verify the areas of uncertainty identified by Mr Pinto.
21. In the first instance, W has raised a number of Part 25 questions [e528] in order to try and clarify various matters in the Pinto Report. Mr Pinto has indicated that he will be producing some form of supplemental report. W will consider the appropriate next steps in the light of any answers received to the Part 25 questions.
22. W does however lay down a marker now in relation to one particular issue, namely H’s US tax return for the year 2020. In that return:

- a. H declared that he acquired XMR (the cryptocurrency ‘Monero’) in 2019. He further declared that he sold 20 XMR in September 2020 and that he retained 10 XMR at the end of 2020. However, there is no buying or selling activity of XMR on any of the exchange accounts which he has disclosed, nor has any XMR wallet been disclosed.
 - b. H declared that he acquired XRP (the cryptocurrency ‘Ripple’) in 2019. He further declared that he sold 4000 XRP in August 2020 and that he retained 1000 XRP at the end of 2020. However, there is no buying or selling activity of XRP on any of the exchange accounts which he has disclosed, nor has any XRP wallet been disclosed.
 - c. H declared that he mined 4000 of the cryptocurrency Dogecoin in 2020 and sold half of that later in 2020. Whilst it is accepted the value of Dogecoin is minimal, the accounts and wallets which show this activity have not been disclosed.
 - d. H declared that he mined 2 LTC (the cryptocurrency ‘Litecoin’) in 2020 and retained this at the end of 2020. However, none of the exchange accounts which he has disclosed have any LTC deposit activity nor has H disclosed an LTC wallet.
23. These are just examples of an extensive list of issues which now exist in relation to H’s stated position. Assuming that H has not falsely overreported his holdings to the US authorities, there does appear to be very significant non-disclosure of assets. A rigorous process, including a review of the Immerman documents, is required to get to the bottom of H’s cryptocurrency assets.

Brent Molyneux QC
Sam Goodman

12th July 2022

Oxus Acquisition Corp.
2023



Source: Oxus Capital

April 12, 2023 06:30 ET

Oxus Capital, the promoters of the first Central Asian SPAC, to launch new \$200 million Visionary Fund to drive impact investment globally

ALMATY, Kazakhstan and NEW YORK, April 12, 2023 (GLOBE NEWSWIRE) -- Oxus Capital, the pioneering investment company driving Central Asia's first SPAC, unveiled today plans to launch a new visionary fund worth \$200 million, and will start raising capital in the incoming weeks.

The Oxus Visionary fund will be aimed to promote a greener and more equitable planet through impactful investments that disrupt traditional practices. It will prioritize backing innovative companies focused on sustainability and a fairer world, with a special emphasis on renewable energies, clean technologies, climate-smart agriculture, ethical supply chains, and food tech.

The vehicle is expected to be fully operational by 2024.

Oxus Capital already made history as the originator of the first Central Asian SPAC, Nasdaq-listed Oxus Acquisition Corp. ([NASDAQ:OXUS](#)), which raised \$172.5 million in 2021. It recently announced a Business Combination Agreement with Borealis Foods Inc., an innovative food technology company that has developed a high-quality, affordable, sustainable, and highly nutritious range of plant-based, ready-to-eat meals, sold in the U.S. and Canada.

The transaction valued Borealis at an equity value of \$150 million and is expected to close during the third quarter of 2023.

Oxus Capital is led by Kanat Mynzhanov and Askar Mametov. With headquarters in Almaty and partners in New York, London, Dubai, and New Delhi, the firm is well-positioned to showcase Central Asia's untapped potential in the global markets.

By focusing on impact investments that align with the United Nations' Sustainable Development Goals, Oxus Capital aims to create a lasting, positive impact on its region of origin and beyond. "We believe in investing in people first, so each person can contribute significantly to solving global challenges," said Mynzhanov.

Both Mynzhanov and Mametov have two decades of experience in the world of investment management and in large global corporations.

After years of working in the investment unit of blue chip corporations, Mynzhanov successfully launched Bellprescot Prime Fund in 2016, participated in private equity deals in fintech and

mobility industries, and led relevant projects in metals and mining, rare metals, and alternative energy. At the moment, he also serves as the CEO of Oxus Acquisition Corp.

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Mametov was formerly the CFO of KM Gold Inc., a public Kazakh gold mining company, and a financial controller at Sequa Petroleum Kazakhstan, a subsidiary of Sequa Petroleum, an oil and gas company listed on Euronext Access.

With the launch of its new Visionary Fund, Oxus Capital is poised to leverage its experience and expertise to drive innovation and growth across the region.

"Our team's diverse background and experience allows us to understand and navigate the unique cultural and business landscapes of both the Western and Eastern worlds," Mynzhanov added.

Safe Harbor Statements:

Except for the historical information contained herein, certain of the matters discussed in this communication constitute "forward-looking statements" within the meaning of the Securities Litigation Reform Act of 1995. Words such as "may," "might," "will," "should," "could," "anticipate," "estimate," "expect," "predict," "project," "future," "potential," "intend," "seek to," "plan," "assume," "believe," "target," "forecast," "goal," "objective," "continue" or the negative of such terms or other variations thereof and words and terms of similar substance used in connection with any discussion of future plans, actions, or events identify forward-looking statements. These forward-looking statements include, but are not limited to, statements regarding benefits of the proposed license, expected synergies, anticipated future financial and operating performance and results, including estimates of growth. There are a number of risks and uncertainties that could cause actual results to differ materially from the forward-looking statements included in this communication. For example, the expected timing and likelihood of completion of the pending transaction, including the timing, receipt and terms and conditions of any required governmental and regulatory approvals of the pending transaction that could reduce anticipated benefits or cause the parties to abandon the transaction, the ability to successfully integrate the businesses, the occurrence of any event, change or other circumstance that could give rise to the termination of the negotiations, the risk that the parties may not be able to satisfy the conditions to the proposed transaction in a timely manner or at all, risks related to disruption of management time from ongoing business operations due to the proposed transaction, the risk that any announcements relating to the proposed transaction could have adverse effects on the market price of common stock of related companies. All such factors are difficult to predict and are beyond our control. We disclaim and do not undertake any obligation to update or revise any forward-looking statement in this report, except as required by applicable law or regulations.

A photo accompanying this announcement is available at

<https://www.globenewswire.com/NewsRoom/AttachmentNg/821d9046-f429-4bfe-9a6f-c532326fd11e>

Attachments:



- Oxus Capital, the pioneering investment company driving Central Asia's first SPAC, unveiled today plans to launch a new visionary fund worth \$200 million.

RESPONDENT PERSONAL EXPENSES						
DATE	DESCRIPTION	AMOUNT	GBP AMOU	CATEGORY	WHO IS SPENDING	
10/02/2021	STE DE TOURISME ET VTUNIS	-3235.47	-£ 2,630.46	KARIM N ZAHMOUL	KZ EXPENSED	RESPONDENT APPOINTED TO BOD OF OXUS SPAC ON 1 JUNE 2022.
06/04/2021	TRUPHONE LTD 20004921 FT 205.60 6APR	-205.6	-£ 205.60	Bank Giro Credit	KZ EXPENSED	
08/06/2021	TRUPHONE LTD 20004921 FT 245.00 8JUN	-245	-£ 245.00	Bank Giro Credit	KZ EXPENSED	
06/07/2021	TRUPHONE LTD 20004921 FT	-151.82	-£ 151.82	Transfer	KZ EXPENSED	
09/08/2021	TRUPHONE LTD 20004921 FT	-114.5	-£ 114.50	Transfer	KZ EXPENSED	
07/09/2021	TRUPHONE LTD 20004921 FT 117.78 7SEP	-117.78	-£ 117.78	Bank Giro Credit	KZ EXPENSED	
17/09/2021	SIXT PORTUGAL RAC_30PAREDES PR	-1539.96	-£ 1,252.00	KARIM N ZAHMOUL	KZ EXPENSED	
24/09/2021	IL GABBIANO MIAMI LMIAMI FL	-590	-£ 479.67	KARIM N ZAHMOUL	KZ EXPENSED	
06/10/2021	TRUPHONE LTD 20004921 FT 146.44 6OCT	-146.44	-£ 146.44	Bank Giro Credit	KZ EXPENSED	
23/10/2021	LE DAMANTIN HOTEL & PARIS PA	-1114.32	-£ 905.95	KARIM N ZAHMOUL	KZ EXPENSED	
04/11/2021	AIR FRANCE COMPTOIR FRANCE HT	-1241.13	-£ 1,009.05	KARIM N ZAHMOUL	KZ EXPENSED	
17/01/2022	TRUPHONE LTD 20004921 FT	-330.36	-£ 330.36	Transfer	KZ EXPENSED	
23/01/2022	MR. C MIAMI - COCONUMIAMI FL	-1629.57	-£ 1,324.85	KARIM N ZAHMOUL	KZ EXPENSED	
01/03/2022	HOTEL HERITAGE MADRID	-839.84	-£ 839.84	KARIM N ZAHMOUL	KZ EXPENSED	
07/03/2022	TRUPHONE LTD 20004921 FT 222.00 7MAR	-222	-£ 222.00	Bank Giro Credit	KZ EXPENSED	
09/03/2022	TRUPHONE LTD 20004921 FT 115.20 9MAR	-115.2	-£ 115.20	Bank Giro Credit	KZ EXPENSED	
07/04/2022	TRUPHONE LTD 20004921 FT 115.95 7APR	-115.95	-£ 115.95	Bank Giro Credit	KZ EXPENSED	
10/04/2022	HOTEL HERITAGE MADRID MA	-379.66	-£ 308.67	KARIM N ZAHMOUL	KZ EXPENSED	
13/04/2022	HOTEL HERITAGE MADRID MA	-381.15	-£ 309.88	KARIM N ZAHMOUL	KZ EXPENSED	
06/05/2022	TRUPHONE LTD 20004921 FT	-114	-£ 114.00	Transfer	KZ EXPENSED	
06/07/2022	TRUPHONE LTD 20004921 FT 119.14 6JUL	-119.14	-£ 119.14	Bank Giro Credit	KZ EXPENSED	
20/07/2022	WWW.DEUTSCHEBAHN.COMBERLIN DE	-232.12	-£ 188.72	KARIM N ZAHMOUL	KZ SPAC	
08/08/2022	TRUPHONE LTD 20004921 FT 119.39 8AUG	-119.39	-£ 119.39	Bank Giro Credit	KZ EXPENSED	
02/09/2022	HOTEL ON BOOKING.COMAMSTERDAM NL	-1581.63	-£ 1,285.88	KARIM N ZAHMOUL	KZ EXPENSED	
02/09/2022	1 HOTEL PARK NEW YORK NY	-44.75	-£ 36.38	KARIM N ZAHMOUL	KZ SPAC	
02/09/2022	1 HOTEL PARK NEW YORK NY	-38.11	-£ 30.98	KARIM N ZAHMOUL	KZ SPAC	
02/09/2022	Payment from Oxus Capital Pte. Ltd.	922.51	£ 750.01	TOPUP	OXUS	
07/09/2022	TRUPHONE LTD 20004921 FT 305.97 7SEP	-305.97	-£ 305.97	Bank Giro Credit	KZ EXPENSED	
15/09/2022	WWW.DEUTSCHEBAHN.COMBERLIN DE	-226.59	-£ 184.22	KARIM N ZAHMOUL	KZ SPAC	
18/09/2022	WWW.DEUTSCHEBAHN.COMBERLIN DE	-122.36	-£ 99.48	KARIM N ZAHMOUL	KZ SPAC	
24/09/2022	AMERICAN AIRLINES 800-433-7300 TX	-338.61	-£ 275.29	KARIM N ZAHMOUL	KZ SPAC	
02/10/2022	TST* LA GOULUE NEW YNEW YORK NY	-243.02	-£ 197.58	KARIM N ZAHMOUL	KZ SPAC	
06/10/2022	TRUPHONE LTD 20004921 FT 122.11 6OCT	-122.11	-£ 122.11	Bank Giro Credit	KZ EXPENSED	
07/10/2022	THE PARK LANE HOTEL NEW YORK NY	-196	-£ 159.35	KARIM N ZAHMOUL	KZ SPAC	
07/10/2022	THE PARK LANE HOTEL NEW YORK NY	-97	-£ 78.86	KARIM N ZAHMOUL	KZ SPAC	
10/10/2022	PARK LANE HOTEL PARKNEW YORK NY	-6014.69	-£ 4,889.99	KARIM N ZAHMOUL	KZ SPAC	
15/10/2022	PARK LANE HOTEL PARKNEW YORK NY	6014.69	£ 4,889.99	KARIM N ZAHMOUL	KZ SPAC	
09/11/2022	TRUPHONE LTD 20004921 FT 322.00 9NOV	-322	-£ 322.00	Bank Giro Credit	KZ EXPENSED	
19/12/2022	ROVE* RENTALDEPOSIT NEW YORK NY	-45337.53	-£ 36,859.78	KARIM N ZAHMOUL	KZ SPAC	
09/01/2023	TRUPHONE LTD 20004921 FT 120.18 9JAN	-120.18	-£ 120.18	Bank Giro Credit	KZ EXPENSED	
20/01/2023	DUVET VACATION RENTACHARLESTON SC	-865.52	-£ 703.67	KARIM N ZAHMOUL	KZ SPAC	
20/01/2023	HERTZ CAR RENTAL	-387.8	-£ 315.28	KARIM N ZAHMOUL	KZ SPAC	
21/01/2023	BT*ZERORESTAUARA*RESTNEW YORK NY	-300	-£ 243.90	KARIM N ZAHMOUL	KZ SPAC	
22/01/2023	AMERICAN AIRLINES 45800-433-7300 TX	-1285.81	-£ 1,045.37	KARIM N ZAHMOUL	KZ SPAC	
22/01/2023	HERTZ CAR RENTAL	-335.19	-£ 272.51	KARIM N ZAHMOUL	KZ SPAC	
23/01/2023	AIRBNB * HM3N5Q9RDQ SAN FRANCISCO CA	-2745.74	-£ 2,232.31	KARIM N ZAHMOUL	KZ SPAC	
23/01/2023	AMERICAN AIRLINES 800-433-7300 TX	-499.8	-£ 406.34	KARIM N ZAHMOUL	KZ SPAC	
23/01/2023	AMERICAN AIRLINES 800-433-7300 TX	-499.8	-£ 406.34	KARIM N ZAHMOUL	KZ SPAC	
23/01/2023	AMERICAN AIRLINES 800-433-7300 TX	-69.34	-£ 56.37	KARIM N ZAHMOUL	KZ SPAC	
23/01/2023	AMERICAN AIRLINES 800-433-7300 TX	-57.8	-£ 46.99	KARIM N ZAHMOUL	KZ SPAC	
24/01/2023	HERTZ CAR RENTAL	-208.32	-£ 169.37	KARIM N ZAHMOUL	KZ SPAC	
25/01/2023	TST* HER NAME IS HANNEW YORK NY	-189.6	-£ 154.15	KARIM N ZAHMOUL	KZ SPAC	
29/01/2023	HERTZ CAR RENTAL	-156.58	-£ 127.30	KARIM N ZAHMOUL	KZ SPAC	
30/01/2023	HERTZ CAR RENTAL	-120.66	-£ 98.10	KARIM N ZAHMOUL	KZ SPAC	
31/01/2023	EATALY NY SALIDO 033NEW YORK NY	-134.04	-£ 108.98	KARIM N ZAHMOUL	KZ SPAC	
07/02/2023	RUTHS CHRIS STEAK HOCOLUMBIA SC	-330	-£ 268.29	KARIM N ZAHMOUL	KZ SPAC	
08/02/2023	TST* PRIVATE PROPERTLEXINGTON SC	-372.02	-£ 302.46	KARIM N ZAHMOUL	KZ SPAC	
08/02/2023	TRUPHONE LTD 20004921 FT	-246.28	-£ 246.28	Transfer	KZ EXPENSED	
08/02/2023	EXXONMOBIL 4219 ROCK HILL SC	-66.2	-£ 53.82	KARIM N ZAHMOUL	KZ SPAC	
08/02/2023	HERTZ CAR RENTAL	-50.24	-£ 40.85	KARIM N ZAHMOUL	KZ SPAC	
15/02/2023	TST* RUBIROSA - MULBNEW YORK NY	-159.68	-£ 129.82	KARIM N ZAHMOUL	KZ SPAC	
20/02/2023	AMERICAN AIRLINES 800-433-7300 TX	-430.79	-£ 350.24	KARIM N ZAHMOUL	KZ SPAC	
20/02/2023	AMERICAN AIRLINES 800-433-7300 TX	-430.79	-£ 350.24	KARIM N ZAHMOUL	KZ SPAC	
	TOTAL EXPENSED		-£ 58,823.31			
	PLUS SECOND RENT PAYMENT FOR NY FLAT NOT ITEMIZE		-£ 32,000.00			
	TOTAL		-£ 90,823.31			
	PLUS REIMBURSEMENTS BY OXUS		£ 76,474.36			
	DELTA (AS OF FEB. 2022)		-£ 14,348.95			



23 April 2023

Dear Karim and to whom it may concern,

As I understand, certain enquiries have been made regarding historic Oxus Capital Pte. Ltd. reimbursements to your bank account.

Please allow this letter to confirm that Mr. Karim Zahmoul serves as an independent director for Oxus Acquisition Corp, a NASDAQ-listed company (ticker symbol: OXUS). In his capacity as an independent director, Mr. Zahmoul is periodically requested to assist our management team with due diligence and other matters. In these instances, he travels with our team to provide his valuable expertise on specific subject matter. As per customary practice for independent directors, Oxus Capital Pte. Ltd., a holding company reimburses Mr. Zahmoul's travel expenses.

During the period of January 15th to March 15th, 2023, and again from April 16th to May 31st, 2023, our team was required to stay in New York for an extended duration. We requested Mr. Zahmoul to utilize his U.S. credit card for the purpose of facilitating the rental of an apartment for the team's accommodation. I can confirm that Oxus Capital Pte. Ltd. has fully reimbursed Mr. Zahmoul for these expenses.

Please do not hesitate to contact me should you require any further information or clarification.

Yours faithfully,

A handwritten signature in black ink, appearing to read "Kanat Mynzhanov", with a long horizontal stroke extending to the right.

Kanat Mynzhanov
Chief Executive Officer

Tel +44(0)7767171717
kanat@oxusacquisition.com



Source: *Oxus Acquisition Corp.*

May 31, 2023 20:56 ET

Oxus Acquisition Corp. Nears Nasdaq Listing of Borealis Foods Inc., Led by Non-Executive Chairman Kenges Rakishev, Following Groundbreaking Central Asian SPAC Success

NEW YORK, June 01, 2023 (GLOBE NEWSWIRE) -- Following the successful completion of Central Asia's first Special Purpose Acquisition Company (SPAC), [Oxus Acquisition Corp.'s](#) (NASDAQ:OXUS) IPO, Non-Executive Chairman Kenges Rakishev is leading the charge for the upcoming Nasdaq listing of [Borealis Foods Inc.](#)

Founded by its CEO Reza Soltanzadeh, Borealis Foods, a pioneering entity in the food technology industry, has successfully engineered a nutritious, affordable, and environmentally friendly array of ready-to-consume plant-based meals.

These meals are currently available in the US and Canada, with plans for expansion into the European market imminent. The company stands at the forefront of innovation, having introduced the world's first plant-based ramen meal on a mass scale, boasting 20 grams of comprehensive protein per serving.

This listing marks a significant milestone for the Central Asian investment landscape and a landmark achievement in Rakishev's investment career.

With a significant trajectory of acquiring and investing in over 50 businesses in various industries such as metals & mining, oil, petrochemicals, banking, fintech, information technology, ecommerce, logistics, and insurance, Rakishev's diverse investment portfolio includes about ten active companies worldwide, demonstrating his knack for identifying and driving growth in businesses across the global stage.

Rakishev's leadership roles have not been confined to Oxus Acquisition alone. Since March 2021, he has served as the President of [Fincraft Group LLP](#), a diversified holding company listed on the Kazakhstan Stock Exchange. Rakishev has also been the Chairman of the Board of Fincraft Resources JSC since September 2008, a diversified holding company focused on the natural resources and disruptive technology industries. Furthermore, up until December 31, 2021 he held leadership positions at Battery Metals Technologies Ltd., an electric vehicle battery metals company.

From 2013 to May 2018, he served as a non-executive director of Central Asia Metals Plc and was the controlling shareholder and chairman of Kazkommertsbank JSC, the largest Kazakh commercial

bank, from March 2015 to June 2017.

Rakishev's leadership, together with the acumen and dedication of CEO [Kanat Mynzhanov](#)¹⁷³, has successfully navigated Oxus Acquisition through the complexities of the SPAC formation and listing, setting the stage for its upcoming partnership with Borealis Foods, to go public before 4Q 2023.

Safe Harbor Statements:

Except for the historical information contained herein, certain of the matters discussed in this communication constitute "forward-looking statements" within the meaning of the Securities Litigation Reform Act of 1995. Words such as "may," "might," "will," "should," "could," "anticipate," "estimate," "expect," "predict," "project," "future," "potential," "intend," "seek to," "plan," "assume," "believe," "target," "forecast," "goal," "objective," "continue" or the negative of such terms or other variations thereof and words and terms of similar substance used in connection with any discussion of future plans, actions, or events identify forward-looking statements. These forward-looking statements include, but are not limited to, statements regarding benefits of the proposed license, expected synergies, anticipated future financial and operating performance and results, including estimates of growth. There are a number of risks and uncertainties that could cause actual results to differ materially from the forward-looking statements included in this communication. For example, the expected timing and likelihood of completion of the pending transaction, including the timing, receipt and terms and conditions of any required governmental and regulatory approvals of the pending transaction that could reduce anticipated benefits or cause the parties to abandon the transaction, the ability to successfully integrate the businesses, the occurrence of any event, change or other circumstance that could give rise to the termination of the negotiations, the risk that the parties may not be able to satisfy the conditions to the proposed transaction in a timely manner or at all, risks related to disruption of management time from ongoing business operations due to the proposed transaction, the risk that any announcements relating to the proposed transaction could have adverse effects on the market price of common stock of related companies. All such factors are difficult to predict and are beyond our control. We disclaim and do not undertake any obligation to update or revise any forward-looking statement in this report, except as required by applicable law or regulations.

A photo accompanying this announcement is available at <https://www.globenewswire.com/NewsRoom/AttachmentNg/7bd5ce93-d860-4d1d-bc57-380a2f7cf7ff>

Attachments:



Following the successful completion of Central Asia's first Special Purpose Acquisition Company (SPAC), Oxus Acquisition Corp.'s (NASDAQ:OXUS) IPO, Non-Executive Chairman Kenges Rakishev is leading the charge for the upcoming Nasdaq listing of Borealis Foods Inc.

Form S-4

14th August 2023

As filed with the Securities and Exchange Commission on **August 14, 2023.**

Registration No. 333-

UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549

Form S-4

Registration Statement Under the Securities Act of 1933

OXUS ACQUISITION CORP.

(Exact name of registrant as specified in its charter)

Cayman Islands	6770	N/A
(State or other jurisdiction of incorporation or organization)	(Primary Standard Industrial Classification Code Number)	(IRS Employer Identification Number)

**300/26 Dostyk Avenue
Almaty, Kazakhstan 050020
+7(727) 355-8021**

(Address, including zip code, and telephone number, including area code, of registrant's principal executive offices)

**Donald J. Puglisi
Puglisi & Associates
850 Library Avenue, Suite 204
Newark, Delaware 19711
(302) 738-6680**

(Name, address, including zip code, and telephone number, including area code, of agent for service)

Copies to:

**Alan I. Annex
Yuta N. Delarck
Greenberg Traurig, LLP
One Vanderbilt Avenue
New York, NY 10017
Tel: (212) 801-6928**

**Stephanie Stimpson
Adrienne DiPaolo
Torys LLP
79 Wellington St. W.,
30th Floor, Box 270, TD
South Tower
Toronto, Ontario
M5K 1N2 Canada
Tel: (416) 865-0040**

**Richard Langan
Christopher Keefe
Nixon Peabody LLP
55 West 46th Street
New York, NY 10036
Tel: (212) 940-3000**

**John Mercury
James McClary
Bennett Jones LLP
4500 Bankers Hall East
855 2nd Street SW
Calgary, Alberta
T2P 4K7 Canada
Tel: (403) 298-3100**

Approximate date of commencement of proposed sale of the securities to the public: As soon as practicable after the effective date of this registration statement and all other conditions to the proposed Business Combination as described herein have been satisfied or waived.

If this Form is filed to register additional securities for an offering pursuant to Rule 462(b) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If this Form is a post-effective amendment filed pursuant to Rule 462(d) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If applicable, place an X in the box to designate the appropriate rule provision relied upon in conducting this transaction:

Exchange Act Rule 13e-4(i) (Cross-Border Issuer Tender Offer) ☐Exchange Act Rule 14d-1(d) (Cross-Border Third-Party Tender Offer) ☐

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933.

Emerging growth company ☒

If an emerging growth company that prepares its financial statements in accordance with U.S. GAAP, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 7(a)(2)(B) of the Securities Act. ☐

The registrant hereby amends this registration statement on such date or dates as may be necessary to delay its effective date until the registrant shall file a further amendment which specifically states that

[Table of Contents](#)**SIGNATURES**

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on August 14, 2023.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov

Kanat Mynzhanov

Chief Executive Officer and Director

POWER OF ATTORNEY

KNOW ALL MEN BY THESE PRESENTS, that each of the undersigned constitutes and appoints each of Kanat Mynzhanov and Askar Mametov as their true and lawful attorney-in-fact and agent, with full power of substitution and resubstitution, for such person and in his or her name, place and stead, in any and all capacities, to sign this Registration Statement on Form S-4 (including all pre-effective and post-effective amendments and registration statements filed pursuant to Rule 462 under the Securities Act of 1933), and to file the same, with all exhibits thereto, and other documents in connection therewith, with the U.S. Securities and Exchange Commission, granting unto said attorney-in-fact and agent full power and authority to do and perform each and every act and thing requisite and necessary to be done in and about the premises, as fully to all intents and purposes as he or she might or could do in person, hereby ratifying and confirming that any such attorney-in-fact and agent, or his substitute or substitutes, may lawfully do or cause to be done by virtue hereof.

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u> Kanat Mynzhanov	Chief Executive Officer and Director (Principal Executive Officer)	August 14, 2023
<u>/s/ Askar Mametov</u> Askar Mametov	Chief Financial Officer (Principal Financial and Accounting Officer)	August 14, 2023
<u>/s/ Kenges Rakishev</u> Kenges Rakishev	Non-executive Chairman and Director	August 14, 2023
<u>/s/ Christophe Charlier</u> Christophe Charlier	Director	August 14, 2023
<u>/s/ Karim Zahmoul</u> Karim Zahmoul	Director	August 14, 2023
<u>/s/ Shiv Vikram Khemka</u> Shiv Vikram Khemka	Director	August 14, 2023

[Table of Contents](#)**AUTHORIZED REPRESENTATIVE IN THE UNITED STATES**

Pursuant to the requirements of the Securities Act of 1933, as amended, Oxus Acquisition Corp., has duly caused this registration statement to be signed by the following duly authorized representative in the United States on August 14, 2023.

Puglisi & Associates

By: /s/ Donald J. Puglisi

Name: Donald J. Puglisi

Title: Managing Director

II-6

Form S-4
23rd October 2023

As filed with the Securities and Exchange Commission on October 23, 2023.

Registration No. 333-273967

UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549

Amendment No. 1

to

Form S-4

Registration Statement Under the Securities Act of 1933

OXUS ACQUISITION CORP.

(Exact name of registrant as specified in its charter)

Cayman Islands	6770	N/A
(State or other jurisdiction of incorporation or organization)	(Primary Standard Industrial Classification Code Number)	(IRS Employer Identification Number)

**300/26 Dostyk Avenue
Almaty, Kazakhstan 050020
+7(727) 355-8021**

(Address, including zip code, and telephone number, including area code, of registrant's principal executive offices)

**Oxus Acquisition Corp.
Donald J. Puglisi
Puglisi & Associates
850 Library Avenue, Suite 204
Newark, Delaware 19711
(302) 738-6680**

**Borealis Foods, Inc.
American Incorporators Ltd.
1013 Centre Road, Suite 403-A
Wilmington, Delaware 19801
(302) 421-5750**

(Name, address, including zip code, and telephone number, including area code, of agent for service)

Copies to:

**Alan I. Annex
Yuta N. Delarck
Greenberg Traurig, LLP
One Vanderbilt Avenue
New York, NY 10017
Tel: (212) 801-6928**

**Stephanie Stimpson
Adrienne DiPaolo
Torys LLP
79 Wellington St. W.,
30th Floor, Box 270, TD
South Tower
Toronto, Ontario
M5K 1N2 Canada
Tel: (416) 865-0040**

**Richard Langan
Christopher Keefe
Nixon Peabody LLP
55 West 46th Street
New York, NY 10036
Tel: (212) 940-3000**

**John Mercury
James McClary
Bennett Jones LLP
4500 Bankers Hall East
855 2nd Street SW
Calgary, Alberta
T2P 4K7 Canada
Tel: (403) 298-3100**

Approximate date of commencement of proposed sale of the securities to the public: As soon as practicable after the effective date of this registration statement and all other conditions to the proposed Business Combination as described herein have been satisfied or waived.

If this Form is filed to register additional securities for an offering pursuant to Rule 462(b) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If this Form is a post-effective amendment filed pursuant to Rule 462(d) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If applicable, place an X in the box to designate the appropriate rule provision relied upon in conducting this transaction:

Exchange Act Rule 13e-4(i) (Cross-Border Issuer Tender Offer) ☐

Exchange Act Rule 14d-1(d) (Cross-Border Third-Party Tender Offer) ☐

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933.

Emerging growth company ☒

If an emerging growth company that prepares its financial statements in accordance with U.S. GAAP, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 7(a)(2)(B) of the Securities Act. ☐

The registrant hereby amends this registration statement on such date or dates as may be necessary to delay its effective date until the registrant shall file a further amendment which specifically states that this registration statement shall thereafter become effective in accordance with Section 8(a) of the Securities Act of 1933, as amended, or until the registration statement shall become effective on such date as the Securities and Exchange Commission, acting pursuant to said Section 8(a), may determine.

SIGNATURES

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on October 23, 2023.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov

Kanat Mynzhanov

Chief Executive Officer and Director

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u>	Chief Executive Officer and Director	October 23, 2023
Kanat Mynzhanov	(Principal Executive Officer)	
<u>*</u>	Chief Financial Officer	October 23, 2023
Askar Mametov	(Principal Financial and Accounting Officer)	
<u>*</u>	Non-executive Chairman and Director	October 23, 2023
<u>Kenges Rakishev</u>		
<u>*</u>	Director	October 23, 2023
Christophe Charlier		
<u>*</u>	Director	October 23, 2023
<u>Karim Zahmoul</u>		
<u>*</u>	Director	October 23, 2023
Shiv Vikram Khemka		

*By: /s/ Kanat Mynzhanov

Name: Kanat Mynzhanov

Title: Attorney-in-Fact

Form S-4

13th November 2023

As filed with the Securities and Exchange Commission on **November 13, 2023.**

Registration No. 333-273967

**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549**

Amendment No. 2

to

Form S-4**Registration Statement Under the Securities Act of 1933****OXUS ACQUISITION CORP.**

(Exact name of registrant as specified in its charter)

Cayman Islands**6770****N/A**(State or other jurisdiction of
incorporation or organization)(Primary Standard Industrial
Classification Code Number)(IRS Employer
Identification Number)

**300/26 Dostyk Avenue
Almaty, Kazakhstan 050020
+7(727) 355-8021**

(Address, including zip code, and telephone number, including area code, of registrant's principal executive offices)

**Oxus Acquisition Corp.
Donald J. Puglisi
Puglisi & Associates
850 Library Avenue, Suite 204
Newark, Delaware 19711
(302) 738-6680**

**Borealis Foods, Inc.
American Incorporators Ltd.
1013 Centre Road, Suite 403-A
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(302) 421-5750**

(Name, address, including zip code, and telephone number, including area code, of agent for service)

Copies to:

**Alan I. Annex
Yuta N. Delarck
Greenberg Traurig, LLP
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New York, NY 10017
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Tel: (212) 940-3000**

**John Mercury
James McClary
Bennett Jones LLP
4500 Bankers Hall East
855 2nd Street SW
Calgary, Alberta
T2P 4K7 Canada
Tel: (403) 298-3100**

Approximate date of commencement of proposed sale of the securities to the public: As soon as practicable after the effective date of this registration statement and all other conditions to the proposed Business Combination as described herein have been satisfied or waived.

If this Form is filed to register additional securities for an offering pursuant to Rule 462(b) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If this Form is a post-effective amendment filed pursuant to Rule 462(d) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If applicable, place an X in the box to designate the appropriate rule provision relied upon in conducting this transaction:

Exchange Act Rule 13e-4(i) (Cross-Border Issuer Tender Offer) ☐Exchange Act Rule 14d-1(d) (Cross-Border Third-Party Tender Offer) ☐

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933.

Emerging growth company ☒

If an emerging growth company that prepares its financial statements in accordance with U.S. GAAP, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 7(a)(2)(B) of the Securities Act. ☐

The registrant hereby amends this registration statement on such date or dates as may be necessary to delay its effective date until the registrant shall file a further amendment which specifically states that this registration statement shall thereafter become effective in accordance with Section 8(a) of the Securities Act of 1933, as amended, or until the registration statement shall become effective on such date as the Securities and Exchange Commission, acting pursuant to said Section 8(a), may determine.

[Table of Contents](#)**SIGNATURES**

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on November 13, 2023.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov

Kanat Mynzhanov

Chief Executive Officer and Director

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u> Kanat Mynzhanov	Chief Executive Officer and Director (Principal Executive Officer)	November 13, 2023
<u>*</u> Askar Mametov	Chief Financial Officer (Principal Financial and Accounting Officer)	November 13, 2023
<u>*</u> Kenges Rakishev	Non-executive Chairman and Director	November 13, 2023
<u>*</u> Christophe Charlier	Director	November 13, 2023
<u>*</u> Karim Zahmoul	Director	November 13, 2023
<u>*</u> Shiv Vikram Khemka	Director	November 13, 2023

*By: /s/ Kanat Mynzhanov

Name: Kanat Mynzhanov

Title: Attorney-in-Fact

[Table of Contents](#)**AUTHORIZED REPRESENTATIVE IN THE UNITED STATES**

Pursuant to the requirements of the Securities Act of 1933, as amended, Oxus Acquisition Corp., has duly caused this registration statement to be signed by the following duly authorized representative in the United States on November 13, 2023.

Puglisi & Associates

By: /s/ Donald J. Puglisi

Name: Donald J. Puglisi

Title: Managing Director

II-6

Form S-4
22nd December 2023

As filed with the Securities and Exchange Commission on **December 22, 2023.**

Registration No. 333-273967

**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549**

Amendment No. 3

to

Form S-4

Registration Statement Under the Securities Act of 1933

OXUS ACQUISITION CORP.

(Exact name of registrant as specified in its charter)

Cayman Islands**6770****N/A**(State or other jurisdiction of
incorporation or organization)(Primary Standard Industrial
Classification Code Number)(IRS Employer
Identification Number)

**300/26 Dostyk Avenue
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+7(727) 355-8021**

(Address, including zip code, and telephone number, including area code, of registrant's principal executive offices)

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American Incorporators Ltd.
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(Name, address, including zip code, and telephone number, including area code, of agent for service)

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If this Form is filed to register additional securities for an offering pursuant to Rule 462(b) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If this Form is a post-effective amendment filed pursuant to Rule 462(d) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If applicable, place an X in the box to designate the appropriate rule provision relied upon in conducting this transaction:

Exchange Act Rule 13e-4(i) (Cross-Border Issuer Tender Offer) ☐Exchange Act Rule 14d-1(d) (Cross-Border Third-Party Tender Offer) ☐

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933.

Emerging growth company ☒

If an emerging growth company that prepares its financial statements in accordance with U.S. GAAP, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 7(a)(2)(B) of the Securities Act. ☐

The registrant hereby amends this registration statement on such date or dates as may be necessary to delay its effective date until the registrant shall file a further amendment which specifically states that this registration statement shall thereafter become effective in accordance with Section 8(a) of the Securities Act of 1933, as amended, or until the registration statement shall become effective on such date as the Securities and Exchange Commission, acting pursuant to said Section 8(a), may determine.

[Table of Contents](#)**SIGNATURES**

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on December 22, 2023.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov

Kanat Mynzhanov

Chief Executive Officer and Director

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u> Kanat Mynzhanov	Chief Executive Officer and Director (Principal Executive Officer)	December 22, 2023
<u>*</u> Askar Mametov	Chief Financial Officer (Principal Financial and Accounting Officer)	December 22, 2023
<u>*</u> Kenges Rakishev	Non-executive Chairman and Director	December 22, 2023
<u>*</u> Christophe Charlier	Director	December 22, 2023
<u>*</u> Karim Zahmoul	Director	December 22, 2023
<u>*</u> Shiv Vikram Khemka	Director	December 22, 2023

*By: /s/ Kanat Mynzhanov

Name: Kanat Mynzhanov

Title: Attorney-in-Fact

[Table of Contents](#)**AUTHORIZED REPRESENTATIVE IN THE UNITED STATES**

Pursuant to the requirements of the Securities Act of 1933, as amended, Oxus Acquisition Corp., has duly caused this registration statement to be signed by the following duly authorized representative in the United States on December 22, 2023.

Puglisi & Associates

By: /s/ Donald J. Puglisi

Name: Donald J. Puglisi

Title: Managing Director

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Oxus Acquisition Corp.
2024

Form S-4
5th January 2024

As filed with the Securities and Exchange Commission on **January 5, 2024.****Registration No. 333-273967**

**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549**

**Amendment No. 4
to
Form S-4
Registration Statement Under the Securities Act of 1933**

OXUS ACQUISITION CORP.
(Exact name of registrant as specified in its charter)

Cayman Islands

(State or other jurisdiction of
incorporation or organization)

6770

(Primary Standard Industrial
Classification Code Number)

N/A

(IRS Employer
Identification Number)

**300/26 Dostyk Avenue
Almaty, Kazakhstan 050020
+7(727) 355-8021**

(Address, including zip code, and telephone number, including area code, of registrant's principal executive offices)

**Oxus Acquisition Corp.
Donald J. Puglisi
Puglisi & Associates
850 Library Avenue, Suite 204
Newark, Delaware 19711
(302) 738-6680**

(Name, address, including zip code, and telephone number, including area code, of agent for service)

**Borealis Foods, Inc.
American Incorporators Ltd.
1013 Centre Road, Suite 403-A
Wilmington, Delaware 19801
(302) 421-5750**

Copies to:

**Alan I. Annex
Yuta N. Delarck
Greenberg Traurig, LLP
One Vanderbilt Avenue
New York, NY 10017
Tel: (212) 801-6928**

**Stephanie Stimpson
Adrienne DiPaolo
Torys LLP
79 Wellington St. W.,
30th Floor, Box 270, TD
South Tower
Toronto, Ontario
M5K 1N2 Canada
Tel: (416) 865-0040**

**Richard Langan
Christopher Keefe
Nixon Peabody LLP
55 West 46th Street
New York, NY 10036
Tel: (212) 940-3000**

**John Mercury
James McClary
Bennett Jones LLP
4500 Bankers Hall East
855 2nd Street SW
Calgary, Alberta
T2P 4K7 Canada
Tel: (403) 298-3100**

Approximate date of commencement of proposed sale of the securities to the public: As soon as practicable after the effective date of this registration statement and all other conditions to the proposed Business Combination as described herein have been satisfied or waived.

If this Form is filed to register additional securities for an offering pursuant to Rule 462(b) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If this Form is a post-effective amendment filed pursuant to Rule 462(d) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If applicable, place an X in the box to designate the appropriate rule provision relied upon in conducting this transaction:

Exchange Act Rule 13e-4(i) (Cross-Border Issuer Tender Offer) ☐

Exchange Act Rule 14d-1(d) (Cross-Border Third-Party Tender Offer) ☐

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933.

Emerging growth company ☒

If an emerging growth company that prepares its financial statements in accordance with U.S. GAAP, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 7(a)(2)(B) of the Securities Act. ☐

The registrant hereby amends this registration statement on such date or dates as may be necessary to delay its effective date until the registrant shall file a further amendment which specifically states that this registration statement shall thereafter become effective in accordance with Section 8(a) of the Securities Act of 1933, as amended, or until the registration statement shall become effective on such date as the Securities and Exchange Commission, acting pursuant to said Section 8(a), may determine.

SIGNATURES

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on January 5, 2024.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov
 Kanat Mynzhanov
 Chief Executive Officer and Director

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u> Kanat Mynzhanov	Chief Executive Officer and Director (Principal Executive Officer)	January 5, 2024
* <u>Askar Mametov</u>	Chief Financial Officer (Principal Financial and Accounting Officer)	January 5, 2024
* <u>Kenges Rakishev</u>	Non-executive Chairman and Director	January 5, 2024
* <u>Christophe Charlier</u>	Director	January 5, 2024
* <u>Karim Zahmoul</u>	Director	January 5, 2024
* <u>Shiv Vikram Khemka</u>	Director	January 5, 2024
* By: <u>/s/ Kanat Mynzhanov</u> Name: Kanat Mynzhanov Title: Attorney-in-Fact		

AUTHORIZED REPRESENTATIVE IN THE UNITED STATES

Pursuant to the requirements of the Securities Act of 1933, as amended, Oxus Acquisition Corp., has duly caused this registration statement to be signed by the following duly authorized representative in the United States on January 5, 2024.

Puglisi & Associates

By: /s/ Donald J. Puglisi

Name: Donald J. Puglisi

Title: Managing Director

II-4

Form S-4

11th January 2024

As filed with the Securities and Exchange Commission on **January 11, 2024.****Registration No. 333-273967**

**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549**

Amendment No. 5

to

Form S-4

Registration Statement Under the Securities Act of 1933

OXUS ACQUISITION CORP.

(Exact name of registrant as specified in its charter)

Cayman Islands**6770****N/A**(State or other jurisdiction of
incorporation or organization)(Primary Standard Industrial
Classification Code Number)(IRS Employer
Identification Number)

**300/26 Dostyk Avenue
Almaty, Kazakhstan 050020
+7(727) 355-8021**

(Address, including zip code, and telephone number, including area code, of registrant's principal executive offices)

**Oxus Acquisition Corp.
Donald J. Puglisi
Puglisi & Associates
850 Library Avenue, Suite 204
Newark, Delaware 19711
(302) 738-6680**

**Borealis Foods, Inc.
American Incorporators Ltd.
1013 Centre Road, Suite 403-A
Wilmington, Delaware 19801
(302) 421-5750**

(Name, address, including zip code, and telephone number, including area code, of agent for service)

Copies to:

**Alan I. Annex
Yuta N. Delarck
Greenberg Traurig, LLP
One Vanderbilt Avenue
New York, NY 10017
Tel: (212) 801-6928**

**Stephanie Stimpson
Adrienne DiPaolo
Torys LLP
79 Wellington St. W.,
30th Floor, Box 270, TD
South Tower
Toronto, Ontario
M5K 1N2 Canada
Tel: (416) 865-0040**

**Richard Langan
Christopher Keefe
Nixon Peabody LLP
55 West 46th Street
New York, NY 10036
Tel: (212) 940-3000**

**John Mercury
James McClary
Bennett Jones LLP
4500 Bankers Hall East
855 2nd Street SW
Calgary, Alberta
T2P 4K7 Canada
Tel: (403) 298-3100**

Approximate date of commencement of proposed sale of the securities to the public: As soon as practicable after the effective date of this registration statement and all other conditions to the proposed Business Combination as described herein have been satisfied or waived.

If this Form is filed to register additional securities for an offering pursuant to Rule 462(b) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If this Form is a post-effective amendment filed pursuant to Rule 462(d) under the Securities Act, check the following box and list the Securities Act registration statement number of the earlier effective registration statement for the same offering. ☐

If applicable, place an X in the box to designate the appropriate rule provision relied upon in conducting this transaction:

Exchange Act Rule 13e-4(i) (Cross-Border Issuer Tender Offer) ☐Exchange Act Rule 14d-1(d) (Cross-Border Third-Party Tender Offer) ☐

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933.

Emerging growth company ☒

If an emerging growth company that prepares its financial statements in accordance with U.S. GAAP, indicate by check mark if the registrant has elected not to use the extended transition period for complying with any new or revised financial accounting standards provided pursuant to Section 7(a)(2)(B) of the Securities Act. ☐

The registrant hereby amends this registration statement on such date or dates as may be necessary to delay its effective date until the registrant shall file a further amendment which specifically states that this registration statement shall thereafter become effective in accordance with Section 8(a) of the Securities Act of 1933, as amended, or until the registration statement shall become effective on such date as the Securities and Exchange Commission, acting pursuant to said Section 8(a), may determine.

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The information in this preliminary proxy statement/prospectus is not complete and may be changed. We may not issue these securities until the registration statement filed with the Securities and Exchange Commission is effective. This preliminary proxy statement/prospectus is not an offer to sell these securities and it is not soliciting an offer to buy these securities in any jurisdiction where the offer or sale is not permitted.

Preliminary — Subject to Completion, Dated January 11, 2024

**PROXY STATEMENT AND PROSPECTUS
DATED [•], 2024**

OXUS ACQUISITION CORP.

**300/26 Dostyk Avenue
Almaty, Kazakhstan 050020**

Dear Shareholder of Oxus Acquisition Corp.:

You are cordially invited to attend the extraordinary general meeting of shareholders of Oxus Acquisition Corp., which we refer to as “we,” “us,” “our,” or “Oxus,” at [•], Eastern time, on [•], 2024 (the “Meeting”). Oxus will hold the Meeting in both virtual and physical format and we strongly recommend that you attend the Meeting virtually. For the purposes of the Articles (as defined below), the physical place of the meeting will be at the offices of Greenberg Traurig, LLP, located at One Vanderbilt Avenue, New York, NY 10017, United States of America. You will be able to attend, vote your shares, and submit questions during the Meeting either in person or virtually via a live audio webcast. In order to attend the Meeting virtually, you must pre-register at the following website: <https://www.cstproxy.com/oxusacquisition/2024>.

At the Meeting, our shareholders will be asked to consider and vote upon, among other proposals, a proposal, which we refer to as the “Business Combination Proposal,” to approve the Business Combination (as defined below) by the approval and adoption of the transactions contemplated by the business combination agreement (as may be amended, the “Business Combination Agreement”) that Oxus has entered into with Borealis Foods Inc., a corporation incorporated under the Laws of Canada (“Borealis”), and 1000397116 Ontario Inc., an Ontario corporation and a wholly owned subsidiary of Oxus (“Newco”). The Business Combination will be effected principally by a statutory arrangement (the “Arrangement”) under the *Canada Business Corporations Act* and the *Business Corporations Act* (Ontario) (the “OBCA”) pursuant to the terms of the plan of arrangement (as may be amended, the “Plan of Arrangement”) attached to and forming part of the Business Combination Agreement.

Pursuant to and in accordance with the terms of the Business Combination and the Plan of Arrangement, among other things: (a) Oxus will domesticate and continue as a corporation under the laws of the Province of Ontario, Canada (the “Continuance” and, Oxus as the continuing entity, “New Oxus”); (b) on the date of closing (the “Closing Date”), Newco and Borealis will amalgamate (the “Borealis Amalgamation”, and the amalgamated corporation resulting therefrom, “Amalco”), with Amalco surviving the Borealis Amalgamation as a wholly-owned subsidiary of New Oxus; and (c) on the Closing Date, immediately following the Borealis Amalgamation, New Oxus and Amalco will amalgamate (the “New Oxus Amalgamation,” and together with the Borealis Amalgamation, the “Amalgamations,” and the corporation resulting therefrom, “New Borealis,” as a corporation under the laws of the Province of Ontario, Canada), with New Borealis surviving the New Oxus Amalgamation (the Amalgamations, together with the Continuance and other transactions contemplated by the Business Combination Agreement, the Plan of Arrangement and the ancillary agreements, the “Transactions” or the “Business Combination”). New Borealis, as the surviving entity of the New Oxus Amalgamation, will continue under the name “Borealis Foods Inc.” Capitalized terms used in this cover letter but not otherwise defined herein have the meanings given to them in the proxy statement/prospectus of Oxus on Form S-4 to which this letter is attached.

Pursuant to the Business Combination Agreement, on the day prior to the Closing Date, Oxus intends to de-register as an exempted company in the Cayman Islands and domesticate and continue as New Oxus, a corporation continued under the OBCA. On the Closing Date, as part of the Arrangement and in accordance with the terms of the Plan of Arrangement, each of the following transactions will occur and be deemed to occur sequentially in the following order (effective as at five-minute intervals starting at the Arrangement Effective Time):

- all outstanding convertible financing instruments of Borealis, including the Sponsor Convertible Notes, that are being converted into Borealis Shares (as defined below) immediately prior to the Amalgamations (collectively, the “Borealis Convertible Instruments”) (which exclude (A) any convertible financing instrument of Borealis that will be repaid prior to the Closing in accordance with its terms, (B) the Remaining Borealis Convertible Instruments, and (C) the New Investor Convertible Notes, which will subsequently convert into New Borealis Common Shares pursuant to the terms of the Plan of Arrangement as discussed below) will, without further action by or on behalf of a holder of Borealis Convertible Instruments, be converted into Borealis Shares pursuant to their terms and the terms of any applicable conversion agreements;

[Table of Contents](#)**SIGNATURES**

Pursuant to the requirements of the Securities Act of 1933, the registrant has duly caused this registration statement to be signed on its behalf by the undersigned, thereunto duly authorized, on January 11, 2024.

Oxus Acquisition Corp.

By: /s/ Kanat Mynzhanov

Kanat Mynzhanov

Chief Executive Officer and Director

Pursuant to the requirements of the Securities Act of 1933, this registration statement has been signed by the following persons in the capacities and on the dates indicated.

Signature	Title	Date
<u>/s/ Kanat Mynzhanov</u>	Chief Executive Officer and Director	January 11, 2024
Kanat Mynzhanov	(Principal Executive Officer)	
<u>*</u>	Chief Financial Officer	January 11, 2024
Askar Mametov	(Principal Financial and Accounting Officer)	
<u>*</u>	Non-executive Chairman and Director	January 11, 2024
Kenges Rakishev		
<u>*</u>	Director	January 11, 2024
Christophe Charlier		
<u>*</u>	Director	January 11, 2024
Karim Zahmoul		
<u>*</u>	Director	January 11, 2024
Shiv Vikram Khemka		

*By: /s/ Kanat Mynzhanov

Name: Kanat Mynzhanov

Title: Attorney-in-Fact

[Table of Contents](#)**AUTHORIZED REPRESENTATIVE IN THE UNITED STATES**

Pursuant to the requirements of the Securities Act of 1933, as amended, Oxus Acquisition Corp., has duly caused this registration statement to be signed by the following duly authorized representative in the United States on January 11, 2024.

Puglisi & Associates

By: /s/ Donald J. Puglisi

Name: Donald J. Puglisi

Title: Managing Director

II-7

16th January 2024

Filed Pursuant to Rule 424(b)(3)
Registration No. 333-273967
PROXY STATEMENT AND PROSPECTUS
DATED JANUARY 16, 2024

OXUS ACQUISITION CORP. (excerpts)

300/26 Dostyk Avenue

Almaty, Kazakhstan 050020

PAGE 30:

The beneficial ownership of Oxus' independent directors, Christophe Charlier, **Karim Zahmoul** and Shiv Vikram Khemka, who each hold 50,000 Founder Shares with a total market value of approximately \$1,695,000 based on the closing price of Class A Shares of \$11.30 on the Nasdaq on January 11, 2024. The Founder Shares would become worthless if Oxus does not complete a business combination within the applicable time period, as the independent directors have waived any right to redemption with respect to these shares;

- the fact that given the differential in the purchase price that the Sponsor paid for the Founder Shares as compared to the price of the Public Units sold in the IPO and the substantial number of Class A Shares that the Sponsor will receive upon conversion of the Founder Shares in connection with the Business Combination, **the Sponsor may earn a positive rate of return on their investment even if the Class A Shares trade below the price initially paid for the Public Units in the IPO** and the public shareholders experience a negative rate of return following the completion of the Business Combination;

PAGE 43: Lock-Up Agreements

In connection with the Closing, Oxus and certain directors/officers/five percent or greater shareholders of Borealis (the "Subject Party") will enter into Lock-Up Agreements, pursuant to which (A) 50% of the shares of New Borealis held by the Subject Party (the "Restricted Securities") will be locked-up during the period commencing from the Closing and ending on the earlier to occur of (i) 12 months after the date of the Closing and (ii) the date on which the closing price of common shares of New Borealis equals or exceeds \$12.00 per share (as adjusted to take into account any stock split, stock dividend, reverse stock split, recapitalization or similar event) for any 20 trading days within a 30-trading day period starting after the Closing, and (B) 50% of the Restricted Securities will be locked-up during the period commencing from the Closing and ending on 12 months after the date of the Closing, subject to certain specifications and exceptions.

PAGE 245-246:**Directors and Officers**

The below lists Oxus' current officers and directors.

Name	Age	Title
Kenges Rakishev	44	Non-executive Chairman and Director
Kanat Mynzhanov	40	Chief Executive Officer and Director
Askar Mametov	40	Chief Financial Officer
Christophe Charlier	51	Director
Karim Zahmoul	58	Director
Shiv Vikram Khemka	61	Director

Karim Zahmoul has served as one of Oxus' independent directors since June 2022. Mr. Zahmoul has 25 years of investment banking experience. He has served as a Founder and CEO of EMVirya Ltd, an FCA regulated investment advisor based in London since February 2018. EMVirya Ltd, is a privately held financial services firm with extensive experience in global emerging markets that is positioning itself at the cross road of Emerging markets and renewable energy. Prior to founding EMVirya, Mr. Zahmoul was a Partner at Temporis Capital from September 2014 to April 2017 in London, where he was responsible for the firm's international investments business and developed renewable energy project in the emerging market jurisdiction including extended focus in Morocco and Argentina. Prior to that from 2004 to 2014, Mr. Zahmoul was a Managing Director at Barclays Investment Bank where he held various senior positions over his 10-year tenure at the bank. In his last position, he was responsible for the Global Emerging Market business for the investment bank. Prior to Barclays from 1999 to 2004, Mr. Zahmoul spent five years at Deutsche Bank where he was a Managing Director and Head of Emerging Market Structuring for the Americas in New York. He started his financial career and spent six years at Goldman Sachs, in both New York and London, where his last position was Executive Director in EEMEA Trading. Mr. Zahmoul received an MSc and a BSc from Columbia School of Engineering and Applied Sciences in Operation Research and a BA in Physics from Columbia College.

PAGE 248:**Number and Terms of Office of Officers and Directors**

The Oxus Board consists of five members. The Oxus Board is divided into three classes, with only one class of directors being elected in each year, and with each class (except for those directors appointed prior to Oxus' first annual meeting of stockholders) serving a three-year term. The term of office of the first class of directors, consisting of **Karim Zahmoul**, will expire at Oxus' first annual meeting of shareholders. The term of office of the second class of directors, consisting of Christophe Charlier and Shiv Vikram Khemka, will expire at Oxus' second annual meeting of

shareholders. The term of office of the third class of directors, consisting of Kenges Rakishev and Kanat Mynzhanov, will expire at Oxus' third annual meeting of shareholders.

PAGE 248:

Audit Committee

Oxus gas established an audit committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The audit committee's duties, which are specified in Oxus' Audit Committee Charter, include, but are not limited to:

- reviewing and discussing with management and the independent auditor the annual audited financial statements, and recommending to the board whether the audited financial statements should be included in Oxus' Form 10-K;
- discussing with management and the independent auditor significant financial reporting issues and judgments made in connection with the preparation of Oxus' financial statements;
- discussing with management major risk assessment and risk management policies;
- discussing with management major risk assessment and risk management policies;
- monitoring the independence of the independent auditor;
- verifying the rotation of the lead (or coordinating) audit partner having primary responsibility for the audit and the audit partner responsible for reviewing the audit as required by law;
- reviewing and approving all related party transactions;
- inquiring and discussing with management Oxus' compliance with applicable laws and regulations;
- pre-approving all audit services and permitted non-audit services to be performed by Oxus' independent auditor, including the fees and terms of the services to be performed;
- appointing or replacing the independent auditor;
- determining the compensation and oversight of the work of the independent auditor (including resolution of disagreements between management and the independent auditor regarding financial reporting) for the purpose of preparing or issuing an audit report or related work;
- establishing procedures for the receipt, retention and treatment of complaints received by Oxus regarding accounting, internal accounting controls or reports which raise material issues regarding Oxus' financial statements or accounting policies; and

- approving reimbursement of expenses incurred by Oxus' management team in identifying potential target businesses.

PAGE 249:

Financial Experts on Audit Committee

The audit committee will at all times be composed exclusively of “independent directors” who are “financially literate” as defined under the Nasdaq’s listing standards. The Nasdaq’s standards define “financially literate” as being able to read and understand fundamental financial statements, including a company’s balance sheet, income statement and cash flow statement.

In addition, Oxus must certify to the Nasdaq that the committee has, and will continue to have, at least one member who has past employment experience in finance or accounting, requisite professional certification in accounting, or other comparable experience or background that results in the individual’s financial sophistication. The board of directors has determined that Christophe Charlier qualifies as an “audit committee financial expert,” as defined under rules and regulations of the SEC.

Nominating Committee

Oxus has established a nominating committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq’s listing standards. The nominating committee is responsible for overseeing the selection of persons to be nominated to serve on the Oxus Board. The nominating committee considers persons identified by its members, management, shareholders, investment bankers and others.

Guidelines for Selecting Director Nominees

The guidelines for selecting nominees, which are specified in the Nominating Committee Charter, generally provide those persons to be nominated:

- **should have demonstrated notable or significant achievements in business, education or public service;**
- should possess the requisite intelligence, education and experience to make a significant contribution to the board of directors and bring a range of skills, diverse perspectives and backgrounds to its deliberations; and
- **should have the highest ethical standards, a strong sense of professionalism and intense dedication to serving the interests of the shareholders.**

The Nominating Committee will consider a number of qualifications relating to management and leadership experience, background and integrity and professionalism in evaluating a person’s candidacy for membership on the board of directors. The nominating committee may require certain skills or attributes, such as financial or accounting experience, to meet specific board needs that arise from time to time and will also consider the overall experience and makeup of its

members to obtain a broad and diverse mix of board members. The nominating committee does not distinguish among nominees recommended by shareholders and other persons.

PAGE 250:

Compensation Committee

Oxus has established a compensation committee of the board of directors, which consists of Christophe Charlier (chairman), Shiv Vikram Khemka and **Karim Zahmoul**, each of whom is an independent director under the Nasdaq's listing standards. The compensation committee's duties, which are specified in Oxus' Compensation Committee Charter, include, but are not limited to:

- reviewing and approving on an annual basis the corporate goals and objectives relevant to Oxus' Chief Executive Officer's compensation, evaluating Oxus' Chief Executive Officer's performance in light of such goals and objectives and determining and approving the remuneration (if any) of Oxus' Chief Executive Officer based on such evaluation;
- reviewing and approving the compensation of all of Oxus' other executive officers;
- reviewing Oxus' executive compensation policies and plans;
- implementing and administering Oxus' incentive compensation equity-based remuneration plans;
- assisting management in complying with Oxus' proxy statement and annual report disclosure requirements;

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- approving all special perquisites, special cash payments and other special compensation and benefit arrangements for Oxus' executive officers and employees;
- if required, producing a report on executive compensation to be included in Oxus' annual proxy statement; and
- reviewing, evaluating and recommending changes, if appropriate, to the remuneration for directors.

Code of Ethics

Oxus has adopted a code of ethics that applies to all of Oxus' executive officers, directors and employees. The code of ethics codifies the business and ethical principles that govern all aspects of Oxus' business.

Legal Proceedings

As of the date of this proxy statement/prospectus, to the knowledge of Oxus' management, there was no material litigation, arbitration or governmental proceeding pending against Oxus or any

members of Oxus' management team in their capacity as such, and Oxus and the members of Oxus' management team have not been subject to any such proceeding.

PAGE 287:

Unless otherwise indicated, Oxus believes that all persons named in the table have sole voting and investment power with respect to all shares beneficially owned by them. **The following table does not reflect record or beneficial ownership of Oxus' warrants because such warrants are not exercisable within 60 days of the date of this proxy statement/prospectus.** The calculation of the pre-transaction percentage of beneficial ownership for Oxus is based on 6,552,131 Oxus Shares outstanding as of January 11, 2024. The calculation of the pre-transaction percentage of beneficial ownership for Borealis is based on 167,159,371 Borealis Shares outstanding as of September 30, 2023.

Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Current Directors and Executive Officers of and Sponsor of Oxus:						
Oxus Capital Pte. Ltd. ⁽²⁾	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kenges Rakishev	4,162,500 ⁽³⁾	63.53%	5,536,333	24.59%	5,536,333	26.90%
Kanat Mynzhanov ⁽⁴⁾⁽¹¹⁾	—	—	—	—	—	—
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Name and Address of Beneficial Owner ⁽¹⁾	Pre-Transaction		Post-Transaction Assuming No Class A Shares are Redeemed		Post-Transaction Assuming 1,939,631 Class A Shares are Redeemed	
	Number	Percentage	Number	Percentage	Number	Percentage
Askar Mametov ⁽¹¹⁾	—	—	—	—	—	—
Karim Zahmoul	50,000	*	50,000	*	50,000	*
Christophe Charlier	50,000	*	50,000	*	50,000	*
Shiv Vikram Khemka	50,000	*	50,000	*	50,000	*
All directors and executive officers as a group (6 individuals)	4,312,500 ⁽⁴⁾⁽⁵⁾	65.82%	5,686,333	25.25%	5,686,333	27.63%
Directors and Executive Officers of New Borealis After Consummation of the Business Combination:						
Reza Soltanzadeh	55,376,531 ⁽⁸⁾⁽⁹⁾	33.13%	3,230,969	14.35%	3,230,969	16.28%
Barthelemy Helg	48,494,719 ⁽¹⁰⁾	29.01%	3,230,969	14.35%	3,230,969	16.28%
Stephen Wegrzyn	—	—	33,430	*	33,430	*
Pouneh Rahimi	—	—	194,574	*	194,574	*
Matt Talle	—	—	217,139	*	217,139	*
Henry Wong	—	—	6,143	*	33,430	*

Kanat Mynzhanov	—	—	200,000	*	200,000	*
Shiv Vikram Khemka	—	—	50,000	*	50,000	*
Shukhrat Ibragimov ⁽¹²⁾	—	—	2,754,716	12.23%	2,754,716	13.39%
Steven Oyer	—	—	—	—	—	—
Ertharin Cousin	—	—	—	—	—	—
All directors and executive officers as a group (nine individuals)						
	3,871,250	62.14%	9,466,654	42.04%	9,466,654	45.95%
Five Percent or More Holders and Certain Other Holders:						
Meteora Capital, LLC ⁽⁶⁾	402,598	6.14%				
Boothbay Fund Management, LLC ⁽⁷⁾	235,331	3.59%				

* less than 1%

** indeterminable in maximum redemption scenario

- (1) Unless otherwise noted, the business address of each of the following entities or individuals is c/o Oxus Acquisition Corp., 300/26 Dostyk Avenue, Almaty, Kazakhstan 050020.
- (2) Represents securities held by Oxus Capital Pte. Ltd., our Sponsor, of which Kenges Rakishev is the controlling shareholder.
- (3) Consists of 1,500,000 Class A Shares and 2,662,500 Class B Shares.
- (4) Does not include certain shares indirectly owned by this individual as a result of his membership interest in our Sponsor.
- (5) Interests shown include founder shares, classified as Class B ordinary shares. Such shares are convertible into Class A ordinary shares on a one for one basis, subject to adjustment.
- (6) Consists of 402,598 Class A Shares of Oxus. Based on a Schedule 13G filed on April 11, 2023, by Meteora Capital, LLC, a Delaware limited liability company (“Meteora Capital”) with respect to the ordinary shares held by certain funds and managed accounts to which Meteora Capital serves as investment manager (collectively, the “Meteora Funds”); and Vik Mittal, who serves as the Managing Member of Meteora Capital, with respect to the ordinary shares held by the Meteora Funds. The address of the principal business office for each of the reporting persons is 1200 N Federal Hwy, #200, Boca Raton FL 33432.
- (7) Based on a Schedule 13G filed on April 5, 2023, by Boothbay Fund Management, LLC, a Delaware limited liability company; Boothbay Absolute Return Strategies LP, a Delaware limited partnership; and Ari Glass, a citizen of the United States. The units are held by one or more private funds (the “Funds”), which are managed by Boothbay Fund Management, LLC, a Delaware limited liability company (the “Adviser”). Ari Glass is the Managing Member of the Adviser. Certain subadvisors (“Subadvisors”) have been delegated the authority to act on behalf of the Funds, including exclusive authority to vote and/or direct the disposition of certain Class A Shares held by the Fund, and such Class A Shares may be reported in regulatory filings made by such Subadvisors. The address of the principal business office for each of the reporting persons is 140 East 45th Street, 14th Floor, New York, NY 10017.
- (8) Consists of 55,376,531 Class A Common Shares of Borealis Foods Inc.
- (9) Represents Securities held by Zagros Alpine Capital ULC, which consists of 53,440,906 Class A Common Shares, and Securities held by Z Ventures Inc., which consists of 1,935,625 Class A Common Shares. Reza Soltanzadeh is the President of Zagros Alpine Capital ULC and Z Ventures Inc. and has sole voting and dispositive control over the shares held by Zagros Alpine Capital ULC and Z Ventures Inc.
- (10) Consists of 48,494,719 Class A Common Shares of Borealis Foods Inc.
- (11) Does not include shares to be transferred by the Sponsor pursuant to the incentive agreements upon successful completion of the Business Combination.
- (12) Represents securities held by Belphar. Ltd., of which Shukhrat Ibragimov is the controlling shareholder.

PAGE 340:

On May 31, 2022, Mr. Sergei Ivashkovsky resigned from his position as independent director within the Company and returned 50,000 Founder Shares to the Sponsor. On June 1, 2022, **Mr. Karim Zahmoul** was appointed as independent director. **On June 7, 2022, 50,000 Founder Shares were transferred to Mr. Karim Zahmoul by the Sponsor. The fair value of the 50,000 Founder Shares granted to the Mr. Karim Zahmoul on June 7, 2022, was \$0.02 million or**

\$0.33 per share. The Founder Shares were granted subject to a performance condition (i.e., the occurrence of a Business Combination). Compensation expense related to the Founder Shares is recognized only when the performance condition is met under the applicable accounting literature in this circumstance. The fair value of the allocated Founder Shares was measured at fair value using a Monte Carlo simulation model.

6th February 2024

Form 8-K

Exhibit 3.1

Certificate of Continuance

6th February 2024

EX-3.1 2 ea020644101ex3-1_borealis.htm ARTICLES OF CONTINUANCE, DATED FEBRUARY 6, 2024

Exhibit 3.1

**Ministry of Public and
Business Service Delivery
Ministère des Services au public et
aux entreprises**

Certificate of Continuance

Business Corporations Act

Certificat de maintien

Loi sur les sociétés par actions

OXUS ACQUISITION CORP.

Corporation Name / Dénomination sociale

1000789352

Ontario Corporation Number / Numéro de société de l'Ontario

This is to certify that these articles are effective on

La présente vise à attester que ces statuts entreront en vigueur le

February 06, 2024 / 06 février 2024

A handwritten signature in dark ink, appearing to read "V. Quintanilla W.".

Director / Directeur

Business Corporations Act / Loi sur les sociétés par actions

The Certificate of Continuance is not complete
without the Articles of Continuance

Certified a true copy of the record of the Ministry of
Public and Business Service Delivery.

A handwritten signature in dark ink, appearing to read "V. Quintanilla W.".

Director/Registrar



Le certificat de maintien n'est pas complet s'il ne
contient pas les statuts de maintien

Copie certifiée conforme du dossier du ministère des
Services au public et aux entreprises.

A handwritten signature in dark ink, appearing to read "V. Quintanilla W.".

Directeur ou registrateur

BCA - Articles of Continuance - OXUS ACQUISITION CORP. - OCN:1000789352 - February 06, 2024



Ministry of Public and
Business Service Delivery

Articles of Continuance

Business Corporations Act

1. Corporation Name

OXUS ACQUISITION CORP.

2. Date of Incorporation/Amalgamation

February 03, 2021

3. Name of jurisdiction the corporation is leaving

Cayman Islands

4. The continuance was authorized by home jurisdiction on

January 31, 2024

5. The corporation is continued in Ontario under the name

OXUS ACQUISITION CORP.

6. Registered Office Address

79 Wellington Street West, 3000, Toronto, Ontario, Canada, M5K 1N2

7. Number of Directors

Minimum/Maximum Min 3 / Max 10

The endorsed Articles of Continuance are not complete without the Certificate of Continuance.

Certified a true copy of the record of the Ministry of Public and Business Service Delivery.

A handwritten signature in blue ink that reads "V. Quintanilla W." followed by a comma.

Director/Registrar, Ministry of Public and Business Service Delivery

BCA - Articles of Continuance - OXUS ACQUISITION CORP. - OCN:1000789352 - February 06, 2024

8. The director(s) is/are:

Full Name	CHRISTOPHE CHARLIER
Address for Service	79 Wellington Street West, 3000, Toronto, Ontario, Canada, M5K 1N2
Full Name	SHIV VIKRAM KHEMKA
Address for Service	79 Wellington Street West, 3000, Toronto, Ontario, Canada, M5K 1N2
Full Name	KANAT MYNZHANOV
Address for Service	79 Wellington Street West, 3000, Toronto, Ontario, Canada, M5K 1N2
Full Name	KENGES RAKISHEV
Address for Service	79 Wellington Street West, 3000, Toronto, Ontario, Canada, M5K 1N2
Full Name	KARIM ZAHMOUL
Address for Service	79 Wellington Street West, 3000, Toronto, Ontario, Canada, M5K 1N2

9. Restrictions, if any, on business the corporation may carry on or on powers the corporation may exercise. If none, enter "None":

None

10. The classes and any maximum number of shares that the corporation is authorized to issue:

The Corporation is authorized to issue First Preferred Shares, issuable in series, to be limited in number to an amount equal to not more than 20% of the number of issued and outstanding Common Shares at the time of issuance of any First Preferred Shares, and an unlimited number of Common Shares.

11. Rights, privileges, restrictions and conditions (if any) attaching to each class of shares and directors' authority with respect to any class of shares which may be issued in series. If there is only one class of shares, enter "Not Applicable":

COMMON SHARES

The rights, privileges, restrictions and conditions attaching to the Common Shares shall be as follows:

1. Voting

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Director/Registrar, Ministry of Public and Business Service Delivery

BCA - Articles of Continuance - OXUS ACQUISITION CORP. - OCN:1000789352 - February 06, 2024

The holders of the Common Shares shall be entitled to receive notice of and to attend any meeting of the shareholders of the Corporation, except meetings at which only holders of a different class or series of shares of the Corporation are entitled to vote, and shall be entitled to one vote for each Common Share.

2. Dividends

Subject to the prior rights and privileges attached to any other class or series of shares of the Corporation, the holders of the Common Shares shall be entitled to receive dividends at such times and in such amounts as the directors of the Corporation may in their discretion from time to time declare.

3. Liquidation

Subject to the prior rights and privileges attached to any other class or series of shares of the Corporation, upon the voluntary or involuntary liquidation, dissolution or winding-up of the Corporation or any other distribution of its assets among its share-holders for the purpose of winding up its affairs (such event referred to herein as a "Distribution"), each holder of Common Shares shall have the right to receive, in cash or other assets, for each Common Share held, from out of (but only to the extent of) the remaining property of the Corporation legally available for distribution to shareholders, its pro rata share of such remain-ing property based on the number of Common Shares held thereby, and shall rank equally with all holders of Common Shares with respect to such Distribution.

FIRST PREFERRED SHARES

The rights, privileges, restrictions and conditions attaching to the First Preferred Shares, as a class, shall be as follows:

1. Issuance in Series

(a) Subject to the filing of Articles of Amendment in accordance with the Business Corporations Act (Ontario) (the "Act"), the Board of Directors may at any time and from time to time issue the First Preferred Shares in one or more series, each series to consist of such number of shares as may, before the issuance thereof, be determined by the Board of Directors.

(b) Subject to the filing of Articles of Amendment in accordance with the Act and the provisions, the Board of Directors may from time to time fix, before issuance, the designation, rights, privileges, restrictions and conditions attaching to each series of First Preferred Shares including, without limiting the generality of the foregoing, the amount, if any, specified as being payable prefer-entially to such series on a Distribution; the extent, if any, of further participation on a Distribution; voting rights, if any; and di-vidend rights (including whether such dividends be preferential, or cumulative or non_cumulative), if any.

2. Dividends

The holders of each series of First Preferred Shares shall be entitled, in priority to holders of Common Shares and any other shares of the Corporation ranking junior to the First Preferred Shares from time to time with respect to the payment of di-vidends, to be paid rateably with holders of each other series of First Preferred Shares, the amount of accumulated dividends, if any, specified as being payable preferentially to the holders of such series.

3. Liquidation

In the event of a Distribution, holders of each series of First Preferred Shares shall be entitled, in priority to holders of Common Shares and any other shares of the Corporation ranking junior to the First Preferred Shares from time to time with respect to payment on a Distribution, to be paid rateably with holders of each other series of First Preferred Shares the amount, if any, spe-cified as being payable preferentially to the holders of such series on a Distribution.

12. The issue, transfer or ownership of shares is/is not restricted and the restrictions (if any) are as follows. If none, enter "None":

None

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Certified a true copy of the record of the Ministry of Public and Business Service Delivery.



Director/Registrar, Ministry of Public and Business Service Delivery

BCA - Articles of Continuance - OXUS ACQUISITION CORP. - OCN:1000789352 - February 06, 2024

13. Other provisions

None

14. The corporation is to be continued under the Business Corporations Act to the same extent as if it had been incorporated under this Act.

15. The corporation has complied with subsection 180(3) of the Business Corporations Act.

The articles have been properly executed by the required person(s).

The endorsed Articles of Continuance are not complete without the Certificate of Continuance.

Certified a true copy of the record of the Ministry of Public and Business Service Delivery.



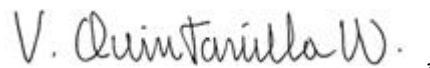
Director/Registrar, Ministry of Public and Business Service Delivery

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Supporting Document -Constating Document from Governing Jurisdiction

The endorsed Articles of Continuance are not complete without the Certificate of Continuance.

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Director/Registrar, Ministry of Public and Business Service Delivery

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Supporting Information - Nuans Report Information

Nuans Report Reference #	122060772
Nuans Report Date	November 13, 2023

The endorsed Articles of Continuance are not complete without the Certificate of Continuance.

Certified a true copy of the record of the Ministry of Public and Business Service Delivery.



Director/Registrar, Ministry of Public and Business Service Delivery

Form 8-K
7th February 2024

**UNITED STATES
SECURITIES AND EXCHANGE COMMISSION
Washington, D.C. 20549**

FORM 8-K

CURRENT REPORT

**Pursuant to Section 13 or 15(d)
of the Securities Exchange Act of 1934**

Date of Report (Date of earliest event reported): February 7, 2024

BOREALIS FOODS INC.
(Exact name of Registrant as Specified in its Charter)

Ontario
(State or other jurisdiction of
incorporation or organization)

001-40778
(Commission File Number)

98-1638988
(I.R.S. Employer
Identification No.)

**1540 Cornwall Rd. #104
Oakville, Ontario**
(Address of Principal Executive Offices)

L6J 7W5
(Zip Code)

(905) 278-2200
Registrant's telephone number, including area code

Oxus Acquisition Corp.
(Former name or former address, if changed since last report)

Check the appropriate box below if the Form 8-K filing is intended to simultaneously satisfy the filing obligations of the registrant under any of the following provisions:

- ☐ Written communications pursuant to Rule 425 under the Securities Act (17 CFR 230.425)
- ☐ Soliciting material pursuant to Rule 14a-12 under the Exchange Act (17 CFR 240.14a.12)
- ☐ Pre-commencement communications pursuant to Rule 14d-2(b) under the Exchange Act (17 CFR 240.14d-2(b))
- ☐ Pre-commencement communications pursuant to Rule 13e-4(c) under the Exchange Act (17 CFR 240.13e-4(c))

Securities registered pursuant to Section 12(b) of the Act:

Title of each class	Trading Symbol(s)	Name of each exchange on which registered
Common Shares	BRLS	Nasdaq Capital Market
Warrants	BRLSW	Nasdaq Capital Market

Indicate by check mark whether the registrant is an emerging growth company as defined in Rule 405 of the Securities Act of 1933 (§230.405 of this chapter) or Rule 12b-2 of the Securities Exchange Act of 1934 (§240.12b-2 of this chapter).

Emerging growth company ☒

Introductory Note

Overview

This Current Report on Form 8-K is being filed to report matters under items 1.01, 2.01, 2.02, 3.03, 4.01, 5.01, 5.02, 5.03, 5.05, 5.06, 7.01, 8.01, and 9.01 of Form 8-K.

On February 7, 2024 (the “**Closing Date**”), Borealis Foods Inc., a corporation incorporated under the laws of Canada (“**Borealis**”), Oxus Acquisition Corp., a Cayman Islands exempted company (“**Oxus**”), and 1000397116 Ontario Inc., an Ontario corporation and a wholly owned subsidiary of Oxus (“**Newco**”), consummated the transactions (collectively, the “**Transaction**”) contemplated by the Business Combination Agreement, dated as of February 23, 2023, by and among Borealis, Oxus, and Newco (as amended, amended and restated, supplemented, or otherwise modified from time to time, the “**Business Combination Agreement**”) by means of a statutory arrangement (the “**Arrangement**”) under the *Canada Business Corporations Act* and the *Business Corporations Act* (Ontario), implemented in accordance with the terms and conditions set forth in the Business Combination Agreement and the plan of arrangement attached as Exhibit B thereto (as amended, amended and restated, supplemented, or otherwise modified from time to time, the “**Plan of Arrangement**”) and which is incorporated herein by reference, following the approval at an extraordinary general meeting of the shareholders of Oxus held on February 2, 2024 (the “**Special Meeting**”).

Pursuant to the terms of the Business Combination Agreement, among other things: (i) Oxus domesticated and continued as a corporation under the laws of Ontario, Canada (“**New Oxus**”); and (ii) pursuant to the Plan of Arrangement, (a) Newco and Borealis amalgamated (the “**Borealis Amalgamation**”, and the amalgamated corporation resulting therefrom, “**Amalco**”), with Amalco surviving the Borealis Amalgamation as a wholly-owned subsidiary of New Oxus; and (b) following the Borealis Amalgamation, New Oxus and Amalco amalgamated (the “**New Borealis Amalgamation**,” and together with the Borealis Amalgamation, the “**Amalgamations**,” and the corporation resulting therefrom, “**New Borealis**,” as a corporation amalgamated under the *Business Corporations Act* (Ontario)), with New Borealis surviving the New Borealis Amalgamation. New Borealis will continue under the name “Borealis Foods Inc.”

In connection with the Transaction, New Oxus issued an aggregate of 21,378,890 common shares of New Oxus (“**New Oxus Common Shares**”), which, upon completion of the New Borealis Amalgamation, survived and continued as common shares of New Borealis (the “**New Borealis Common Shares**,” and the holders thereof upon completion of the Transaction, the “**New Borealis Shareholders**”).

Conversion and Exchange of Equity in the Transaction.

Upon the closing of the Transaction (the “**Closing**”), the following occurred:

- The common shares of Borealis (“**Borealis Common Shares**”) were exchanged for shares of New Borealis Common Shares equal to the quotient of (a) \$150,000,000 *minus* Borealis’ Closing Net Indebtedness, as agreed to by the parties, of \$17,000,000, which equals \$133,000,000, divided by (b) \$10.00 (the “**Aggregate Transaction Consideration**”).
- Each Borealis Common Share was exchanged for 0.0661 of a New Borealis Common Share, which is equal to the quotient obtained by dividing the Aggregate Transaction Consideration by the aggregate number of Borealis Common Shares issued and outstanding immediately prior to the Borealis Amalgamation.
- As of the Closing Date, the Aggregate Transaction Consideration was 13,300,000 New Oxus Common Shares, and was based on 201,206,834 Borealis Common Shares issued and outstanding, with an exchange rate of 0.0661, which the process is described in the final prospectus and definitive proxy statement, dated January 16, 2024 (the “**Proxy Statement/Prospectus**”) filed by Oxus with the Securities and Exchange Commission (the “**SEC**”), which is incorporated herein by reference.

EX-99.1 26 ea193378ex99-1_borealis.htm PRESS RELEASE DATED FEBRUARY 7, 2024 ANNOUNCING THE CLOSING OF THE BUSINESS COMBINATION

Exhibit 99.1

Borealis Foods Inc., a Rapidly Growing, Mission-Driven Food Tech Company, Completes Business Combination and Will Commence Trading on Nasdaq Under the Symbol “BRLS”

Borealis has developed breakthrough nutritious food that integrates complete protein with all essential amino acids and other key ingredients.

TORONTO, Feb. 7, 2024 /CNW/ - Borealis Foods, Inc. (Nasdaq: BRLS) (Nasdaq: BRLSW)

Borealis Foods Inc. (“Borealis” or the “Company”), a food tech company focused on developing high-quality, nutritious food solutions at affordable prices, announced today that it will commence trading on the Nasdaq under the ticker “BRLS” on February 8, 2024, following the closing of its previously announced business combination (“the Business Combination”) with Oxus Acquisition Corp. (“Oxus”).

Upon closing of the Business Combination, the Company continues to be led by Borealis’ CEO and Co-Founder Reza Soltanzadeh, and Chairman and Co-Founder Barthélemy Helg.

Borealis is an innovative food technology company with a mission to address global food nutritional challenges through its research and development of highly nutritious and functional food products. The company’s focus on affordability and sustainability reflects its commitment to making a positive impact on both human life and the planet. Borealis has created ramen meals that are organic, vegan, vegetarian, Halal, Kosher, plant-based, egg and dairy free, non-GMO, MSG free, and TBHQ free, and are manufactured with recyclable packaging. Made by Borealis-owned Palmetto Gourmet Foods, the Chef Woo Ramen brand and the popular Ramen Express Ramen brand are available in the United States, Canada, Mexico and Europe.

Borealis’ mission is to address growing consumer needs and global food security challenges by developing highly nutritious and functional food products that are uniquely delicious, affordable and sustainable. The Company has rapidly expanded its retail distribution footprint over 21,000 retail locations, beyond the United States and Canada and into Mexico and Europe. Fulfilling its mission of making nutritiously-created foods accessible, Borealis, through its food manufacturing company, has also begun expanding its available solutions into school, correctional facility and military food service.

“Borealis’ debut on the Nasdaq is an important step in our evolution as we pursue our mission of helping solve the problem of global food nutrition,” said Reza Soltanzadeh, Chief Executive Officer of Borealis. “Our company was founded in 2019 to address and solve a growing global crisis. Millions of people lack access to nutritious food at an affordable price, even in our own country. Our innovative, proprietary research and food technology allows us to translate this into shelf-stable, sustainable food that can satisfy people’s needs but at an affordable cost. Our commitment to our mission is unwavering; at the same time, we are enthusiastic about our growth outlook, stemming from our unique product offering and vast opportunities in retail and food service.”

“Additionally, our extensive distribution footprint and strategic marketing strategy centered around our partnership with Gordon Ramsay position us well for growth. We are excited about this milestone and look forward to reporting on the Company’s continued development.”

The Company’s Board of Directors is comprised of food industry and financial industry veterans, with specialties in branding, distribution, research and development, audit and investing. Oxus’ Chief Executive Officer, Kanat Mynzhanov, will join the Company’s Board of Directors.

The Company’s warrants will also commence trading on February 8, 2024 under the symbol “BRLSW.”

About Borealis

Borealis is an innovative food technology company with a mission to address global food security challenges through its research and development of highly nutritious and functional food products with great flavor that are both affordable and sustainable. The Company's focus on affordability and sustainability reflects its commitment to making a positive impact on both human life and the planet. Through its wholly-owned subsidiary, Palmetto Gourmet Foods, Borealis has created meals that are organic, vegan, vegetarian, Halal, Kosher, plant-based, egg free and dairy free, non-GMO, free of added MSG and TBHQ free. Borealis distributes its food products through the United States, Canada, Mexico and Europe.

Forward Looking Statements

Certain statements made in this release are "forward looking statements" within the meaning of the "safe harbor" provisions of the United States Private Securities Litigation Reform Act of 1995, including statements regarding the and future financial condition and performance of Borealis, and the expected financial impacts of the Business Combination (including future revenue and pro forma enterprise value), markets, and expected future growth and market opportunities. Forward-looking statements generally relate to management's current expectations, hopes, beliefs, intentions, strategies, plans, objections or projections about future events or Borealis' future financial condition or operating performance. When used in this press release, the words "estimates," "projected," "expects," "anticipates," "forecasts," "plans," "intends," "believes," "seeks," "may," "will," "should," "future," "propose" and variations of these words or similar expressions (or the negative versions of such words or expressions) are intended to identify forward-looking statements.

These forward-looking statements are not guarantees of future performance, conditions or results, and involve a number of known and unknown risks, uncertainties, assumptions and other important factors, many of which are outside Company's control, that could cause actual results or outcomes to differ materially from those discussed in the forward-looking statements. As such, readers are cautioned not to place undue reliance on any forward-looking statements and readers should not rely on these forward-looking statements as predictions of future events.

Forward-looking statements are based upon estimates and assumptions that, while considered reasonable by management of Borealis, are inherently uncertain. Factors that may cause actual result to differ from current expectations include, but are not limited to: the ability to meet stock exchange listing standards following consummation of the Business Combination; the risk that the Business Combination disrupts current plans and operations of Borealis as a result of the announcement and consummation of the Business Combination; the ability to recognize the anticipated benefits of the Business Combination, which may be affected by, among other things, competition, the ability of the combined company to grow and manage growth profitably, maintain relationships with customers and suppliers and retain its management and key employees; the costs related to the Business Combination; financial and operating performance; changes to existing applicable laws or regulations; the possibility that Borealis or the combined company may be adversely affected by economic, business, or competitive factors; Borealis' estimates of revenue, expenses, operating costs and profitability; the evolution of the markets in which Borealis competes and Borealis' ability to enter new markets effectively; and the ability of Borealis to implement its strategic initiatives and continue to innovate its existing services.

Readers should carefully consider the foregoing factors and other risks and uncertainties set forth in the sections entitled "Risk Factors" and "Forward-Looking Statements" set forth in Oxus' registration statement on Form S-4 filed with the Securities and Exchange Commission ("SEC") on January 12, 2024 and declared effective by the SEC on January 16, 2024, and other documents filed from time to time with the SEC by Oxus and, following completion of the Business Combination, by Borealis.

Forward-looking statements speak only as of the date they are made. Investors are cautioned not to put undue reliance on forward-looking statements and Borealis assumes no obligation and do not intend to update or revise these forward-looking statements, whether as a result of new information, future events or otherwise, except as required by securities and other applicable laws.

Contact: The Equity Group, Jeremy Hellman, Vice President, jhellman@equityny.com, (212) 836-9626; To arrange interviews with CEO, Reza Soltanzadeh, contact Henry Wong, Chief Marketing Officer, Borealis Foods, hwong@borealisfoods.com, (905) 278-2200

8th February 2024



Kenes Rakeshev (second from right) and Mr. Zahmoul (second from left) outside Nasdaq on 8th February 2024 when Oxus/Borealis was launched (BRLS).

19th February 2024

HUSBAND RESPONDENT (\$B)		JOINT		AGREED COMMENTS	
Applicant's Date	Respondent's Date	Applicant's Date	Respondent's Date		
	4/26/2008				
01	(57,356.00)				Non-marital property inherited by H
02	(517,500.00)				50% held in father's name number consideration of evidence
03	0.00				
04	0.00				
05	0.00				
06	0.00				
07	0.00				
08	0.00				
09	0.00				
10	0.00				
11	0.00				
12	0.00				
13	0.00				
14	0.00				
15	0.00				
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28	0.00				
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30	0.00				
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32	0.00				
33	0.00				
34	0.00				
35	0.00				
36	0.00				
37	0.00				
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39	0.00				
40	0.00				
41	0.00				
42	0.00				
43	0.00				
44	0.00				
45	0.00				
46	0.00				
47	0.00				
48	0.00				
49	0.00				
50	0.00				
51	0.00				
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29th February 2024

Tuesday, March 5, 2024 at 20:44:22 Greenwich Mean Time

Subject: Material Event - SPAC merger effective date 8 February 2024 -Nasdaq ticker BRLS
Date: Thursday, February 29, 2024 at 3:41:53 PM Greenwich Mean Time
From: Nadia
To: bmolyneux@29br.co.uk
CC: Zoë Bloom, Faye Simpson
Priority: High
Attachments: SEC_FORM_424(B)_PROSPECTUS_16JAN2024.pdf, SEC FILINGS.pdf, EVIDENCE_FROM_PROSPECTUS.docx, OXUS_TIMELINE.pdf, NASDAQ KEY DATA.pdf, Brent Note Nadia Zahmoul - ptr - 13 07 22.docx

Dear Brent,

THE FOLLOWING SHOWS THAT ONCE AGAIN, THE RESPONDENT IS TAKING ME AND THE COURT FOR FOOLS. Please send to the judge

The Oxus and Borealis M&A closed on 7 February 2024 and the Newco began trading on Nasdaq on 8 February 2024 under the ticker symbol BRSL.

1. The attached forms from the SEC provide documentary evidence of the following facts:
 - The respondent has 50,000 Founder shares
 - The grant value is \$0.33 per share
 - The shares are now listed on Nasdaq under ticker symbol BRLS
 - The current market price is \$9.20
 - The current price appreciation (book value): 2588%
 - **The current market value of the respondent's shares: \$443,500**
 - Lock-up period: one year
2. Warrants and Options granted to directors and founders have not been disclosed.
3. The Final Hearing before Justice MacDonald started on Monday 19th February. During his testimonies under oath the respondent represented that his shares in Oxus Acquisition Fund were worth zero. He also instructed his counsel to represent to the Court that his "shares in Oxus were on the side and were worth zero". This is a false representation. The shares owned by the respondent are worth \$443,500. The lock-up period does define the value of the shares. The respondent can borrow against the shares during the lock-up and can monetize them. He knows this. The key metric which determines the value of the shares is the **CLOSING OF THE MERGER TRANSACTION. This happened on 7 February 2024, 11 days before the trial started.**
THAT IS THE DATE WHICH DETERMINES THE VALUE OF THE

RESPONDENT'S SHARES.

-

With kind wishes,
Nadia

BV20D01752**Fraud Unravels All****Veritas Numquam Perit**

UK: +44 79 1332 8615

US: +1 424 426 9226

Wednesday, March 6, 2024 at 02:25:53 Greenwich Mean Time

Subject: Draft email for review
Date: Thursday, February 29, 2024 at 4:51:36 PM Greenwich Mean Time
From: Faye Simpson
To: Nadia
CC: Zoë Bloom
Attachments: image001.png, image002.png, image003.png, image004.png, image005.png, image006.png, image007.png, SEC_FORM_424(B)_PROSPECTUS_16JAN2024.pdf, SEC FILINGS.pdf

Dear Valeria,

We attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of \$9.20 (and your client had 50,000 shares in the pre-merger OXUS) please can you explain the value of his stockholding with reference to the attached documents and any others in your clients possession – and why he ascribed a nil value to his equity in the ES2.

We look forward to hearing from you.

Kind regards,

Faye

Faye Simpson | Associate

faye.simpson@afpbloom.com

T: 020 7409 1222 | M: 07425 854346

AFP Bloom LLP | 106-108 Wigmore Street, London, W1U 3LR

www.afpbloom.com



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[Evolve:b9f54239-f512-4fd1-8aa8-a780f6a5c9b0]

Wednesday, March 6, 2024 at 02:26:51 Greenwich Mean Time

Subject: Re: Draft email for review
Date: Thursday, February 29, 2024 at 5:01:15 PM Greenwich Mean Time
From: Nadia
To: Faye Simpson
CC: Zoë Bloom
Attachments: image001.png, image002.png, image003.png, image004.png, image005.png, image006.png, image007.png

Dear Faye,

This is agreed. Thank you.

Nadia

On 29/02/2024, 4:54 PM, "Faye Simpson" <faye.simpson@afpbloom.com> wrote:

Dear Valeria,

We attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of \$9.20 (and your client had 50,000 shares in the pre-merger OXUS) please can you explain the value of his stockholding with reference to the attached documents and any others in your clients possession – and why he ascribed a nil value to his equity in the ES2.

We look forward to hearing from you.

Kind regards,

Faye

Faye Simpson | Associate
faye.simpson@afpbloom.com
T: 020 7409 1222 | **M:** 07425 854346
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Sunday, May 5, 2024 at 18:29:00 British Summer Time

Subject: Draft email for review
Date: Thursday, February 29, 2024 at 4:51:36 PM Greenwich Mean Time
From: Faye Simpson
To: Nadia
CC: Zoë Bloom
Attachments: image001.png, image002.png, image003.png, image004.png, image005.png, image006.png, image007.png, SEC_FORM_424(B)_PROSPECTUS_16JAN2024.pdf, SEC FILINGS.pdf

Dear Valeria,

We attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of \$9.20 (and your client had 50,000 shares in the pre-merger OXUS) please can you explain the value of his stockholding with reference to the attached documents and any others in your clients possession – and why he ascribed a nil value to his equity in the ES2.

We look forward to hearing from you.

Kind regards,

Faye

Faye Simpson | Associate

faye.simpson@afpbloom.com

T: 020 7409 1222 | **M:** 07425 854346

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[Evolve:b9f54239-f512-4fd1-8aa8-a780f6a5c9b0]

4th March 2024

Sunday, May 5, 2024 at 23:06:39 British Summer Time

Subject: RE: Zahmoul and Zahmoul
Date: Monday, March 4, 2024 at 12:46:24 PM Greenwich Mean Time
From: Faye Simpson
To: Valeria Gampl
CC: Zoë Bloom, Lucy Birch
Attachments: image001.png, image002.png, image003.png, image004.png, image005.png, image006.png, image007.png

Dear Valeria,

We would be grateful for a response to our email below.

Kind regards,

Faye

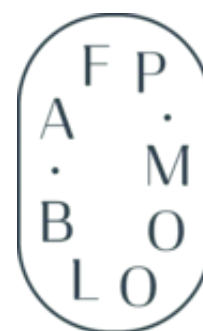
Faye Simpson | Associate

faye.simpson@afpbloom.com

T: 020 7409 1222 | **M:** 07425 854346

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From: Faye Simpson

Sent: Thursday, February 29, 2024 5:07 PM

To: Valeria Gampl <Valeria.Gampl@stowefamilylaw.co.uk>

Cc: Zoë Bloom <Zoe.Bloom@afpbloom.com>; Lucy Birch <Lucy.Birch@stowefamilylaw.co.uk>

Subject: Zahmoul and Zahmoul

Dear Valeria,

We attach documents in relation to the SPAC merger between Oxus and Borealis which closed on 7th February 2024. The post-merger stock has been trading on the NASDAQ since the 8th February 2024. In his ES2 dated 19.02.2024 he ascribes a nil value to his OXUS equity. Given that the merged entity (ticker BRLS) is trading at a stock price of \$9.20 (and your client had 50,000 shares in the pre-merger OXUS) please can you explain the value of his stockholding with reference to the attached documents and any others in your client's possession – and why he ascribed a nil value to his equity in the ES2.

We look forward to hearing from you.

Kind regards,

Faye

Faye Simpson | Associate

faye.simpson@afpbloom.com

T: 020 7409 1222 | **M:** 07425 854346

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[Evolve:9ae956e8-3883-4b8a-b1ab-d8f490c543c2]

Timeline Kazakhstan Kleptocracy: How a Cozy Network of 156 Individuals Control the Nation's Natural Resources and Wealth.

Date	Description	Source document	Sector	Region
1999	Kenes Rakishev marries Assele Tamagambetov , daughter of Kazakh President Nurbayev 's close associate Imangali Tasmagambetov .			
Early 2000's	Rakishev establishes relationship with Chechen Warlord Ramzan Kadyrov .			
March to May 2000	Rakishev enters Bank Turanalem Ojsc as Specialist in The Clientele Department		Financial Services	Kazakhstan
August to December 2000	Rakishev moves to KazTransGas Cjsc as Manager of The Department of Marketing and Commerce		Oil & Gas	Kazakhstan
December 2000 - March 2002	Rakishev joins Intergas Central Asia Cjsc as Chief Specialist of the Contract's Department and Director of The Marketing Department		Oil & Gas	Kazakhstan
2002-2003	Imangali Tasmagambetov , father-in-law of Kenes Rakeshev, serves as Prime Minister of Kazakhstan			
April to December 2002	Rakishev joins KazTransGas Almaty Cjsc as Director of the Department For International Economic Relations		Oil & Gas	Kazakhstan
January to October 2003	Rakishev appointed to Trade House KazMunayGas Jsc as First Deputy General Director Of Exports		Oil & Gas	Kazakhstan
2004-2008	Imangali Tasmagambetov in office of Mayor of Almaty.			
2004	Rakishev appointed as Vice-President of «KazTransGaz» and CEO of Kazakhstan petrochemical industry .		Oil & Gas	Kazakhstan
November 2006	Rakishev became the largest shareholder and chairman of the SAT & Company (KASE: SATC) , which controlled more than 30 companies across different industrial sectors, such as mining, metallurgy, construction, mechanical engineering, oil trading, minerals exploration and recycling . Sat & Company rapidly increased its international presence through acquisition of new assets in China and Turkey . By 2013, Sat & Company was worth \$500 million .		Conglomerate	International
2008	Rakishev shoots to prominence as the go-between for Timur Kulibayev, Nazarbayev's son-in-law , and the British Royal Family when he bought an estate in England from Prince Andrew .			
2008-2014	Imangali Tasmagambetov serves as Mayor of Astana			
20-Jan-2009	Obama - Biden administration begins.			
2012	Rakishev joins Forbes magazine's top-15 list of Kazakhstan's 'most influential' tycoons, with estimated assets of some \$332 million.			
April 2012	Rakishev receives email from Hunter Biden's business partner Devon Archer , a lawyer and former Abercrombie & Fitch model. 'Can you have dinner with me, Hunter Biden, Alex [Forbes Kerry] and team on Wednesday next week in NYC? I want to let Hunter know when he should come up from DC to see you on Wednesday. Looking forward to seeing you!'			
July 2012	Hunter Biden travels to Astana to discuss business opportunities with Rakishev . 'I wanted to check in with you and see what our next steps are to follow up on our visit to Kazakhstan.'			
August 2012	Rakishev invests \$5 Million in TriPlay , a U.S./Israeli-based developer of cloud services that lets people consume music and other media across different devices, to take its technology into new and emerging markets in Asia and Europe.		Digital/Tech	U.S./Israel
September 2012	Rakishev purchases Net Elements International for \$32 Million via private investment vehicles Mark Global Corporation (BVI) and Novatis Holdings PTE (Singapore) and makes a \$20 Million investment in Mobli , a social media platform for sharing photos and videos.		Shell companies & Social Media	Singapore (Novatis)
October 2012	Hunter Biden helps Rakishev hold discussions about investing in Prospect Global Resources , a mining firm based in eastern Arizona. The investment does not proceed.		Mining	U.S.A.
November 2012	Rakishev founds private equity investment group Sigulariteam with Moshe Hogeg targeting early-stage investments in technology companies and makes a \$1 million seed investment in Rall.ee		VC / Tech.	Israel
December 2012	Rakishev makes a \$13 million investment in Fast Lane Ventures .			
2013	Rakishev founds Sirin Labs with Moshe Hogeg .			Israel
April 2013	Rakishev and Hogeg establish a \$100 million fund For AI And robotics chaired by Israel's Ex-PM Ehud Olmert .		AI & Robotics Fund	Israel
October 2013	Hunter Biden's partner Devon Archer arranged a conference call between Rakishev and Alex Forbes Kerry (John Kerry's daughter) , to discuss investment opportunities in her film production firm . Immediately after the call that December, Rakishev emailed with happy news: 'Thank you my brother from another mother! Thanks you very much my brother! We decided to invest 1 mln [million] ! Give them my email! Raskishev and Forbes Kerry finalize the deal in January 2014.		Film Production	U.S.A.
December 2013	Rakishev makes a \$3.7 million investment in IQcard.ru .			Russia
2013-2018	Rakishev serves as Director of Central Asia Metals PLC		Metals	
5-Feb-2014	Hunter Biden met Kazakhstani oligarch Kenes Rakishev at the Hay Adams Hotel in Washington, D.C. In email correspondences with Devon Archer surrounding the meeting, Rakishev requested Secretary of State John Kerry visit Kazakhstan. Archer replied, "If we have some business started as planned I will ensure its planned soonest." Rakishev was a director at Kazakhstan's state-owned oil company KazMunayGas . Rakishev maintained close ties to Karim Massimov , who became prime minister on April 2, 2014.			
6-Feb-2014	KazKommerstsBank and Kenes Rakishev reached a final agreement to acquire 46.5% of the shares of JSC BTA Bank each from JSC National Welfare Fund Samruk-Kazyna and on 14 February 2014, Rakishev became the new chairman of BTA's board of directors .		Financial Services	Kazakhstan

Date	Description	Source document	Sector	Region
14-Feb-2014	Russian oligarch Yelena Baturina – the wealthiest woman in Russia and then married to the former mayor of Moscow—wired the Rosemont Seneca Thornton bank account \$3.5 million . Rosemont Seneca Thornton's beneficiary was Rosemont Seneca Partners , of which Hunter Biden was the chairman. On March 11, 2014, the wire was split up: \$750,000 was transferred to Devon Archer , and the remainder was sent to Rosemont Seneca Bohai , a company Devon Archer and Hunter Biden split equally.			
11-Mar-2014	Rosemont Seneca Thornton transferred \$2,752,711 to a Rosemont Seneca Bohai bank account. Also on March 11, 2014, \$750,000 of the original wire from Baturina was sent to Devon Archer from Rosemont Seneca Thornton. Rosemont Seneca Bohai was an entity used by both Hunter Biden and Devon Archer . In his testimony to the Committee, Archer confirmed that he and Hunter Biden were 50-50 owners in Rosemont Seneca Bohai . Rosemont Seneca Bohai was opened in Delaware on February 13, 2014 —the day before the \$3.5 million wire from Yelena Baturina. The bank records can be found in the third house memo.	https://app.box.com/s/qw2rtpe7nexcnie7p8zcm70afjui59r		
2-Apr-2014	Karim Massimov became Prime Minister of Kazakhstan .			
Spring 2014	In the spring of 2014, Yelena Baturina joined Hunter Biden and Devon Archer to share a meal with then- Vice President Biden at a restaurant in Washington, D.C. The total amount from Russia to the Biden family and their associates is \$3.5 million .	https://app.box.com/s/qvrzajcqot94dnsk6pdxzuxs1803kjiw		
14-Apr-2014	On February 14, 2014, a Russian oligarch and Russia's richest woman, Yelena Baturina , wired a Rosemont Seneca entity \$3.5 million . On March 11, 2014, the wire was split up: \$750,000 was transferred to Devon Archer , and the remainder was sent to Rosemont Seneca Bohai , a company Devon Archer and Hunter Biden split equally. In spring of 2014, Yelena Baturina joined Hunter Biden and Devon Archer to share a meal with then- Vice President Biden at a restaurant in Washington, D.C. The total amount from Russia to the Biden family and their associates is \$3.5 million .			
22-Apr-2014	On April 22, 2014, Kenes Rakishev used his Singaporean entity, Novatus Holdings , to wire one of Hunter Biden's Rosemont Seneca entities \$142,300 through his Latvian company . The very next day—April 23, 2014—the Rosemont Seneca entity transferred the exact same amount of money to a car dealership for a car for Hunter Biden . Hunter Biden and Devon Archer would represent Burisma in Kazakhstan in May/June of 2014 as the company attempted to broker a three-way deal among Burisma , the Kazakhstan government , and a Chinese state-owned energy company .	https://oversight.house.gov/wp-content/uploads/2023/08/Screenshot-2023-08-14-at-4-32-37-PM.png	Energy	
23-Apr-2014	The Rosemont entity wires \$142,300 to a car dealership in New Jersey for a new sports car for Hunter Biden .	https://app.box.com/s/0oou4sfhxc8a2e93mvlk5u75izq26nwp		
21-May-2014	Burisma announces Hunter Biden joined its board of directors.			
22-Dec-2014	Kenes Rakishev's Kazakhstani oil company and Burisma join with a CCP-linked company and announce a transnational financial arrangement.		Oil & Gas	International
2014	In 2014, Rakishev joined the board of directors of JSC National Company "Kazakhstan Engineering" , a large holding combining 27 enterprises of the defensive industry and munitions factories of the Ministry of Defense of the Republic of Kazakhstan . On 30 January 2015, he left the board.		Defense	Kazakhstan
2014-2016	Imangali Tasmagambetov was Minister Defense of Kazakhstan			
16-Apr-2015	On April 16, 2015, Vice President Joe Biden attended a dinner with Karim Massimov , Marc Holtzman , then chairman of Kazakhstan's largest bank, Kazkommertsbank , Vadym Pozharsky , Hunter Biden , Devon Archer , and others at Café Milano in Washington, D.C. Devon Archer provided this information during the transcribed interview. In his deposition, Devon stated that Marc Holtzman was "lobbying for Karim Massimov ", Prime Minister of Kazakhstan , and that he was "good friends" with Massimov .	https://app.box.com/s/qvrzajcqot94dnsk6pdxzuxs1803kjiw		
December 2015	Construction at the Kazakh armored vehicle plant began in December 2015 and, shortly after, Rakishev vacated his seat on the Kazakhstan Engineering board to allow his father-in-law, Imangali Tasmagambetov , former Kazakh Prime Minister, to take over.		Defense / KAMAZ partner	Kazakhstan
2015	Rakishev bought Sedmoi Kanal (Channel Seven), a Kazakhstan national TV channel .		Media	Kazakhstan
20-Jan-2017	Obama-Biden administration ends			
2016-2017	Imangali Tasmagambetov was Deputy Prime Minister of Kazakhstan .			
2017-2019	Imangali Tasmagambetov was the Kazakh Ambassador to Russia .			
December 2017	Rakishev's Sirin Labs becomes the 4th most successful ICO following launch of its utility token . Funds are designated for the development of its ultra secure, blockchain based phone with a built in cold storage wallet .		Crypto & Blockchain Tech.	Kazakhstan
2018	Rakishev acquired a 22% stake in the London-listed gold miner Petropavlovsk PLC . Rakishev sold the stake in Petropavlovsk a year later to Roman Trotsenko		Gold miner (public)	U.K.
13-Feb-2018	The U.S. Department of the Treasury's Financial Crimes Enforcement Network (FinCEN) today issued a finding and notice of proposed rulemaking (NPRM), pursuant to Section 311 of the USA PATRIOT Act , seeking to prohibit the opening or maintaining of a correspondent account in the United States for, or on behalf of, ABLV Bank . FinCEN is proposing this action based on its finding set out in the NPRM that ABLV is a foreign bank of primary money laundering concern . ABLV is the Latvian bank Rakishev used to send \$142,300 to Hunter Biden in April 2014.	https://app.box.com/s/3srs0hhd9wy7wat3wilqirzql5oye0		
2021 to present	In 2021, Tasmagambetov became a member of the board of directors of KAMAZ Publicly Traded Company (KAMAZ) - Russia's largest truck manufacturer , one of the world's top 20 heavy duty truck producers, and a supplier of armored vehicles to Russia's military. KAMAZ has been a partner of KPE since 2015 . Sanctioned by the US and EU .		Defense / KPE Partner	Russia

Date	Description	Source document	Sector	Region
November 2021	Rakishev's partner Moshe Hogeg arrested for allegations relating to massive cryptocurrency fraud scheme.		Crypto	Israel
2-Jan-2022	Civil unrest and protests in Kazakhstan. Russia sends "Peacekeeping" troops.			
February 2022	Kazakhstan Paramount Engineering announced launch of production of Barys 8x8 armored vehicles as part of Kazakhstan's strategy to increase military production and upgrade Armed Forces		Defense	Kazakhstan
24-Feb-2022	Russia invades Ukraine.			
25-Feb-2022	The U.S. and its allies impose sanctions to restrict Russia's access to capital markets , procurement channels to import advanced technologies and its ability to produce and stockpile military equipment .			
April 2022	Sightings of the Arlan Military Vehicle in Mariupol, Ukraine . Rakishev's closeness to Chechen leader Ramzan Kadyrov have sparked suggestions that the oligarch played a role in supplying the armored vehicle. This could make Rakishev a target for US and EU sanctions for aiding Russia's invading troops. Rakishev and Kadyrov enjoy a longstanding friendship and have been photographed dressed in Chechen military gear and embracing one another. Kadyrov's notoriety has grown in recent months after he pledged his forces' support to Russian President Vladimir Putin's invasion of Ukraine .			
1-Jun-2022	The respondent is appointed to the Board of Directors of Oxus Acquisition Corp.		SPAC	U.S.A.
1 Jan 2023 to present	Imangali Tasmagambetov is the current Secretary-General of the Collective Security Treaty Organisation (CSTO) , a military alliance consisting of Armenia, Belarus, Kazakhstan, Kyrgyzstan, Russia, and Tajikistan			
24-Apr-2023	Former Kazakhstan Prime Minister Karim Massimov , who attended dinner with then-Vice President Biden in 2015, was sentenced to 18 years in prison for treason, abuse of power, and attempting a coup.			
9-Aug-2023	Chairman Comer releases a third bank records memorandum detailing how the Bidens and their business associates received millions from oligarchs in Russia, Kazakhstan, and Ukraine during Joe Biden's vice presidency. After Hunter Biden received millions of dollars in payments, then- Vice President Joe Biden dined with his son's foreign associates in Washington, D.C.	https://oversight.house.gov/wp-content/uploads/2023/08/Third-Bank-Records-Memorandum_Redacted.pdf		

**Medical Reports,
Hospitalisations,
Autism & PTSD Diagnoses**



Cottonwood Psychiatric Evaluation

Patient Name: Zahmoul , Nadia

Creator Staff Name: Turner, Deborah

Date Created: 04/02/2013

Agency Admit Date: 03/31/2013

Identifying Information:

Nadia is a 43-year-old female currently living in London but born in Morocco and has had time living in New York City as well. She is married and has two children, both girls, ages 7 and 5.

Referant:

Informants:

Chief Complaint:

Cocaine dependence.

History of Present Illness:

The patient states that last year during a very stressful time when she was moving "one more time" and her mother-in-law had cancer and she was caring for her, she states also stressors included relationship with husband and nanny, as well as poor sleep and her husband traveling quite a bit; she states that they were moving and her husband went away to Russia for business, she states that she began using cocaine. In the beginning she felt that this was helpful for her as she felt that it allowed access to trust herself and eliminate her self-doubt. She states prior to that she had "no access to what is strong inside". She states there was no more second-guessing, and she states she moved mountains in six months when she used cocaine, and she states that early on it did not control her but rather it was very helpful. She states that that did turn around and it began controlling her, which is why she has come into treatment to stop the use of cocaine. She states that she has had the help, through this time, of Professor Libby, who diagnosed her with severe depression and she was begun on Cymbalta, titrated up to 120 mg. She states that since that time she has had no more darkness. She states that she is a happy person, and she states "I've been controlling my moods ever since unless I'm expecting my period". She sees Professor Libby every Monday at 1 p.m. for the last year and feels this has been a very helpful relationship with her. She also has been seeing a psychoanalyst once per week, as well as a psychiatrist who specializes in addiction medicine. She feels that each of these relationships has been very helpful for her, however, at this time she feels the need to come inpatient for additional help and support in stopping use of cocaine.

Chemical Dependency History:

The patient states that she has used cigarettes, caffeine, some champagne, but not to excess; and most recently cocaine.

Past Psychiatric History:

As stated above, the patient does have several providers that she works with in London who she has developed strong relationships with and wishes to continue with them. Currently is on Cymbalta 120 mg. She states that the last time she was on 120 mg she did have some high energy and she was brought down to 90 mg, and very recently Professor Libby brought her dosage up to 120 again to combat increase in depressive symptoms.

Developmental History:

The patient was born in Casablanca, Morocco. She describes her mother as very manipulative and verbally abusive. She states that daily her brother was whipped with a horse whip. She states that she lived in fear constantly. She began drinking coffee at a young age and she would stay up until 3 or 4 a.m, and that was the only time of the day where she felt safe. She states she became #1 academically, and this became her identity. She states she had no access to her father and that her mother was in complete control. She states she started using cigarettes at 18. She went to London for a degree in Economics, and even there, parents were very controlling. They insisted that she be in

4110 W. Sweetwater Drive | Tucson, Arizona 85745 | 800-877-4520 | 520-743-0411 | Fax 520-743-7991

her room by 7 p.m. and that they would call her every day to ensure this, and that if she was not, she would have to go back to Morocco. She complied with these rules and went and completed her degree. After completion of the degree, she was offered a job for which she was very excited. Her parents invited her back to Morocco for a visit prior to starting her job. She went back. She states her father asked her for her visa and her passport, which she gave him; he then locked them up in a safe and told her she was never going to leave Morocco again, and not leave their house until she was married. She then describes being kept in that home with constant verbal abuse. Throughout this time she states that she lived in a room that had no windows and no door: she called it "the pool room". When she lived in Morocco at 22 years old, she did get a job for Citibank - the American Bank, and she worked with the Moroccan government at that time on the federal budget. Her parents remained focused on her marriage, and she states "treated me like a dog". She states it was shameful to not be married. She repeated her pattern of being up until 4 or 5 a.m. and then go to work. She states that she was miserable. She went to New York on a training for her job, and she met someone there who she states she knew would be her husband. She states he was perfect for her because he was a type A and a go-getter and would not really ever get to know her. She states this was the only type of relationship she felt she could do, they married, and she states that that lack of intimacy has come back to be difficult for her in that she describes herself as feeling very lonely in her marriage. She worked for Lehman Brothers for 10 years. She was present for the 9-11 destruction. She states that **her marital relationship had poor communication** and that they made millions, but they fought a lot and were very lonely. She states that her in-laws' relationship with her husband was difficult. She describes her mother-in-law as loving and the first maternal relationship she has had. Her father-in-law was described as a narcissistic personality with no empathy and _____ demanding. She describes this as having a significant impact on her husband, who she feels "had his wings clipped" and had no ability to plan or be a part of a relationship. She states that they moved from New York to London, and she states that she did not want to move again and wanted to set some roots, and **her husband has been very negative towards her** and **has often been verbally abusive as well**. Her mother-in-law did have cancer and she did care for her, and she recently passed away.

Allergies:

See History and Physical.

Family History:

Unclear. Patient denies that her parents used any alcohol or drugs, however, there was significant abuse throughout the home. Family psychiatric history is largely unknown.

Social History:

Patient lives in London with her husband and two children. She has had a nanny over the years, which she has had what sounds like a strained relationship with.

Medical History+ Allergies:

See History and Physical.

Mental Status Exam

General Observations:

Patient is alert and oriented, very intense demeanor. Seems psychomotor agitated.

Mood and Affect:

Mood is variable throughout interview. Affect is quite intense, crying at times, to being very calm at times, quite labile

Thought Content and Processes:

Thought processes are structured and logical at times, and tangential at others. No auditory hallucinations. No current suicidal or homicidal ideation, intention or plan.

Sensorium and Mental Capacity:

Insight seems to be fair. Judgment is fair as patient is currently seeking treatment for cocaine dependence.

Provisional DSM-IV Diagnoses: (This facility considers all Axis I diagnoses to be co-occurring)

<u>Axis:</u> Axis I	<u>Axis Code:</u> 309.81
<u>Axis Description</u> Posttraumatic Stress Disorder.	
<u>Axis:</u> Axis I	<u>Axis Code:</u> 304.20
<u>Axis Description</u> Cocaine Dependence.	
<u>Axis:</u> Axis II	<u>Axis Code:</u> 799.9
<u>Axis Description</u> Diagnosis Deferred on Axis II.	
<u>Axis:</u> Axis III	<u>Axis Code:</u> 000.0
<u>Axis Description</u> See H&P.	
<u>Axis:</u> Axis V	<u>Axis Code:</u>
<u>Axis Description</u> 40.	

Assessment:

Nadia is a 43-year-old female who appears approximately her stated age. Reports no social or familial supports. At home, she does describe caring for her children a great deal. She is very bright and accomplished. She does have significant traumatic history, and has experienced significant symptoms of hypervigilance and high startle response. She has had a great deal of difficulty sleeping throughout her life, and she has had detachment and restricted affect through most of her life as well. The patient did begin using cocaine recently, which in the beginning she felt was helpful for her in achieving a certain amount of self-confidence and accessing a part of herself that she did not know existed. She states that it did take control, however, and now she needs help in eliminating that from her life.

Recommendations and Initial Treatment Plan:

1. Admit to adult unit as patient is at severe risk of relapse if discharged at this time
2. Patient to begin work with therapist, group, individual, equine, consider EMDR, consider acupuncture.
3. Patient will be transferring care to Dr. Onate as she feels more comfortable with males.
4. Call in to Professor Libby in London to collaborate on the treatment plan.

Electronically authenticated by Deborah Turner M.D. on April 3, 2013 10:03 am



Cottonwood Interpretive Summary

Patient Name: Zahmoul , Nadia

Creator Staff Name: Lind, Sarah F

Date Created: 04/04/2013

Introduction:

Nadia is a 43 y/o married woman from London. Her provisional diagnoses according to the psychiatric evaluation at the time of admission are **PTSD** and **Cocaine dependence**.

Stage of change:

Nadia presents in treatment of her own volition and appears to be motivated for treatment, change and personal growth. She comes to treatment after experiencing a severe downward spiral, which appeared to be very debilitating for her. She appears to be in the contemplation stage of change as evidenced by her good insight into her substance use and past behaviors. Additionally, Nadia suffers from confusion, sadness and grief around her family of origin issues. Most recently, Nadia experienced an increase in her substance use, primarily cocaine. She is well informed about the recovery process and possesses the potential for increased insight and self-awareness into her chemical dependency, **PTSD** and **tendency toward self-destruction**. Nonetheless, she clearly appears to have become debilitated within her life by a personal downward spiral and does not function well within her life currently.

Integration of Evaluation/Clinical Impressions:

Nadia presents in treatment to address her impulsivity, depression/anxiety, **trauma**, excessive substance use, boundaries, and **unhealthy coping mechanisms**. The patient seems friendly, adaptable, motivated, pleasant, bright and positive while also appearing open to treatment and the recovery process. Nadia's apparent strengths are intelligence, creativity, and eloquence. She appears to be forthcoming and open to recovery, with a need for sobriety, security, clarification, honesty, direction, open communication, healthy interests, solid coping skills and self-esteem/self-worth within her life. Additionally, Nadia seems to need **self-soothing skills, boundaries, solid coping skills, trauma resolution**, to remain free from mood altering substances, a strong support system, and a solid relapse prevention plan. She may also need deeper personal introspection to develop ownership of feelings/responsibility, personal honesty, depression resolution and increased self-worth. Her abilities include integrating well into groups, communication, and acquisition of insight.

Barriers to Treatment:

In conflict with her strengths, Nadia possesses a **remarkable potential for self-destruction**, while also appearing to suffer from **relationship/boundary issues and possible codependent traits**. Due to feelings of **hopelessness, pain and despair**, the patient often engages in **maladaptive coping mechanisms**, including substance use. Thematic during Nadia's life appears to be depression, anxiety, poor coping skills, self-destructive behavior, **low self-esteem, low self-worth**, family issues and a **history of trauma**. Due to her past dysfunction, Nadia harbors pain and confusion about her life, while also feeling a lack of security and safety. **In addition, the patient struggles with interpersonal relationships, especially those with her husband**. She attempts to forge direction for herself **without the benefit of understandable course or clarity**. These issues may present a barrier for Nadia in treatment, but may also present a learning opportunity to explore how these issues contribute to her addictive/codependent behaviors and PTSD.

Treatment Plan Interventions:

The patient will benefit from groups which allow her to focus on emotions and gain deeper insight into her thoughts and behaviors as a whole. She may also benefit from didactical groups which explore the addictive process and substance abuse. She might also positively gain from groups that address family dynamics and relationship issues. Nadia could emotionally profit from attending groups which incorporate physical movement and nature, such as kickboxing, challenge course, Rocks and Ropes, and Equine Assisted Psychotherapy. XXX will be referred to relapse prevention groups. She will be also referred to participate in behavioral health process groups, recreational therapy, and self-exploration groups. The patient may also benefit from DBT group, primarily mindfulness, self-soothing, and distress tolerance groups. The patient will also be referred to EMDR and trauma groups. She states a preference of mind-body modalities, such as yoga, in regards to her treatment.

Electronically authenticated by Sarah Lind, MA LAC on April 4, 2013 2:01 pm

Our ref: n1c/ln89320/0001/hab
Your ref:

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f: +44 20 7597 6543
DX 160 London/Chancery Lane
www.withersworldwide.com

05 July 2022

By email

Dear [Dr Bird]

Nadia Zahmoul and Karim Nouredine Zahmoul
Case Number: BV20D01752

We refer to earlier correspondence and now confirm that you are to be instructed on a sole expert basis.

By way of reminder, we act for Nadia Zahmoul who is the applicant wife in connection with her divorce proceedings and Caroline Park and Joseph Mulhern of Hughes Fowler Carruthers ('HFC'), Academy Court, 94 Chancery Lane, London, WC2A 1DT act for Karim Nouredine Zahmoul, who is the respondent husband.

Please accept this letter as a letter of instruction from Withers LLP on behalf of the applicant wife to ask you to provide:

1. a psychological assessment of Mrs Zahmoul, in particular commenting on whether she has features of having post-traumatic stress disorder or any other mental health condition;
2. the impact of any disorder or condition on Mrs Zahmoul's behaviour and how any reported findings should influence, if at all, the structure of any financial award made in the divorce proceedings between the parties;
3. Mrs Zahmoul's ability to engage in the court proceedings, to manage multifaceted issues that arise and deadlines imposed by the court, and what, if any, accommodation should be made in the procedural structure of the case.

As your report is required for court proceedings (which you may be required to attend) it will be governed by Part 25 of the Family Procedure Rules 2010 (the '**FPR**') and the related Practice Directions, to which we respectfully draw your attention. Consequently, your overriding duty in preparing your report is to the court.

We enclose the links to Practice Direction 25B of the Family Procedure Rules 2010 (PD25B) – The Duties of an Expert, the Expert's Report and Arrangements for an Expert to Attend Court and a copy of Practice Direction 25D (PD25D) – Financial Remedy Proceedings and Other Family Proceedings (Except Children

direct: +44 20 7597 6328
e-mail: nadia.campbell-brunton@withersworldwide.com

Withers LLP is a limited liability partnership registered in England and Wales with registered number OC301149 and is authorised and regulated by the Solicitors Regulation Authority with registered number 352314. A full list of members' names and professional qualifications may be inspected at our registered office, 20 Old Bailey, London EC4M 7AN.

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Withersworldwide
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Hong Kong Singapore Tokyo British Virgin Islands
New York Boston Greenwich New Haven Texas
San Francisco Los Angeles Rancho Santa Fe San Diego

5 July 2022
Dr Bird

Proceedings) – The Use of Single Joint Experts and the Process Leading to Expert Evidence Being Put Before The Court.

Mrs Zahmoul gives her permission for you to view her complete medical records.

Your report

The report should be addressed to the Family Court sitting at Bristol. The case number set out at the beginning of this letter should be quoted on the report and a copy sent, please, to this firm. Guidelines for the contents of the Report are set out in the Practice Directions enclosed above and in particular we draw your attention to Practice Direction 25B and paragraphs 3.1, 4.1 and 9.1 (overriding duty, particular duties and content of the expert's report). Please consult these paragraphs for instructions on how your opinions and conclusions should be expressed. You will see that as an expert you have the right to ask the court for directions to assist you in carrying out your functions. Your duty is to help the court on matters within your own expertise and this duty is paramount and overrides any obligation to the person instructing you or by whom you are paid. Your report should contain a statement confirming that you understand your duty to the court and have complied and will continue to comply with that duty.

Timing:

- 1.1 Please note that you report will be required as soon as possible.
- 1.2 The Final Hearing has been listed for 14 – 21 November 2022 and it is possible (albeit unlikely) that you will be required to attend Court. Please confirm whether you are available on the dates specified.
- 1.3 Your firm's fees will be met by the applicant wife. Therefore, please send your invoice to Withers LLP on behalf of Nadia Zahmoul.

Before proceeding with this matter, kindly provide us with an up to date estimate of your likely charges for producing the above report, for approval. Please confirm your charge for attending the Final Hearing, in the unlikely event that this is necessary. Finally please also confirm that there remains no conflict of interest and that all matters relating to these instructions will remain confidential at all times.

We confirm that a copy of this letter will be filed at court and going forward we will provide you with copies of any further order or document filed with the court in these proceedings which affect your report, within two days of receipt by us.

We look forward to hearing from you.

Yours faithfully

.....
Withers LLP

Tel: 020 7224 3500
Fax: 020 7224 4030

9 Upper Wimpole Street
London W1G 6LJ

Diana Parker
Withers LLP
20 Old Bailey
London
EC4M 7AN
Diana.Parker@withersworldwide.com

12th July 2022

Dear Ms Parker,

Nadia Zahmoul – 27.04.1969
Hill Villa, Daisybank Road, Cheltenham, GL53 9QQ

I write in some urgency as I am extremely concerned about the physical and mental welfare of my patient Nadia Zahmoul.

I understand that you are acting for her in divorce proceedings and these proceedings have been going on for some time.

I also understand that as part of these proceedings there is a Court order which Mrs Zahmoul has been unable to sign given the allegations made around the matter, which she believes are untrue. In circumstances where Mrs Zahmoul has been struggling with significant personal attacks on her character since April 2021 and emotional abuse throughout her marriage, the Court Order has unfortunately triggered major symptoms of PTSD.

I saw Mrs Zahmoul in my clinic on 6 July 2022 and I am currently treating her for PTSD in order to help her with the symptoms.

Records and reports from 2011 through 2013 confirm that Mr Zahmoul was suffering from abuse and coercive control in her marriage which led her on a downward spiral during that period when I was treating her. Mrs Zahmoul was diagnosed with PTSD in April 2013 at Cottonwoods in Arizona, a centre for Mental Health and Substance Use Disorder.

Tel: 020 7224 3500

Fax: 020 7224 4030

9 Upper Wimpole Street
London W1G 6LJ

She was treated with Seroquel which I continued to prescribe for her in London when she returned.

Mrs Zahmoul first experienced trauma in her family of origins during her childhood. The reports and diagnosis from Cottonwoods Centre identify her marriage as a source of trauma and she has over the years described a strained relationship with Mr Zahmoul, in which abuse and control were predominant. It seems clear that the hostility of the divorce proceedings has had a major impact on Mrs Zahmoul's mental health and her symptoms of PTSD are now apparent and interfering with her normal functioning and her everyday life.

Her present symptoms are stuttering, intermittent mutism and freezing, hypervigilance, extreme anxiety, inability to sleep and eat properly, inability to self-modulate emotional control and feelings of hopelessness and powerlessness.

These are symptoms of major psychiatric significance and carry with them a risk to both her physical and mental health.

It is clear to me that Mrs Zahmoul should not sign any documents that are perceived as a threat to her well-being.

In my professional capacity, I would wish to stand by her in this decision.

Signed



Gerald Libby FRCP FRCPsych

Dr Stuart Nelson
Dr Thomas Morgan
Dr Rachael Coker
Dr Daniel Fox
Dr Michael Williams
Dr Sarah Macrow



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Overton Park Road
Cheltenham
GL50 38P
Tel - 01242 580511
overton.opsdirect@nhs.net

Practice Manager. Mr Mark Thatcher

www.overtonparksurgery.com

Date: 28th June 2024

To Whom it May Concern

Dear Sir/Madam

Re: Mrs Nadia Zahmoul, 3 Montpellier Parade, Cheltenham, GL50 1UA, DOB: 27 Apr 1969

I can confirm that Nadia Zamoul is experiencing extreme anxiety due to the stress of going through a tricky divorce. She is unable to cope with activities of normal daily living. She is struggling to cope without legal representation and is experiencing extreme financial difficulties.

I would be grateful for your support in this matter.

Yours faithfully,

A handwritten signature in dark ink, appearing to be 'C Copps', with a long horizontal stroke extending to the left.

Dr C Copps
Overton Park Surgery

PROFESSOR GERALD LIBBY

E: office@geraldlibby.co.uk
T: 020 7224 3500

9 Upper Wimpole Street
London
W1G 6LJ

21st August 2024

To whom it may concern,

Nadia Zahmoul – 27.04.1969

I remain extremely concerned for the welfare of my patient Nadia Zahmoul who I have known and treated since 2011. She has capacity and so this is not the concern.

She has, I understand, grave financial hardship and this has meant a lack of home for her and her daughters and probably malnutrition as recent tests reveal anemia and auto immune Sjogren's syndrome.

Nadia must have legal representation but I understand financial difficulties impact this.

I understand participation measures that were in place for earlier hearings must now be in place again.

The impact of impending proceedings without representation and financial difficulties place Nadia under severe pressure and risk.

Signed



Professor Gerald Libby FRCP FRCPsych

COURTFIELD
PRIVATE PRACTICE

Dr Tim Ladbroke | Dr Jill Harling | Dr Laura Wood
Dr Ebba Khalil | Dr Clare Thompson | Dr Russell Ward | Dr Baldeep Syan | Dr Sophie Ladbroke
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14/09/2024

PRIVATE & CONFIDENTIAL

To Whom It May Concern

Dear Sir/Madam,

Re: Mrs Nadia Zahmoul* 27/04/1969 35 Queen's Gate Gardens London
SW7 5RR
Tel: 07913 328615 (Mobile) Email: nzahmoul@me.com

This 55 year old lady is a patient of our practice who has been diagnosed with Sjogrens Syndrome and new anaemia.

Due to financial constraints she has been unable to eat and drink and has no housing. She has a 19 year old child with special needs and a 17 year old minor and is responsible for them.

I am concerned that this patient has insufficient resources to meet her basic needs at this stage.

Subsequently, I will need to refer this case to Social Services to help this patient access basic ammenities and safeguard her and her children.

Yours faithfully,



Dr Clare Thompson
MBBS BSc nMRCGP DCH DRCOG LMCC

cc Mrs Nadia Zahmoul*
35 Queen's Gate Gardens
London



Dr Clare Thompson
 MBBS BSc nMRCGP DCH DRCOG LMCC
 Courtfield Private Practice
 73 Courtfield Gardens
 London SW5 0NL
 020 7373 3541
 GPEC 6154323

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22/10/2024

PRIVATE & CONFIDENTIAL

To Whom It May Concern

Dear Sir/Madam,

Re: Miss Lila Mae Zahmoul 31/05/2007 35 Queen's Gate Gardens London SW75RR

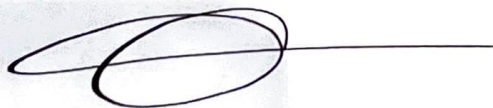
Tel: 07799 738038 (Mobile) Email: lilamz7575@gmail.com

This 17 year old girl is a patient of our practice who is a pupil at Cheltenham Ladies College and has attended with her mother today.

They have been homeless by her father and denied access to funds for basic needs and amenities.

I have seen and assessed this young girl today and they are known to social services in Gloucestershire and her mother has applied for homelessness status in Kensington and Chelsea.

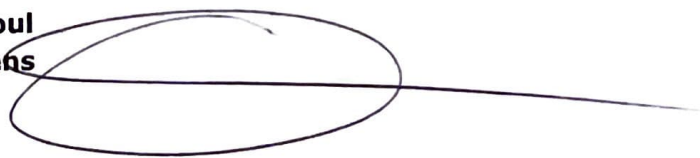
Yours faithfully,



Dr Clare Thompson
MBBS BSc nMRCGP DCH DRCOG LMCC

Dr E C Thompson
MBBS BSc nMRCGP DCH DRCOG LMCC
Courtfield Private Practice
73 Courtfield Gardens
London SW5 0NL
020 7373 3541
GMC: 6154323

cc Miss Lila Mae Zahmoul
35 Queen's Gate Gardens
London



BRUCE HAYSE, M.D.
P.O. BOX 1884
JACKSON HOLE, WYOMING 83001
OFFICE PHONE (307) 733-6700
FAX (307) 739-8890

December 1, 2023

Re: Zahmoul, Nadia (DOB: 4/27/69)

To Whom It May Concern:

Nadia Zahmoul needs to rest for two weeks, free from legal matters and duties, due to multiple physical and mental stressors resulting in major psychological fatigue and incapacity.

Sincerely,

A handwritten signature in black ink, appearing to be 'B Hayse', with a long horizontal flourish extending to the right.

Bruce Hayse, M.D.

Private and Confidential

South K&C Crisis and Home Treatment Team
South K&C Mental Health Unit
1 Nightingale Place
London
SW10 9NG
Tel: 0203 838 7899
Email: cnw-tr.southkandchtt@nhs.net

26.03.2025

Re: Mrs Nadia Zahmoul D.O.B: 28.04.1969
Date of Hearing: 31st March 2025

Dear Sir/Madam,

I am writing to inform the Court that Mrs Zahmoul is currently under the care of myself and my team, the South Kensington and Chelsea Crisis Resolution and Home Treatment Team (CRHTT), due to her experience of a mental health crisis. Mrs Zahmoul has been experiencing significant levels of agitation and poor sleep, which have been exacerbated by the stress of her current court case. Specifically, she reports great difficulty processing certain aspects of the proceedings, particularly regarding the evidence presented to her that she perceives as untrue.

In light of these challenges, we are providing her with intensive support to help her manage her difficulties, with the aim of ensuring she is well enough to attend the hearing scheduled for 31st March. We are committed to supporting her in this regard and hope to help her navigate this difficult time in a way that respects her mental health needs.

Nadia is due to meet with our psychologists soon in response to a query regarding whether she may exhibit symptoms of autism. This query is particularly pertinent as she has a first-degree relative with the same diagnosis. It is possible that these factors may influence how she perceives and processes the information provided during the court proceedings.

Given these circumstances, we would like to inquire if there is an advocacy service or any other appropriate support that could be made available to assist her in hearing and giving evidence at the hearing. Such support could ensure that she is able to fully engage with the proceedings in a manner that is fair and conducive to her well-being.

Thank you for your understanding and attention to this matter. Should you require any further information or clarification, please do not hesitate to contact me.

Yours faithfully,



Dr Leigh Poyser MBBS, MRCPsych
Consultant Psychiatrist

Central London Adult Autism Service (CLAAS)

LBHF | RBKC | Westminster

Westminster: 215 Lisson Grove, NW8 8LW

LBHF: 56 Bloemfontein Road, W12 7FG

RBKC: 1-9 St Marks Rd, W11 1RG

0208 102 3889

clcht.claas@nhs.net

www.clch.nhs.uk

Private and confidential

Mrs Nadia Zahmoul
35 Queens Gate Gardens,
London SW7 5RR
(sent via normal email with consent: nzahmoul@me.com)

Date: 20/06/2025

To Whom It May Concern,

Re: Autism Assessment Outcome for Mrs Nadia Zahmoul; Date of Birth: 27 Apr 1969

We are writing to confirm that Mrs Nadia Zahmoul has a confirmed diagnosis of **Autism Spectrum Condition (ASC)**, according to the Diagnostic and Statistical Manual for Mental Health Disorders, Fifth Edition (DSM-5), from our service, **Central London Adult Autism Service (CLAAS)**. The assessment was led by Dr Catherine Cheung (Principal Clinical Psychologist; HCPC Registration Number: PYL32865).

Diagnosis of Autism Spectrum Condition (ASC; DSM-5: 299.00; ICD-10 Code: F84.0)

Our assessment protocol is based on recommendations in The National Institute of Health and Care Excellence (NICE) Guidance for adult autism assessments, and our findings concluded that she does meet diagnostic criteria for ASC, according to the DSM-5.

This means that Nadia was born with this condition, but unfortunately, she was only formally diagnosed in our service in June 2025. A neurodevelopmental condition is pervasive and lifelong. The National Autistic Society (NAS) describes Autism as a “neurodevelopmental disability”. This means that **Nadia has always been and will continue to be autistic for the rest of her life.**

Being autistic significantly impacts Nadia’s ability to cope with the demands of day-to-day living. By definition of the diagnosis, she demonstrates **genuine, significant differences (or**

difficulties) in social communication and understanding and managing social relationships, which can give rise to **challenges in managing social interactions and situations** (e.g., difficulty expressing her needs or comprehending other people's information sharing, social isolation). Without the appropriate support for her autistic communication, Nadia struggles to effectively share information about herself, respond to others' questions and comments, and engage in interactive settings. This can also give rise to unintentional misunderstandings and place her at a disadvantage.

Please note that Nadia's communication and relationship challenges are autistic in nature. However, she can communicate using sophisticated vocabulary and grammar, which can generate the false impression that she is managing better than she is. Her challenge lies in the pragmatic use of language to effectively communicate and interact with others.

Additionally, Nadia continues to experience high levels of anxiety and distress daily, usually triggered by everyday problems of daily living and the challenges of managing social communication, which require continued support and reassurance.

Being autistic also significantly impacts Nadia's **information-processing style**: there is a **genuine need for familiarity, structure, and predictability**. This is both external and internal. Externally, unfamiliar people, places and settings can be significantly upsetting for Nadia; she often needs a lot longer to familiarise herself and settle down. Internally, Nadia has very **specific or defined ways of thinking or understanding information** and needs significantly more time and effort to process new information or engage with new approaches. Information that does not fit in directly with Nadia's way of thinking or understanding can again be extremely confusing and distressing for her.

Because of her disability and autistic needs, Nadia is entitled to support and reasonable adjustments. This will allow her to meaningfully participate in court and to ensure that her experiences and preferences are effectively and reliably presented during any legal proceedings. We will later provide a letter of clinical recommendation for accommodation and adjustments to Nadia's communication and information processing style.

Warmest Regards,

Electronically signed and delivered to avoid delays.

Dr Catherine Cheung
Principal Clinical Psychologist
Central London Adult Autism Service (CLAAS)

Sophia Iacovou
Assistant Psychologist

Cc: Nadia Zahmoul;

GP – Stanhope Mews West Surgery (stanhope.mews@nhs.net)

NHS No.: 705 199 5111
DoB: 27 Apr 1969

Central London Adult Autism Service (CLAAS)
LBHF | RBKC | Westminster

Westminster: 215 Lisson Grove, NW8 8LW

LBHF: 56 Bloemfontein Road, W12 7FG

RBKC: 1-9 St Marks Rd, W11 1RG

0208 102 3889

clcht.claas@nhs.net

www.clch.nhs.uk

NHS No.: 705 199 5111
DoB: 27 Apr 1969

Private & Confidential

Mrs Nadia Zahmoul

35 Queens Gate Gardens

London

SW7 5RR

(sent via email with consent: nzahmoul@me.com)

Date: 01/07/2025

Autism Assessment Report

Dear Nadia,

Thank you for meeting with us for the autism assessment on Thursday 15th May 2025. You were referred to the Central London Adult Autism Service (CLAAS) in April 2025 by Tamara Moon, Senior Assistant Psychologist at the South Kensington and Chelsea Home Treatment Team (HTT). It was hoped that an autism assessment could help you to understand your communication and processing needs and guide any adjustments for your ongoing divorce court case.

Our report focuses on key autism-related information and should be read in conjunction with existing reports to gain a comprehensive understanding of your background, life experiences and psychosocial and health needs.

Assessment Process

Our assessment was guided by the recommendations in the National Institute for Health and Care Excellence (NICE) Guidance for adult autism assessments and employed the following sources of information:

- Information provided by **Tamara Moon (Senior Assistant Psychologist)** on your current circumstances, difficulties and needs through your engagement with the **Home Treatment Team**. This was obtained through the completion of the referral form.
- An in-person clinical interview with **Dr Catherine Cheung (Principal Clinical Psychologist)** and **Sophia Iacovou (Assistant Psychologist)** on 15/05/2025. The

purpose of this meeting was to help gain a better understanding of your current circumstances and concerns.

- Behavioural observations guided by the **Autism Diagnostic Observational Schedule, 2nd Edition (ADOS-2)** was conducted in the same meeting. This allowed us to observe your communication style, social reciprocity, and behavioural patterns.
- Information regarding your social experiences, interests, thinking patterns, and sensory sensitivities was gathered through the **Ritvo Autism Asperger Diagnostic Scale - Revised (RAADS-R)** questionnaire. This form was self-completed by you using a virtual form.
- Ongoing collaboration with other professionals involved in your care, including a meeting with your referrer, **Tamara Moon (Senior Assistant Psychologist)** from the **South Kensington and Chelsea Home Treatment Team (HTT)**. These discussions contributed to a more comprehensive understanding of your circumstances and challenges within the broader context of your mental health.

Diagnostic Outcome

We concluded that **you are autistic**. We discussed this outcome with you on Thursday 12th June 2025 during a follow-up virtual meeting. You shared that this diagnosis came as a relief, and you hoped it may offer a helpful template to make sense of your experiences and difficulties. You described your long journey in self-understanding and finally recognising that you are not “deficient” but, rather, processing information differently.

Without appropriate support, autistic individuals can face significant challenges in their daily lives, which can affect their physical and emotional well-being. For example, you shared insightful reflections around how your deep and detail-oriented attention can be difficult and exhausting to manage at times.

Co-Occurring Diagnoses and Difficulties

A diagnosis of autism does not discount for the adverse life experiences impacting your sense of self and emotional well-being, which were also considered throughout your autism assessment process. You reported having **Post-Traumatic Stress Disorder (PTSD)** as a result of a series of adverse life events (e.g., witnessing 9/11 attacks in close proximity). Your self-reported experience of PTSD has been consistently recorded throughout your medical record, and is something that you have discussed with multiple healthcare professionals.

We also gathered information about how such experiences have impacted your current mental health and functioning through professional liaison with professionals involved in your care at the South Kensington and Chelsea HTT. You are thoughtful and recognised the interplay between your PTSD symptoms and autistic needs. Together, we discussed how some of your behaviours or responses might be coping strategies that you have developed over time to deal with challenging situations.

We also discussed how, during periods of heightened stress, your autistic needs can become more pronounced, making it harder to communicate effectively. For example, you may feel compelled to share thoughts or experiences that are most pressing for you, even if they seem

unrelated to the immediate context. This can also affect your ability to take on others' perspectives or advice, as your capacity for cognitive flexibility may be reduced in these moments, despite your motivation to engage meaningfully.

Services should hold in mind your neurodivergent traits, your mental health needs relating to adverse life experiences and your psychosocial context, and employ an Autism- and Trauma-Informed Approach when working with you.

Current Context and Ensuring Equity in Legal Proceedings

You are currently staying in a friend's flat in Kensington and managing your divorce proceedings without legal representation due to financial constraints. Preparing documents and engaging with the court process has been highly demanding and distressing. While helpful adjustments were made during the hearing phase (e.g., regular breaks, advocacy against harmful questions), these have since been withdrawn, despite the negotiation phase continuing to place significant demands on you. This, alongside financial and emotional strain, has negatively impacted your wellbeing. You described difficulty sleeping, teeth grinding, regular emotional breakdowns, and heightened anxiety.

Given your recent autism diagnosis, it is important that the court process considers your communication and information-processing needs so that you can participate on an equitable basis. The current structure and expectations of legal proceedings do not align well with your communication style, which can make it difficult for you to express yourself clearly or provide information in the way that is typically expected. This has understandably caused you significant distress, as noted in your recent contacts with health and wellbeing services. Reasonable adjustments - such as allowing you to communicate in alternative formats, giving you extra time to process and respond, and supporting you to organise your thoughts - may help you engage more effectively and fairly in the legal process.

A separate letter, addressed to the court, will be provided to outline your autistic needs and our recommendations for reasonable adjustments.

Risk and Mental Health

You were referred to us by the South Kensington and Chelsea Home Treatment Team (HTT), a crisis service, following a period of acute stress during which you believed you had been poisoned. While under the care of the HTT, you had regular meetings with clinicians. It was recognised that although the psychological impact of your trauma is significant, there were no concerns about active risk of harm to yourself or others.

During the autism assessment and follow-up meetings, we observed increasing levels of distress, which have affected your ability to maintain consistent self-care, sleep and eat well, and regulate your emotions. You spoke openly about these challenges, attributing much of your distress to the ongoing legal proceedings and the withdrawal of reasonable adjustments by the court.

Although you reported no current thoughts or plans to harm yourself or others, you acknowledged that your recent mental health difficulties have been more acute and impactful. You expressed a desire to access support to help stabilise your mental health. Following our post-diagnostic meeting on 19th June 2025, you confirmed your wish to engage with crisis services. We subsequently referred you to your local Single Point of Access (SPA) team, and you are now receiving support from the HTT.

Autism Profile

We recognised various autistic features in your social approach. This means that there are *marked differences* in how you communicate, approach social situations and process information. We also noticed *marked differences* in your daily approach and information processing styles that are consistent with an autism profile. These differences include:

Verbal Communication	
Expressive verbal communication	You express yourself with passion, particularly when discussing topics that are important to you. Your speech was often quicker than expected during our meetings and could involve extended, detailed monologues. While meaningful to you, this style of speech may mean that others may find it difficult to interject or follow your main point.
Formal, metaphorical, or repetitive language	You often use formal, analytical, or metaphorical language, and may repeat specific phrases or concepts. For example, you were keen to share how the “hyper analytical” processing style resonates with you and repeated words such as “microcosm” and “surreal” a number of times during our assessment. While this language is meaningful to you, it may make it difficult for those unfamiliar to you to interpret your intended meaning.
Turn-taking and gauging conversational expectations	It may be less intuitive for you to judge when to start or stop speaking, or how much detail to include. This can make conversational turn-taking more effortful. For example, during the assessment, you sometimes responded to personal questions with detailed theoretical content, which could be longer or less directly relevant than expected. Clear prompts and feedback can help to clarify expectations and prompt you to share relevant information.
Non-verbal Communication	
Interpreting social cues	Interpreting others’ emotions, intentions, or cues can be effortful. You may not always pick up on more subtle cues (e.g., whether a listener is struggling to follow), and you thrive when this information or feedback is offered more clearly. In unfamiliar or formal settings (e.g., courtrooms), this may impact how your reactions or participation are received by others.
Use of non-verbal communication cues	Your non-verbal communication (e.g., eye contact, gestures, body language, vocal tone) may not always be as well-meshed with your internal state or the social context as may be expected. For example, you may hold strong brief eye contact, punctuated by looking around the room. Your gestures and body language may also seem more animated or jerky than expected.

Communication Preferences and Support Needs	
Preference for direct communication	You prefer communication that is direct and transparent. Vague, contradictory, or unclear language can be distressing. For example, you described finding the inuendo and ambiguous communication of the court room very stressful. You also mentioned that in the past it has been helpful when workplace bosses offer you clear and direct feedback.
Strong sense of fairness and justice	You described a strong sense of justice and rule-based thinking. This can mean that when you perceive dishonesty or unfairness in social settings, you may become distressed and find it difficult to engage or negotiate.
Difficulty “reading between the lines”	Inferring unspoken intentions or navigating ambiguity in social or legal interactions can be challenging. For example, during our meetings, it seemed difficult to gauge how much information was appropriate to share or which questions were appropriate to ask.
Emotional Expression and Regulation	
Emotional recognition and expression	You experience emotions intensely and may find it difficult to regulate or express them in ways that others expect. When emotionally heightened, your communication may become more intense or expressive (e.g., through tone, movement, or language). This reflects your intention to be understood but could lead to misinterpretations by others.
Emotional regulation	Though you expressed difficulties with regulating your emotions when experiencing heightened stress, you show strong insight and commitment to managing these challenges. You described routinely seeking time alone to self-regulate, a strategy you have used throughout your life. More recently, you have also proactively accessed support through mental health services. These are important strengths that support your ability to navigate emotionally difficult situations.
Social Relationships	
Making and maintaining relationships	You described a very limited social circle during your younger years, often preferring to focus on schoolwork rather than forming relationships with your peers. Though you have developed social skills and navigated social spaces (e.g., the office environment) over the years, you described often seeking alone time.
Information Processing Style	
Analytical, rule-based thinking	You tend to create internal rules to make sense of the world, which you refer to as your “hyper analytical” style of thinking. This makes ambiguity or contradiction difficult to process, creating a sense of distress and, in some cases, contributing to breakdowns. You also mentioned that emotions can be difficult to make sense of, as they “do not fit inside the rules”. This can make it difficult for you to connect with nuances.
Detail-focused memory	You have a strong attention to and memory for details. You are able to recall information - including research, life events, or procedural details - in great

	detail. This strength can support you in structured or evidence-based environments, but may also contribute to cognitive overload.
Preference for structure and predictability	You are aware of your need for structure and clarity, and you thrive when expectations are clearly defined. Unfamiliar or unstructured environments can be more challenging to navigate.
Immersive Interests	
Deep focus on specific topics	You described your interest on topics as “intense”, often consuming most of your waking hours. Previously, you have been very interested in education and special needs. Currently, you spend an extensive amount of time reading legal documents - you are able to recall large amount of information and texts of your research.
Difficulty shifting focus	When engaged in your interests or sharing your interest with others, you often become deeply focused. This can make it difficult to shift your focus. For example, you described currently having little time for self-care and emotional regulation activities as you spend much of your time engaged in matters relevant to your court case.
Sensory Sensitivities and Regulation	
Sensory sensitivities	High-stimulation environments (e.g., court room, busy spaces) can be overwhelming. You may benefit from quiet spaces and sensory tools to self-regulate (e.g., movement, tactile objects like putty). You also mentioned that time alone has helped you throughout your life to regulate.
Sensory-seeking behaviour	During our meetings you engaged in a number of sensory seeking behaviours, such as flexing and clenching your hands and fingers, repetitively touching your face and head, and twisting your legs together. These actions may provide distinct sensory feedback, which can function as a way to self-soothe.

Your Strengths and Capabilities

While this report focuses your autistic needs, it is equally important to highlight your many strengths. You are highly intelligent, motivated, and passionate, with a strong sense of justice and commitment to your children. Your information processing style is analytical, which you have applied in previous professional roles and are currently using to navigate complex legal processes. Your care for your children was clearly expressed throughout our assessment, and you spoke warmly about your relationship with them.

Your autistic traits do not directly correlate to your parenting capability. Rather, your communication and information-processing style are part of your neurodivergent profile. When understood and supported appropriately, you are able to engage meaningfully and effectively.

Recommendations and next steps

Support from CLAAS

Post-diagnosis Support Sessions

We initially planned to meet for 2–3 post-diagnostic support sessions, focusing on developing strategies for emotional regulation and exploring helpful thinking patterns. You expressed openness and motivation to engage in these sessions.

However, following our first session, we jointly recognised that, given your current circumstances and the high levels of stress you are experiencing, it was difficult for you to engage meaningfully in post-diagnostic support at this time. You were insightful and open in acknowledging this, and we agreed that your primary need at present is mental health support rather than autism-focused input.

We understand that your situation has become particularly challenging in recent weeks, and you are now receiving support from crisis mental health services, who are helping you work towards greater stability and wellbeing. Once your circumstances have stabilised, and if you wish to re-engage, we would be open to re-opening your case to continue with autism-focused post-diagnostic support through CLAAS.

In the meantime, we have agreed to provide a supporting letter for the court to assist you in accessing reasonable adjustments. This letter will be sent to you virtually via email.

Liaison with other services

We are aware of your recent contact with mental health services and understand that you are currently receiving support from the South Kensington and Chelsea Home Treatment Team (HTT) following a referral to the CNWL Single Point of Access (SPA), made by us at CLAAS following a meeting in which we discussed your current difficulties.

We have been in contact with mental health services, including the CNWL Single Point of Access (SPA) and South Kensington and Chelsea (K&C) Community Mental Health Hub (CMHH) to share our concerns about your mental health and safety, and our understanding of your autistic needs in the current context.

Our service is not an emergency service. We do not coordinate or offer ongoing support. However, we will continue to ensure you are safe and communicate your psychosocial needs to the relevant services, with the hope that you can access appropriate support.

Autism Advice Clinic

We host a regular **Autism Advice Clinic**. These are 20 to 30-minute virtual slots for informal chats, advice-giving or signposting to other services. Please see the attached invitation letter and contact us to book an appointment.

Autism consultation and advice for professionals

We will remain in contact with your care teams and attend professional meetings. We can also provide **autism-specific consultation** to any professional supporting you. These are usually to provide specialist advice around supporting your autistic needs.

Recommendations for autism-related resources

Websites and online resources:

- There is useful information to be found on the National Autistic Society's website (<http://www.autism.org.uk/living-with-autism/adults-with-autism-or-asperger-syndrome/useful-resources.aspx>).
- **The Centre for ADHD and Autism (CAAS)** is a third-sector organisation that can advise on your autistic needs and support practical tasks in the community. Please visit this link for more information: <https://adhdandautism.org/services/adults/> or contact the local representative, Laura Nettleford (laura@adhdautism.org).

Books:

- [*Unmasking Autism*](#), Devon Price
- [*Looking After Your Autistic Self: A Personalised Self-Care Approach to Managing Your Sensory and Emotional Wellbeing*](#), Niamh Garvey
- [*An Adult with an Autism Diagnosis: A Guide for the Newly Diagnosed*](#), Gillian Drew
- [*The Guide to Good Mental Health on the Autism Spectrum*](#), Emma Goodall and Jane Nugent. Forewords by Wenn Lawson and Kirsty Dempster-Rivett Jeanette Purkis
- [*The Independent Woman's Handbook for Super Safe Living on the Autistic Spectrum*](#), Robyn Steward
- [*Women on the Spectrum: Walking to the Beat of Autism*](#), Barb Cook and Dr Michelle Garnett

Jessica Kingsley Publishers is one of the largest publishing houses on autism-related books.

Podcasts:

- Robyn Steward - <https://www.bbc.co.uk/programmes/p06sdq0x>
- John Offord - <https://anchor.fm/differentminds/episodes/How-it-feels-to-be-diagnosed-with-Autism-later-in-life-en6qhb>

General information about CLAAS

Our service **does not** offer ongoing psychological therapy or social care provision or case management. However, we can support you in accessing services.

- **Psychological support** for ongoing or co-morbid mental health needs. We can support you in being referred to **mental health services** (e.g. IAPT, CMHT) as appropriate via the GP.
- If there are concerns about daily functioning and independent living, a referral to **Adult Social Care Services** is recommended to see if there are needs eligible under the Care Act.

NHS No.: 705 199 5111
DoB: 27 Apr 1969

- If in **crisis** or feeling unsafe, please contact the **GP** or the **CNWL Single Point of Access** on 0800 0234 650 or attend the nearest **A&E**. The **Samaritans** also offers a helpline on 116 123 or jo@samaritans.org for difficult times.

We will close your case to mark the completion of your Autism assessment. Where appropriate, our service remains available for ad-hoc professional consultation and joint-working with other professionals or services.

Yours sincerely,

Electronically signed and delivered to avoid delays.

Sophia Iacovou

Assistant Psychologist

Dr Catherine Cheung

Principal Clinical Psychologist

Central London Adult Autism Service

CC: Referrer: South K&C Home Treatment Team, cnw-tr.southkandchtt@nhs.net

GP: Stanhope Mews West, stanhope.mews@nhs.net

CLAAS File